

CERTIFIED TRANSCRIPT OF:

Shyheen Buksh vs. Sixt Rent A Car

CHARLENE WILSON DOMINGUES

September 18, 2025

Reported by: Adrienne Meda



**West Coast Reporters LLC
68 Mitchell Blvd., Suite 210, San Rafael, CA 94903**

Main Office: 415-472-2361

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO

SHYHEEN BUKSH,

CASE NO: CGC-24-614323

Plaintiff,

VS

SIXT RENT A CAR, LLC;
MARCUS LAI and DOES
1 through 10, inclusive,

Defendants.

)

Zoom Recorded Deposition of

CHARLENE WILSON DOMINGUEZ

VOLUME 1

Pages 1 to 258

September 18, 2025

NOTICING ATTORNEY: KIRA BREKKE

REPORTED BY: ADRIENNE MEDA, CSR NO. 6609

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E X H I B I T S

Plaintiff's Exhibits:

EXHIBIT 83	Second Amended Notice of the Videotaped Deposition of Ms. Wilson Dominguez and Request For Production of Documents	17
EXHIBIT 99	Training records Bates number 651 to 652	115
EXHIBIT 50	28-page Sixt employee handbook effective March of 2012 Bates number SIXT29 to SIXT56	127
EXHIBIT 51	Document Bates stamped 258 to 260	140
EXHIBIT 52	Document entitled Discrimination, Harassment and Sexual Misconduct Policy and Acknowledgment Form Bates stamped Sixt 281 through 282	144
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1 Pursuant to Notice of Deposition and on
2 Thursday, September 18, 2025, commencing at the hour
3 of 8:10 a.m., at the Law Offices of West Coast
4 Reporters, LLC, 68 Mitchell Boulevard, Suite 201, San
5 Rafael California 95403, before me, ADRIENNE MEDA, a
6 Certified Shorthand Reporter Deposition Officer of
7 the State of California, there appeared via Zoom
8 platform,

9 CHARLENE WILSON DOMINGUEZ, VOLUME 1,
10 called as a witness by the Plaintiff, who, having
11 been remotely duly sworn by me, was examined and
12 testified as hereinafter set forth.

13 -000-

14 A P P E A R A N C E S

15 For the Plaintiff:

16 CALIFORNIA CIVIL RIGHTS
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19 For the Defendant:

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23 Also present:

24 Julianne Stanford, Cameron Hartquist, Madeline
25 Ley

1 THE REPORTER: Before we swear in the
2 witness, I need to put on the record that my name is
3 Adrienne Meda --

4 MS. BREKKE: Oh, let me -- let me start
5 recording. One second.

6 Okay, we are now recording. Go ahead.

7 THE REPORTER: I'm a Certified Shorthand
8 Reporter in the state of California, and my license
9 number is 6609.

10 MS. BREKKE: I'm wondering if we're
11 having some audio --

12 Ms. Wilson, do you mind kind of telling
13 me how you are this morning just so we can test your
14 audio?

15 THE WITNESS: I'm doing good.

16 MS. BREKKE: Okay.

17 Is that okay, Madam Court Reporter?

18 THE REPORTER: Yes. I can hear her well.

19 MS. BREKKE: So this marks the beginning
20 of media one. Today is Tuesday, September 18th.
21 This is the deposition of Charlene Wilson, also known
22 as Charlene Dominguez, testifying in her individual
23 capacity in Buksh verse Sixt, et al, in San Francisco
24 County, case number CGC-24-614323.

25 My name is Kira Brekke, and I'm

1 videotaping this deposition on behalf of the
2 plaintiff --

3 THE REPORTER: Can we go off the record
4 for one moment?

5 MR. BREKKE: Sure.

6 (Off the record.)

7 MS. BREKKE: Okay. And this deposition
8 is taking place via Zoom, pursuant to agreement of
9 all parties. The time is now 8:12 a.m. I'd like all
10 parties in the room to please state your appearances,
11 and I'll go first.

12 My name is Kira Brekke, as I stated. I
13 represent the Plaintiff, Shyheen Buksh, in this
14 matter.

15 MR. RAHMAN: I'm Imran Rahman for
16 Defendants.

17 MS. BREKKE: And I'll just note that we
18 may have a couple people from my firm coming in a
19 little bit later. Our law clerk, Madeline Ley,
20 paralegal Cameron Harquist. It's possible our
21 managing partner, Julian Stanford, will be coming in.

22 And Madam Court Reporter, I'm happy to
23 spell those out if you need.

24 Julian Stanford, J-U-L-I-A-N-N-E,
25 Stanford, S-T-A-N-F-O-R-D, Cameron, one of our

1 paralegals, normal spelling, C-A-M-E-R-O-N, last name
2 Hartquist, H-A-R-T-as-in-Tom-Q-U-I-S-T, and Madeline
3 Ley, L-E-Y.

4 Okay?

5 THE REPORTER: Thank you.

6 MS. BREKKE: You're welcome.

7 And I -- when they come into the room, I
8 will state their appearances, as well, for clarity.

9 EXAMINATION

10 BY MS. BREKKE: Hi, Ms. Wilson. How are
11 you?

12 A. I'm good. How are you?

13 Q. I'm fine, thank you.

14 So as I -- as I mentioned, I'm an attorney
15 representing the plaintiff in this case, Shyheen
16 Buksh.

17 Will you please state and spell your full
18 name for the record. And for the record, I'll add
19 that -- well, you can state your name. Go ahead.

20 A. My name is Charlene Dominguez. That's
21 C-H-A-R-L-E-N-E, and D-O-M-I-N-G-U-E-Z. Previously,
22 I was known as Charlene Wilson. It's W-I-L-S-O-N.

23 Q. You know what? We're going to do
24 Dominguez today. I think that's who you are today,
25 so let's do that. Okay. I might mess up, but

1 forgive me if I do.

2 So Miss Dominguez, how old are you?

3 A. I'm 33.

4 Q. Have you ever had your deposition taken
5 before?

6 A. No.

7 Q. So I'm going to take a few minutes to
8 explain what the ground rules today are.

9 So, naturally, I'm going to be asking you
10 questions. You have to answer those questions as
11 best as you can. I know we're on Zoom, and it seems
12 informal, but this is actually a formal court
13 proceeding. You've taken an oath, so you must make
14 every effort to answer these questions as accurately
15 as you can.

16 Do you understand that?

17 A. Yes.

18 Q. So as I'm asking you questions, if you do
19 not know the answer, I do not want you to speculate
20 or guess. However, I'm entitled to your best
21 estimate, and I am entitled to your best testimony.
22 But I don't want you to guess. So I'll give you an
23 example.

24 If I said, Ms. Dominguez, how much money
25 do I have in my wallet, how would you know. If, you

1 know, you and I were in the same room, I opened my
2 wallet, we're standing next to each other, you might
3 be able to look, you might have an idea.

4 Does that make sense? There's some sort
5 of reference point. Okay?

6 The court reporter here, she will be
7 writing down your answers and my questions. We've
8 done a really good job of this in prior depositions,
9 but she can't record -- she can't type two people
10 talking at once. So let's just make a really
11 concerted effort to not talk over each other. Please
12 make sure I finish my question before you start to
13 answer, and I'll be sure to let you finish your
14 answer before I start my next question. Okay?

15 You must also give verbal responses like
16 "yes" or "no," instead of nonverbal responses, like
17 "uh-huh" or "um-hum" or some sort of shaking of your
18 head. She can't record that down, and people slip up
19 here, and me or Imran will be sure to say, you know,
20 is that a verbal "yes" or a verbal "no."

21 At the end of today, you will have an
22 opportunity to look at the transcript that the court
23 reporter so diligently does for us, and you will have
24 an opportunity to make changes to it, if you
25 misspoke, if you need to change any of your

1 testimony. However, I'll warn you, at trial, I will
2 be able to use any changes you make to call out your
3 credibility or to show your testimony has little
4 weight. So, again, you want to make sure to make
5 every effort to be as accurate as possible today.
6 Understood?

7 Was that a "yes"?

8 THE REPORTER: I think she's -- I can't
9 hear her.

10 MS. BREKKE: Yeah. Your audio's a little
11 off.

12 THE WITNESS: Is that because I have the
13 fan on? Is that better?

14 MS. BREKKE: Yeah, that is better.

15 THE WITNESS: I understand.

16 MS. BREKKE: Okay. I will try to make my
17 questions as clear as possible. You do not know --
18 excuse me -- if you do not understand or you do not
19 hear my question, please let me know. I will
20 rephrase it, I will clarify, I will repeat the
21 question.

22 If you answer the question, I'm going to
23 assume you understood it.

24 Q. Okay? Does that make sense?

25 A. (Nods head.)

1 Q. Again, I'm not -- do you have ear phones
2 or something that you can put in? That's sometimes
3 better about picking up sound.

4 THE REPORTER: She's also on mute right
5 now.

6 MS. BREKKE: You're muted.

7 THE WITNESS: I was trying connect to
8 them.

9 MS. BREKKE: That's okay. It seems like
10 it's okay now.

11 Okay. So I'll just repeat that for the
12 sake of testing audio.

13 If you answer the question, I will assume
14 that you understood my question correctly and
15 completely.

16 Q. Okay? Does that make sense?

17 A. Yes.

18 Q. Okay. That's better.

19 If at any time you're tired or you need to
20 take a break, please let me know and I'll be happy to
21 accommodate you. We -- typically we take a break
22 once an hour. If you want to go for an hour and a
23 half, I'll make sure that everyone's comfortable
24 doing so. I take -- we're starting earlier, but
25 we'll take appropriate lunch breaks, coffee breaks,

1 usually 5 to 10 minutes for those shorter breaks, and
2 we'll talk about a lunch break. Okay?

3 A. Yes.

4 Q. Let's see. What else did I want to tell
5 you.

6 If I'm in the middle of asking questions
7 and you would like a break, I would just ask that you
8 let me finish my line of questioning. Okay?

9 A. Yes.

10 Q. Okay. Before we proceed, do you have any
11 questions?

12 A. No.

13 Q. Okay. Are you currently taking any
14 medication that might affect your memory or otherwise
15 affect your testimony today?

16 A. No.

17 Q. Okay. Is there any reason you cannot
18 give your best testimony today?

19 A. No.

20 Q. Do you feel sick or anything?

21 A. No.

22 Q. Okay. Do you know your presence today is
23 required?

24 THE REPORTER: I'm sorry?

25 BY MS. BREKKE: Q. Do you know your

1 presence here is required?

2 A. Required?

3 MR. RAHMAN: Object. May call for a
4 legal conclusion.

5 But go ahead.

6 THE WITNESS: Can you re --

7 MS. BREKKE: Yeah.

8 Q. Do you understand that your presence
9 today is required?

10 A. No, I did not know that it was required
11 but --

12 Q. Okay.

13 A. -- I don't mind being here.

14 Q. Okay. Do you know that Sixt cannot
15 retaliate against you for your testimony today?

16 A. Yes.

17 MR. RAHMAN: Same objection.

18 BY MS. BREKKE: Q. And do you agree to
19 have your counsel accept service of a trial subpoena
20 on your behalf?

21 A. I don't understand that question.

22 Q. That's okay. Yeah. So when this case
23 goes to trial, your presence will be required, and
24 there are a couple of ways that we can issue a
25 subpoena to you to appear at trial.

1 The first way is we can have someone go to
2 your house, deliver it to you in that manner, or your
3 counsel can accept it on your behalf.

4 A. Okay, yes.

5 Q. You agree to have your counsel accept
6 it --

7 A. Yes.

8 Q. -- service of a trial subpoena?

9 A. Yes.

10 Q. Okay, thank you.

11 And, Ms. Dominguez, do you have a middle
12 name?

13 A. Yes. It's Wilson.

14 Q. Got it. Okay. So when you got married,
15 you made -- I don't like the word "maiden name," but
16 major --

17 A. Last name Wilson, yes -- I mean, last
18 name is my middle name.

19 Q. Okay. So your full name is Charlene
20 Wilson Dominguez; is that correct?

21 A. Yes.

22 Q. Okay. Ms. Dominguez, did you meet with
23 anyone to prepare for this deposition today?

24 A. My attorney.

25 Q. Okay. And is your attorney -- is Imran

1 who you met with?

2 A. Yes.

3 Q. And how many times did you meet with him?

4 A. Maybe four?

5 Q. Okay. And that first time you met with
6 him, when was it?

7 A. I can't recall the day, the first time.

8 Q. That's okay. Was it within the last
9 month?

10 A. The first time? No.

11 Q. It was --

12 A. Last year?

13 Q. And how long was that meeting?

14 A. At least an hour.

15 Q. Okay. Was it more than two hours?

16 A. I'm going to say no, because the meeting
17 was scheduled for two hours. I don't think we went
18 over.

19 Q. Okay. And then what about the second
20 time, when was that?

21 A. Sometime within that year. I think they
22 were more recent, so within the last six months.

23 Q. And how long was that meeting?

24 A. One to two hours.

25 Q. And the third time -- and I know you said

1 about four times, so I'm just going to go off that
2 approximation.

3 So the third time you met, how long did
4 you meet for?

5 A. It was more recent. So maybe in the past
6 two months for one to two hours.

7 Q. And the most recent time?

8 A. Last week.

9 Q. Same question, how long did you meet for?

10 A. One to two hours. Not last week. It was
11 Monday, I think. Monday.

12 Q. Monday this week?

13 A. Yeah.

14 Q. That's okay.

15 And, Ms. Dominguez, did you review any
16 documents notes or memos in preparation for today's
17 deposition outside the presence of your attorney?

18 A. No.

19 Q. So every document you reviewed, it was in
20 the presence of your attorney?

21 MR. RAHMAN: I'm going to instruct you
22 not to answer that question based upon
23 attorney-client confidentiality and the work-product
24 doctrine.

25 MS. BREKKE: That's not valid. I asked

1 if you reviewed documents with -- fine, moving on.

2 Q. Did you look for any documents before
3 today's deposition?

4 A. Yes.

5 Q. And what documents did you look for?

6 A. I was asked to look for messages -- text
7 messages, between me and -- there was like a list of
8 names on an email, put a check for, and I didn't have
9 any messages from them.

10 Q. Okay. Who are those people?

11 A. I can't remember off the top of my head.

12 MR. RAHMAN: You know, I'm going to
13 instruct you not to -- hold on.

14 MS. BREKKE: I'm sorry, is this -- I'm
15 sorry, is this a communication with your -- I don't
16 want to know any communications you had with your
17 attorney. I should have asked initially if this
18 email was from your attorney. If it was from your
19 attorney, I really don't want to know anything that
20 you and your attorney spoke about. I'm not entitled
21 to that information. That's privileged.

22 Q. My question was about whether -- you
23 know, you don't have to tell me why you looked for
24 text messages, but there was a deposition notice sent
25 to you requesting documents. We can go over that and

1 I -- to make sure that you did adequately look for
2 these documents. Okay?

3 A. Yes.

4 MS. BREKKE: Okay. So why don't we do
5 that instead. So I'm going to -- and I'm going to
6 pull up your deposition notice. This is -- and I
7 told the court reporter, the numbers of the exhibits,
8 Imran, are not going to be one after the other.
9 We're going to be a little bouncing around. So this
10 is Exhibit 83.

11 (A document was marked as
12 Plaintiff's Exhibit 83.)

13 MS. BREKKE: I'm going to share my
14 screen.

15 Q. Can you see this, Ms. Dominguez?

16 A. Yes.

17 MS. BREKKE: So, for the record, this is a
18 six-page document. This is the amended -- the Second
19 Amended Notice of the Videotaped Deposition of
20 Ms. Wilson Dominguez and Request For Production of
21 Documents.

22 I'm going to scroll through this,
23 Ms. Dominguez, and let me know if this document looks
24 familiar to you at all. Let me know if you want me
25 to go slower.

1 THE WITNESS: I remember this document.

2 MS. BREKKE: Okay, great. Great.

3 So I'm going to scroll down to the fourth
4 page, Request For Production of Documents, Number 1.
5 So these are documents that we are -- absent any
6 objections by your attorney, we are entitled to.

7 Q. So let me ask you this --

8 MS. BREKKE: We -- my -- as, stated my
9 paralegal is entering the room. So this is Cameron
10 Hartquist. She'll be with us today.

11 Q. Okay. So, Ms. Dominguez, did you look
12 for all communications, that includes emails, text
13 messages, SMS, MMS, and any sort of other messages
14 between you and Mr. Lai since the beginning of your
15 employment with Defendant Sixt until August of 2022;
16 did you look for those documents?

17 A. Yes.

18 Q. And did you have any?

19 A. No.

20 Q. Do you have a practice of deleting text
21 messages, Ms. Dominguez?

22 A. Yes.

23 Q. When do you typically delete text
24 messages?

25 A. Within -- if it's been over a month or

1 two of no messages going back and forth, like, if
2 they are all the way at the bottom of my message
3 list, or if it says something like a date in the past
4 that is no longer, like -- a word like last week or
5 something like that, if it's an actual date that's
6 far in the past, then I delete it.

7 Q. Okay. So when was the last time you
8 communicated -- when I say Mr. Lai, you understand
9 it's Marcus Lai?

10 A. Yes.

11 Q. And when was the last time you
12 communicated with him?

13 A. Long time ago.

14 Q. Do you have an estimate?

15 A. No.

16 Q. I am entitled to your best estimate. So
17 what is your best estimate of the last time you spoke
18 to him?

19 MR. RAHMAN: Again, I want to caution you
20 not to guess. To the extent you can provide a best
21 -- your best estimate, feel free to do so. But,
22 again, don't guess.

23 THE WITNESS: Over a year ago.

24 BY MS. BREKKE: Q. Okay. Was it over
25 two years -- so that we're in 2025, so the last time

1 you spoke to him was in 2024?

2 MR. RAHMAN: Again, same instruction.

3 But go ahead. If you understand, you can
4 answer --

5 MS. BREKKE: I am entitled -- I am
6 entitled to your best estimate. So we can workshop
7 this.

8 Q. So do you believe you spoke to him in
9 2024?

10 A. I'm going to say the last time that I
11 know I talked to him for sure was 2023.

12 Q. Okay. And what was your last
13 communication with Mr. Lai in 2023?

14 A. What I can remember is him congratulating
15 me on my engagement.

16 Q. And where did he do that?

17 A. I can't -- I can't recall how it was.

18 Q. Like whether it was via text, or some
19 other messaging service; is that what you mean?

20 A. Yes.

21 Q. Okay. Okay. So the last -- when did you
22 get engaged?

23 A. 2023.

24 Q. Okay. What month in 2023?

25 A. March.

1 Q. Okay. And you can't specifically recall
2 if you spoke to him at any point after that; is that
3 correct?

4 A. Yes.

5 Q. And you got engaged in March of 2023.
6 You can't recall a time after that you spoke to him.

7 So do you know when you deleted your text
8 with him?

9 MR. RAHMAN: May call for speculation.
10 If you know.

11 THE WITNESS: No.

12 BY MS. BREKKE: Q. Okay. All right.
13 Had you deleted your text with him -- okay, strike
14 that.

15 You had said that if you don't have
16 regular communication with someone, you typically,
17 you know, delete the text thread; is that accurate?

18 A. Yes.

19 Q. Okay. Prior to March of 2023, had you
20 been in contact with Mr. Lai?

21 A. I believe I worked with him.

22 Q. Okay. So do you believe you deleted your
23 text with him after March of 2023?

24 MR. RAHMAN: May call for speculation.
25 If you know.

1 THE WITNESS: Well, I had to delete it
2 after, because that's --

3 BY MS. BREKKE: Q. Okay. I think my
4 question was trying to get at whether you had deleted
5 your thread with him and then he texted you again on
6 like a new thread that you didn't have with him.

7 Does that make sense?

8 A. Yes.

9 Q. But it sounds like you deleted your text
10 after March of 2023; is that correct?

11 A. I delete my texts, like, all the time.
12 It's not just like I wait a long time and then delete
13 the whole thread. I can delete it, like, within --
14 if we don't communicate for a month, and then we talk
15 again, it's been a month and I delete it. So it
16 happens all the time. It's not just at the end.

17 Q. Okay. Okay. Did you check your -- I --
18 I'm sorry.

19 What kind of phone do you have?

20 A. I have an iPhone.

21 Q. Okay. And did you check your iCloud
22 for -- do you have iCloud services set up on your
23 iPhone?

24 A. I do.

25 Q. Okay. And did you check your iCloud for

1 any messages with Mr. Lai?

2 A. In my settings, I believe I don't have,
3 like, the storage to hold messages. Like to hold
4 things in there. I clear it out, because I don't
5 have a lot of storage space.

6 But I also don't know how to check my
7 iCloud, because I just have my phone.

8 Q. Okay. Same question for -- and do you --
9 did you check for any e-mails you had with Mr. Lai?

10 A. My --

11 MR. RAHMAN: Lack of foundation. Calls
12 for speculation.

13 Go ahead.

14 MS. BREKKE: Okay, fine.

15 Q. Do you have any emails with Mr. Lai at
16 any point?

17 A. Do I have? I did when he worked with me.
18 But I don't -- I don't have anymore. Our inbox got
19 -- gets deleted every so -- if it's been awhile, and
20 it's been a few years since he's worked with us.
21 So...

22 Q. Uh-hmm. And when you say your inbox gets
23 deleted, what do you -- your Sixt inbox gets deleted?

24 A. Yes.

25 Q. And what is the -- how -- how do you know

1 this?

2 A. I know this because one time my inbox was
3 full, and I was able -- unable to use my -- my email,
4 so I had to delete all emails that were, like, more
5 than two years old. So now it's on a -- like, it
6 does it by itself. I don't know the exact amount of
7 time that it does it, but it has like on an auto
8 delete now so that I don't run into that issue.

9 Q. And is this just you? Or is this a Sixt
10 practice to your knowledge?

11 A. I know that it just popped up on my
12 email. I'm not sure on other people's emails. But I
13 have heard that their email was the same thing, that
14 it was the storage, that we're holding on too many
15 messages.

16 Q. Like -- but you were the one that went in
17 and said "auto delete." Correct?

18 A. Yes.

19 Q. You selected the Auto Delete function?

20 A. Yes.

21 Q. Okay. Similar with Request of Production
22 Number 2, did you check for all communications --
23 strike that.

24 Did you and Mr. Lai have any
25 communications related to Ms. Buksh after she

1 resigned?

2 THE REPORTER: Miss who?

3 MS. BREKKE: The Plaintiff in this case,
4 Buksh is how you pronounce her last name.

5 THE REPORTER: Thank you. Sorry.

6 MS. BREKKE: That's okay.

7 THE WITNESS: From what timeframe? What
8 other timeframe?

9 MS. BREKKE: Uh-hmm, August of 2022. So
10 right after -- I'll represent to you, that's right
11 after Mr. Lai's resignation to the president.

12 Q. Have you at any point spoken to Mr. Lai
13 about my client?

14 A. No.

15 Q. Okay. Similar question with -- let's
16 see. I'm jumping to four. Have you at any point
17 spoken to Ms. Hernandez about my client?

18 Michelle Hernandez?

19 A. No.

20 Q. About anything?

21 A. From -- are we doing the same timeframe?

22 Q. No. We are doing whole entire --

23 A. Entire?

24 Q. You know -- at any point?

25 A. Yes. When she worked with me.

1 Q. Okay. And did you look for all -- do you
2 still have text messages with Ms. Hernandez?

3 A. No.

4 Q. You've deleted those, as well?

5 A. Well, she -- she didn't really text
6 often. She was more of like an email or in person
7 talking. So I don't have those. She -- she moved
8 to, I believe, LA. So when she moved, we don't email
9 anymore.

10 Q. Okay. And do you text at all?

11 A. No.

12 Q. And when did she move to LA?

13 MR. RAHMAN: May call for speculation.
14 If you know.

15 THE WITNESS: I don't -- I don't remember
16 when she moved.

17 BY MS. BREKKE: Q. Did you -- or do you
18 have an idea of when you deleted any text messages
19 with Ms. Hernandez?

20 A. No.

21 Q. In the past year?

22 A. Again, I didn't really text her. So if
23 that -- if I don't really text her, that means it was
24 pretty fast that the messages got deleted. I would
25 say around maybe over two years ago?

1 Q. Okay. And emails, did you look for any
2 emails with Ms. Hernandez related to my client?

3 A. I did, but it was the same emails that
4 I've already provided.

5 Q. Great. Thank you.

6 And we have a couple more here.

7 Ms. Calderon? Did you work with Tiffany
8 Calderon?

9 A. Not closely.

10 Q. Okay. Do you have any communications
11 with her related to my client?

12 A. No.

13 Q. No text messages?

14 A. No.

15 Q. And when you say you didn't work with her
16 closely, what do you mean by that?

17 A. She was -- at the time, I believe she was
18 a downtown manager, I think. So she spoke to
19 Michelle. She didn't really need to deal with me
20 since I reported to Michelle.

21 Q. Uh-huh. And what timeframe are you
22 speaking of?

23 A. When we all worked together.

24 Q. So -- so that could help you out with
25 that one, yeah. It's like the 2019 to 2022 time

1 period?

2 A. Yes. Yes.

3 Q. Okay. At any point did you work closely
4 with Ms. Calderon?

5 A. Only when it was regarding our new cars
6 that we were getting. That's -- that's it.

7 Q. And so your interactions with her were
8 kind of limited to when you received new cars from
9 Sixt or from whoever -- I don't know where you get
10 your cars.

11 A. Yes. That's all she was sort of
12 interested in from me is when the new cars are coming
13 in.

14 Q. Okay. And that was throughout that 2019,
15 2021, 2022 time period; is that correct?

16 A. Yes.

17 MS. BREKKE: Okay. Okay. Okay. We can
18 stop with this exhibit.

19 And Madam Court Reporter, I'm going to try
20 to remember what exhibits that I referred to, so I'm
21 going to make a list, hopefully be more helpful by
22 the end of this. Okay?

23 THE REPORTER: Thank you.

24 MS. BREKKE: Sure.

25 Q. Ms. Dominguez, aside from your counsel,

1 did you speak to anyone else regarding your
2 deposition today?

3 A. My husband, to let him know I needed to
4 do this, but that's it.

5 Q. Okay. And that reminds me: Are you
6 alone in -- where are you? You don't have to tell me
7 your exact address. Are you in your home?

8 A. Yes. I'm in my daughter's room.

9 Q. Okay. And are you alone in your
10 daughter's room?

11 A. Yes.

12 Q. Is anyone else around?

13 A. No.

14 Q. Do you have any other screens up except
15 our Zoom screen?

16 A. No.

17 Q. Great. Okay. I'll just ask that if you
18 have your phone, if you could, please -- you know, I
19 don't necessarily -- you're a mom, I don't
20 necessarily need you to turn it off. But please, if
21 something comes up, if there's a call, you have to
22 take a break, let me know and we can break. Okay?

23 A. My phone is in the other room.

24 Q. Okay. And another thing is, I don't know
25 if you have -- it doesn't really seem like it -- we

1 had a deposition where someone liked to kind of
2 doodle. Any notes you take in the deposition I'm
3 entitled to see, and I'll ask you to hold up that
4 piece of paper. Okay?

5 So you spoke to your husband. And what
6 did you tell him -- oh, actually, never mind. He's
7 your husband. You also have a privilege there in
8 what you and your husband discuss. Okay?

9 So aside from your husband, did you speak
10 to anyone else?

11 A. No.

12 Q. Okay. Have you spoken anyone at Sixt
13 about it?

14 A. No.

15 Q. And, Ms. Dominguez, have you discussed
16 this lawsuit with anyone other than your counsel?

17 A. No.

18 Q. No one at Sixt?

19 A. No.

20 Q. Okay. Let's get into -- and, oh, have
21 you spoken to Mr. Lai at any point about this
22 lawsuit?

23 A. No.

24 Q. Okay. So let's get a little background
25 information on you, Ms. Dominguez.

1 Did you attend college?

2 A. No.

3 Q. Okay. Any -- did you attend high school?

4 A. Yes.

5 Q. Where did you go to high school?

6 A. In Hayward.

7 Q. Okay. Is there a Hayward High?

8 A. I went to a few different ones. So --

9 Q. Okay.

10 A. Yeah.

11 Q. And did you graduate from high school?

12 A. Yes.

13 Q. Okay. What year did you graduate high
14 school?

15 A. 2010.

16 Q. Okay. And then have you done any other
17 type of schooling aside from high school?

18 A. I did go to community college for, like,
19 two years, but I didn't finish.

20 Q. And what community college did you go to?

21 A. I went to Chabot in Hayward, and Skyline
22 College in South San Francisco.

23 Q. Chabot. How do you spell that?

24 A. C-H-A-B-O-T.

25 Q. And at Chabot, what was your -- I'm a

1 little unfamiliar with -- well, in Chabot, what --
2 were you working toward a specific degree? Or a
3 specific type -- were you taking specific type of
4 classes?

5 A. Originally, I was criminology and social
6 psychology.

7 Q. You switched to psychology at Skyline?
8 Or at -- still at Chabot?

9 A. At Skyline.

10 Q. So you were at Chabot for how long?

11 A. For one to two years. Yeah, one to two
12 years.

13 Q. Then you went to Skyline. How long were
14 you at Skyline?

15 A. That was online, so I think it was just
16 like one semester.

17 Q. And then after high school, did you
18 immediately enter the job market?

19 A. Yes.

20 Q. And what was your first job after high
21 school?

22 A. My first job was at UPS for -- for like
23 three months.

24 Q. What were you doing there?

25 A. I was package handler. I think that's

1 the title. For Oakland Airport.

2 Q. You were there for three months. Where
3 were you next?

4 A. I worked at a shoe store in San
5 Francisco. I was sales. The shoe store was called
6 Ecco, E-C-C-O.

7 MS. BREKKE: I actually had a client that
8 worked there. But this was many years ago. Or a
9 couple years ago.

10 Q. Okay. So you worked at Ecco for how
11 long?

12 A. A year?

13 Q. Uh-hmm. And then so that brings us into,
14 let's say, 2012, maybe?

15 A. Yes.

16 Q. So, in 2012, where was your next
17 position?

18 A. That's when I had my daughter, so I
19 stopped working for a bit. I didn't start working
20 again until about 2015. 2014, 2015.

21 Q. And where did you start working at that
22 point?

23 A. A warehouse for, like, shipping stuff for
24 Amazon, but that was just for a couple of months.
25 And that's when I joined Sixt.

1 Q. Okay. You've been at Sixt for, gosh,
2 almost --

3 A. 10 years.

4 Q. -- 11 years? 10 years? Yeah.

5 Okay. Okay. And so you got into the
6 rental car industry. I know it seems like you have a
7 couple, like, similar to -- some similar types of
8 thing, like warehouse, UPS, Amazon stuff.

9 So what got you interested in the rental
10 car industry?

11 A. They were hiring. So, um, when I -- when
12 I joined, it was like sales, which was kind of
13 connected to my previous job with the Ecco, and I
14 enjoyed doing sales. So I started off doing, like,
15 at the counter for Sixt.

16 Q. Which counter?

17 A. Like, where you rent the cars out to
18 customers.

19 Q. I'm sorry. I should have been clearer.
20 What location at Sixt?

21 A. In San Francisco airport.

22 Q. My understanding it was not like in the
23 airport, it was at an off-site kind of --

24 A. Yes.

25 Q. -- but still called the airport?

1 A. Yes.

2 Q. Okay. And was that the one next to the
3 Costco building? Or was it one before that?

4 A. Before that.

5 Q. And where was that one?

6 A. In the Westin Hotel.

7 Q. In downtown San Francisco?

8 A. No. It's right near the airport. I
9 think the city, it would be considered as Millbrea.

10 Q. And your job title when you first started
11 was what?

12 A. Rental sales agent.

13 Q. Okay. Do you know what month you started
14 at Sixt?

15 A. I started in June 2015 but then was let
16 go because of -- we switched from franchise to
17 corporate when corporate took over. And then I
18 started back with corporate in November 2015.

19 Q. Did you have the same position?

20 A. Yes.

21 Q. November 2015, you're a rental sales
22 agent?

23 A. Yes.

24 Q. Okay. And how long did you hold that
25 position?

1 A. So maybe six months to a year.

2 Q. Okay. And then what were you?

3 A. Then I was -- I became a fleet planner.

4 Q. When did you become a fleet planner?

5 A. Six months to a year after I was a rental
6 sales agent.

7 Q. About the same maybe summer of 2016?

8 A. I -- I can't recall the exact time.

9 Yeah.

10 Q. That's fine. Okay.

11 And were you -- I think I'm kind of
12 understanding the positions a little bit. Were you a
13 junior fleet planner, a senior fleet planner, or just
14 a fleet planner?

15 A. I was just a fleet planner.

16 Q. And when did your position change?

17 A. Then I was promoted to senior fleet
18 planner, which I was at for maybe a year.

19 Q. I'm sorry. How long were you just a
20 fleet planner?

21 A. Oh, about a year.

22 Q. Okay. And then you were promoted to
23 senior fleet manager -- strike that.

24 Senior fleet planner --

25 A. Yes.

1 Q. -- in 2017?

2 A. Yes.

3 Q. Okay. And then how long did you hold
4 that position?

5 A. About a year.

6 Q. And then what?

7 A. So then I was promoted to junior fleet
8 manager.

9 Q. Okay. Around 2018, let's say.
10 How long -- is that the position you
11 currently hold?

12 A. No. I was --

13 Q. How long were you in that position?

14 A. Say about another year.

15 Q. And --

16 A. Then I was a fleet manager.

17 Q. Oh, just to be clear, from senior fleet
18 planner to junior fleet manager, is that also a
19 promotion?

20 A. Yes.

21 Q. Okay. And then you were promoted to
22 fleet manager.

23 And what year was that?

24 A. 2019?

25 Q. Okay. And how long did you hold that

1 position?

2 A. Until about this year, when I was
3 promoted to senior fleet manager.

4 Q. So you were promoted this year to senior
5 fleet manager?

6 A. Yes.

7 Q. So you were in fleet manager position
8 from 2019 approximately to 2025; correct?

9 A. I'd say around 2020 to 2025.

10 Q. Okay. COVID sounds familiar in that
11 respect?

12 A. Yes.

13 Q. Okay. Are you a member of any
14 professional organizations?

15 A. What do you mean? What is a professional
16 org -- what is that?

17 Q. This wouldn't apply to you, but, you
18 know, if you're in HR, some people in HR are part of
19 like an HR organization. But it sounds like you
20 might not be.

21 But so is the answer "no," to your
22 knowledge?

23 A. No.

24 Q. Okay. Do you have any other -- do you
25 have any certifications related to anything?

1 A. No.

2 Q. Okay. So just a little background on
3 Sixt. You kind of got into something that I was
4 going to ask you. Do you know --

5 MS. BREKKE: Oh, my law clerk is now
6 coming. This is Madeline Ley, for the record.

7 Q. Okay. Do you know when Sixt operations
8 began in California?

9 A. No -- you mean for my location?

10 Q. I'm sorry, what was that?

11 A. For my location? Or do you mean the
12 whole California?

13 Q. Let's do your location.

14 A. Well, that's when I was -- because they
15 switched to corporate, so 2015 for San Francisco
16 airport.

17 Q. Okay. So when you were first hired in
18 June, they were just beginning -- or did you --
19 strike that.

20 Do you know how long the franchise was
21 going on for when you were hired?

22 MR. RAHMAN: May call for speculation.

23 THE WITNESS: Not for before I was hired.
24 But when I was hired to when they took over, it was
25 about three months.

1 BY MS. BREKKE: Q. Okay. And when you
2 were hired in 2015 for that franchise, just based on
3 your own observations, did it seem to be a well-oiled
4 machine? Or was it -- did it feel new?

5 MR. RAHMAN: Vague and ambiguous.

6 THE WITNESS: For corporate? When
7 corporate took over?

8 BY MS. BREKKE: The franchise.

9 A. Oh, for the franchise. It was not good.

10 Q. Okay. What made it not good?

11 A. It was just a mess. Nothing was, like,
12 organized. I remember we made the company look bad
13 just because of how messed up it was. Yeah.

14 Q. What do you mean by that?

15 A. Just, like, the -- our fleet wasn't
16 organized. Customers didn't have cars. It was just
17 -- it looked bad. We never had the cars they wanted.

18 Q. So when you say "we made the company,"
19 you said, "I remember we made the company look bad."
20 I got it.

21 Okay. And then corporate came over, like,
22 three months after you started; is that right?

23 A. Yeah. Yeah, about -- yes.

24 Q. About. Okay. Okay.

25 And, Ms. Dominguez, when did you first

1 meet Mr. Lai?

2 A. When he was hired as a fleet planner in
3 -- so that was around the time when I was a senior
4 fleet planner.

5 Q. And did you know he had just been hired?

6 A. Yes.

7 Q. Okay. And did you start working with him
8 at that point?

9 A. Yes.

10 Q. And were you like -- what -- like, were
11 you peers? Or did he report to you?

12 A. He didn't report to me. I was just like
13 a lead for that position, but he still reported to
14 the manager at that time. I trained him on the
15 position.

16 Q. And did you have to work with him
17 regularly?

18 MR. RAHMAN: Vague and ambiguous.

19 Go ahead.

20 THE WITNESS: Not too often. I think our
21 schedules were kind of, like, off. They weren't at
22 the same time. So I just remember working with him
23 as a -- like training him, and then after that, not
24 too much.

25 BY MS. BREKKE: Q. So you were on the

1 same team?

2 A. Yes.

3 Q. Who else was on the team?

4 A. I can't remember who else.

5 Q. Were there -- was there one other person?

6 A. It's hard, because we've been through a
7 few of them, so I don't know the timeframe of that,
8 during that time, how many was there. But the team
9 wasn't always small. So I could say, yeah, maybe one
10 other person, but I can't recall who that is.

11 Q. Okay. So I'll represent that -- my
12 understanding is that Mr. Lai started in 2017. And
13 so did at any point your involve -- your interactions
14 increase?

15 A. No.

16 MR. RAHMAN: Vague.

17 THE WITNESS: No.

18 BY MS. BREKKE: Q. You said -- at any
19 point until his resignation in 2022?

20 A. Oh. Can you explain what you mean by
21 "our interactions?"

22 Q. Yeah. Absolutely.

23 So your -- I asked you, you know, when you
24 first -- when he first was hired, how often did you
25 start working with him? And I'm not quoting you

1 verbatim. So just the general idea. You said, I
2 didn't work with him too often, I think our schedules
3 were off, were different, they weren't at the same
4 time. I remember training him, and then not too much
5 after that.

6 And so my question is, at any point, did
7 you start working together more?

8 A. Yes. When I was promoted to junior fleet
9 manager because he -- during the timeframe, he was
10 moved to become fleet assistant, so he was working in
11 the fleet department separate from, like, the branch.

12 So when I got promoted to junior fleet
13 manager, I moved to the same department that he was
14 in.

15 Q. And where were you before you were moved?

16 A. The branch.

17 Q. And that was just the Westin Hotel
18 location? Or something different.

19 A. No. The South Airport Boulevard location
20 next to the Costco.

21 Q. And then when you became junior fleet
22 manager, where did you primarily work out of?

23 A. About 10 minutes down from that location,
24 which is on Linden Ave.

25 Q. When you were training Mr. Lai, when you

1 first started working with him, how would you
2 communicate with him?

3 When I ask that -- yeah, when I ask that,
4 I mean, like were you texting, were you on email,
5 were you phone call -- giving to the phone calls?
6 Like, what was the method of communication?

7 Does that make more sense?

8 A. When he was a fleet planner? Or when we
9 were in the fleet department.

10 Q. When you first met him.

11 A. When I first met him.

12 Q. So in 2017, yeah.

13 A. I don't remember needing to communicate
14 with him else, like, at all. Just when we were on
15 the same shift, then we would, like, in person be
16 talking to each other.

17 Q. Okay. Okay. And then when you were
18 junior fleet manager, let's say, we said that was
19 maybe around 2018 or something? Maybe a year after
20 you met him, something like that?

21 A. Yeah. Yes.

22 Q. Okay. And then in 2018, when you were
23 interacting with him more, how were you
24 communicating? And same -- same idea behind my
25 question. Email, text, phone calls?

1 A. Text and phone calls. That's when I was
2 -- we had to work together every day, so, like, if
3 there was text and phone calls, if there was like a
4 call out, or, yeah, any type of messages like that.

5 Q. Okay. Okay. And do you recall who else
6 was on your team -- or let me ask a more foundational
7 question. Was it just you and Marcus on the team at
8 that time?

9 A. Yes.

10 Q. And who was the first -- was anyone else
11 hired?

12 A. I'm trying -- I'm not sure who came
13 first. I believe it was Sebrene, the fleet
14 assistant, and then Rudy came after Sebrene.

15 Q. And Rudy is Raldine Henry? Is that
16 correct?

17 THE REPORTER: I'm sorry, I didn't hear.

18 MS. BREKKE: And for the court reporter --
19 yeah, it's R-A-L-D-I-N-E. That's his first name.
20 And then last name Henry.

21 Q. So Sebrene was hired as fleet assistant,
22 and then Rudy.

23 How then long was it just you and Mr. Lai
24 working together, about?

25 A. I can't -- I can't remember. Like, maybe

1 six months? About six months?

2 Q. And you were working, scheduled the same
3 time?

4 A. Yes. The -- the hours of the office were
5 not that long since it was just me and him. So if
6 we're open, it's -- we're both there.

7 Q. Okay. So for approximately six months,
8 it was just the two of you?

9 A. Say -- because then I -- I believe when I
10 was promoted, there was -- it wasn't just me and him.
11 And I was promoted 2019. It's kind of hard to get
12 the time right.

13 Q. I understand. And so that was when you
14 were promoted to fleet manager; correct?

15 A. Yes. Because when I was promoted to
16 fleet manager, that's when we had a whole team. Like
17 I had another manager there with me, Martha. I
18 believe she was there when I was promoted. So...

19 Q. Okay. Just so I get this right, we --
20 you started as a rental sales agent -- just 'cause
21 I'm going to walk through the positions -- rental
22 sales agent around June 2015.

23 How long were you laid off for?

24 A. I don't know. Less than a month.

25 Q. Okay. So you have a quick turnaround,

1 rental sales agent back under corporate until about
2 2015. Excuse me, November 2015. Then you became a
3 fleet planner six months to a year after the rental
4 sales agent?

5 MR. RAHMAN: I need to go off the record
6 briefly.

7 MS. BREKKE: Okay, we can go off at 9:04.
8 (Recess taken.)

9 MS. BREKKE: We're back on the record at
10 9:30 a.m.

11 Q. So we were just walking through your
12 positions that you've had at Sixt, and then we're
13 walking through, kind of, your job duties and
14 responsibilities. Let's just do a little recap.

15 Rental sales agent, June 2015, a brief
16 month break or so.

17 THE REPORTER: Can you slow down a little
18 bit? I'm having trouble understanding.

19 MS. BREKKE: Rental sales agent, there was
20 about a brief month break for you after you were laid
21 off, the company was switched from a franchise to
22 corporate.

23 You continued as a rental sales agent six
24 months to a year. Then you became a fleet planner.
25 You were also about a year in that position, or

1 estimation was maybe 2016, something around that.

2 Then you were promoted to senior fleet
3 planner. You were in that position about a year.
4 Then you got a promotion to junior fleet manager.
5 Another year in that position. Promoted to fleet
6 manager. You held that position the longest, around
7 2019, 2020 to 2025.

8 And then you recently were promoted again
9 to senior fleet manager.

10 Did I get that right?

11 A. Yes.

12 Q. Great. And when were you promoted just
13 recently?

14 A. April? Or March. March.

15 Q. My understanding that you were on medical
16 leave for a period of time this year, too?

17 A. Yes.

18 Q. Okay. And when did you get back?

19 A. August. August 4th.

20 Q. Okay. All right. So let's dig into --
21 oh, something else I wanted to ask you.

22 Were you involved in hiring Mr. Lai?

23 A. No.

24 Q. Were you involved in promoting him from
25 that position of fleet assistant to fleet planner?

1 MR. RAHMAN: Hold on. Lacks foundation.
2 Misstates prior testimony.

3 Go ahead.

4 THE WITNESS: It was a -- it was from
5 fleet planner to fleet assistant.

6 MS. BREKKE: I'm sorry.

7 THE WITNESS: But, no, I wasn't a part of
8 that.

9 BY MS. BREKKE: And then when -- got it.

10 Q. Okay. So at any point in your
11 employment, did you, at -- with Sixt -- so the past
12 11 years, have you used your personal phone number to
13 communicate with employees?

14 A. Yes.

15 Q. And did you also have a work phone?

16 A. Yes.

17 Q. Have you had the same work number the
18 whole time?

19 A. For the work phone, yes.

20 Q. And is that the (650) 822-3393 number?

21 A. Yes.

22 Q. And the personal phone (650) 270-0326?

23 A. Yes.

24 Q. Okay. So now let's go through rental
25 sales agent. Let's start when you were at corporate,

1 so we can ignore the franchise period.

2 Who did you report to?

3 A. 2015? You said when I started?

4 Q. Yes.

5 A. I don't remember the names of the
6 managers at that time.

7 Q. Did you have one manager or two or three
8 or four? I don't know.

9 A. Maybe one that I would report to.

10 Q. And you don't remember that person?

11 A. No.

12 Q. Did you have any direct reports?

13 A. No.

14 Q. Okay. And where -- did you have -- that
15 was when you worked at the desk, and that was at The
16 Westin Hotel; correct?

17 A. Yes.

18 Q. And that's where you primarily worked?

19 A. Yes.

20 Q. All right. And what were your job duties
21 in that role?

22 A. I helped the customers get into their
23 cars as in, like, getting cars for customers, not
24 physically getting them into cars. Adding on
25 insurance if they wanted to purchase it. Upgrading.

1 Yeah.

2 Q. Okay. And was that -- that's different
3 from the fleet department. Correct?

4 A. Yes.

5 Q. What department is the rental sales agent
6 under?

7 A. I call it the branch. That's usually how
8 people refer to it as -- there's the branch or
9 operations and fleet.

10 Q. Got it. Branch operations, in your mind,
11 equates to the rental sales agent --

12 A. Yes.

13 Q. -- position. And then whatever else is
14 in that department; correct?

15 A. Yes.

16 Q. Okay. And had you worked with Michelle
17 Hernandez at that point?

18 A. No. She came after maybe around 20 --
19 this is when -- she came when I was a senior fleet
20 manager. So around that time. No. She came when I
21 was promoted -- when I was a junior fleet manager.
22 Sorry.

23 Q. That's okay.

24 And I think the estimation there is around
25 2018. Okay.

1 So fleet planner. About six months to a
2 year later, you became a fleet planner. And we're
3 going to run through these same questions here.

4 Who did you report to?

5 A. Andrew Burks.

6 Q. B-U-R-K-S?

7 A. B-U-R -- yes.

8 Q. And what was his title?

9 A. General manager.

10 Q. At SF0?

11 A. Yes.

12 Q. Okay. Did you have any direct reports in
13 that position?

14 A. No.

15 Q. Okay. And where did you primarily work
16 out of?

17 A. The South Airport Boulevard location.
18 The branch.

19 Q. So you were now in the fleet department?

20 A. No.

21 Q. Fleet planner is not in the fleet
22 department?

23 A. No.

24 Q. Okay. Tell me about the fleet planner
25 position.

1 A. Fleet planner is the person who plans the
2 cars out for customers, making sure we have the right
3 cars available.

4 Q. So you were in the same department then?

5 A. Yes.

6 Q. Okay. Any other way you can describe
7 that position; your job duties? Sorry.

8 A. Well, that's mostly -- you're just --
9 you're planning the fleet. Planning the fleet for
10 the customers.

11 Q. And what did that require? I'm still
12 learning the industry. So explain it in -- you know,
13 help me understand.

14 MR. RAHMAN: Just, you know, brief
15 objection. I think it's a bit overbroad and vague.

16 But go ahead.

17 THE WITNESS: What do you require?
18 Computer skills.

19 MS. BREKKE: No. No.

20 THE WITNESS: Sorry.

21 MS. BREKKE: That's not what I meant.

22 Madam Court Reporter, will you read back
23 my question?

24 (Record read.)

25 BY MS. BREKKE: So let me make the

1 question a little clearer. I didn't mean, like, what
2 skills are required. Just what did that position
3 require of you. What was the day like for you in
4 that position?

5 Does that make more sense?

6 A. Yeah. It's really straightforward. It's
7 just planning. So you just look at what we have, see
8 what customers are coming in, make sure they have the
9 car. If you're low on some cars, find out where we
10 can get the cars. So, yeah.

11 Q. Okay. Okay. That's helpful.

12 Then you became a senior fleet planner --
13 oh, I'm sorry. Were you working in any other
14 location other than this South Airport Boulevard
15 location?

16 A. No.

17 Q. And did you work with -- did you have any
18 other colleagues? Or is it just you?

19 A. I was the only fleet planner for a while.
20 Yeah. The people I worked with was, like, the other
21 positions, like, the people who check in cars or the
22 people at the counter who rent out the cars.

23 Q. And when you said "the people that rent
24 out the" -- so the rental sales agents and then the
25 customers?

1 A. Then the check-in agents. So the Sixt
2 staff that checks in the cars when the customers are
3 done renting the cars. And then the people at the
4 counter who rent the cars out to the customer.

5 Q. Got it. Okay. This is helpful. Thank
6 you.

7 Then you were promoted to senior fleet
8 planner. And who did you report to?

9 A. Same. Andrew.

10 Q. So did he promote you into that position?

11 A. Yes.

12 Q. Did you have any reports --

13 MR. RAHMAN: Sorry. Belatedly, may call
14 for speculation.

15 But go ahead.

16 BY MS. BREKKE: Q. Did you have any
17 direct reports in that position?

18 A. No.

19 Q. Were you still the only fleet planner in
20 San Francisco at that point?

21 A. It was for a good while. I was the first
22 fleet planner, so that's why there was no other ones.
23 And we were trying to get situated, because that was
24 a new location. So it was awhile before more started
25 coming in.

1 Q. And who was the first employee? Who was
2 the first other planner hired?

3 A. I'm starting to, like, remember. I think
4 -- I think it was Marcus. Marcus might have been one
5 of the first ones that came on, because I can't
6 remember any other ones.

7 Q. I get that. Like once you start talking,
8 things start coming back and memories are jogged. So
9 that's part of what we're trying here is like help
10 you try to recall things.

11 Okay. So first manag -- so first person
12 hired, but he was hired when you were a senior fleet
13 planner; correct?

14 A. Yes.

15 Q. And perhaps you filled that position of
16 fleet planner that you had just promoted out of?

17 A. The positions that --

18 MR. RAHMAN: May call for speculation.

19 THE REPORTER: I'm sorry?

20 THE WITNESS: The position stayed the
21 same.

22 MR. RAHMAN: Sorry. May call for
23 speculation.

24 Go ahead.

25 THE WITNESS: The positions required the

1 same thing, so he wouldn't be, like, filling my
2 position, but just like an add-on. Yeah.

3 BY MS. BREKKE: Q. Got it. But you were
4 technically above him as senior?

5 A. I don't consider above him. I just
6 consider it as I have more skills than him, which
7 gave me that senior role.

8 Q. And that's the position you trained him
9 for; correct?

10 A. I trained him for the fleet planner role,
11 yes.

12 Q. Right. Okay. Okay. And in that
13 position, what were your -- was it the same job
14 duties; is that a kind of what you were saying?

15 A. Yes.

16 Q. Any increased scope or responsibility as
17 senior fleet planner?

18 A. My manager was trying to get me to get
19 more responsibilities in, like, helping him out with,
20 like -- I don't know how to explain it the right way.
21 But, like, I did have more things to do, but it was
22 still similar to the planning. It just got kind of
23 had more information on the back end of things.

24 Q. Like, can you give me an example of that?

25 A. Like, he would teach me how to control

1 the rates for the customers. So, like, if we're low
2 on a certain car, he taught me how to raise the rates
3 so that we don't overbook.

4 Q. Got it. Okay. And in that role, where
5 were you working out of?

6 A. Same. South Airport Boulevard at the
7 branch.

8 Q. Okay. And you worked with Mr. Lai there,
9 as well. Correct?

10 A. Yes.

11 Q. Then you were promoted again to junior
12 fleet manager?

13 A. Yes.

14 Q. So my understanding is, and correct me if
15 I'm wrong -- actually, let me just ask you this:
16 When you were senior fleet planner, and Mr. Lai was
17 fleet planner -- I'm new to this profession so I'm
18 going to maybe sometimes butcher this, but I'm going
19 to try my best -- how -- did you already testify how
20 long you worked together at the South Airport
21 Boulevard location? What I mean by that, I mean,
22 like, months.

23 So did you work at that location together
24 for four months, a year together? Because I know you
25 were in that position for about a year.

1 A. Um, during that --

2 MR. RAHMAN: Asked and answered.

3 But go ahead.

4 MS. BREKKE: Yeah. This was at six
5 months. Sorry.

6 Q. You said about six months; is that right?

7 A. Yes, because he was moved out from that.

8 Q. Okay. Got it. We're good.

9 Okay. And then we have the senior fleet
10 manager position, so same questions there. Who did
11 you report to?

12 A. Andrew.

13 Q. And Mr. Lai did not report to you for
14 that period of time that you overlapped when you were
15 senior fleet manager; correct?

16 A. Senior fleet planner?

17 Q. Senior fleet planner. Yes.

18 A. No, he did not report to me.

19 Q. Okay. So then you were in the junior
20 fleet manager position, you report to Andrew Burks.

21 Did you have any direct reports at that
22 point?

23 A. That's when Marcus began.

24 Q. Did you have any other direct reports?

25 A. No.

1 Q. At any point that you held that position?

2 A. Yes, Sebrene. And then Raldine.

3 THE REPORTER: Raldine?

4 THE WITNESS: Raldine Henry. A-R-A --
5 R-A-L-D-I-N-E. Raldine.

6 BY MS. BREKKE: Q. And anyone else?

7 A. After Raldine, it was, I believe, Shy.
8 That's when Shy came in.

9 THE REPORTER: S-H-Y?

10 THE WITNESS: Yes.

11 MS. BREKKE: She's the plaintiff in this
12 case. We'll probably be referring to her as Shy or
13 Ms. Buksh.

14 THE REPORTER: Thank you.

15 MS. BREKKE: You're welcome.

16 Q. And that was when you moved over to
17 Linden; is that correct?

18 A. Yes.

19 MS. BREKKE: And for the court reporter,
20 that's L-I-N-D-E-N.

21 THE REPORTER: Thank you.

22 MS. BREKKE: You're welcome.

23 Q. And had you worked -- were you familiar
24 with Linden at all?

25 A. Yes. That's where all of our

1 out-of-service vehicles went when I was a fleet
2 planner. So that's where we'd send the cars.

3 Q. Okay. And as junior fleet -- the junior
4 manager position, then you were now in the fleet
5 department; correct?

6 A. Yes.

7 Q. First time in the fleet department?

8 A. Yes.

9 Q. Okay. And so tell me a little bit about
10 your role as the junior fleet manager.

11 A. The junior fleet manager is in charge of,
12 like, all the vehicles that are out at service, any
13 vehicles that are -- like new vehicles coming in and
14 vehicles that we are no longer going to use that we,
15 like, sell or send out. Sending the cars out to
16 wherever they need to go to get serviced. So like
17 whether that would be a dealer, a mechanic or a body
18 shop. So, yeah. That's about...

19 Q. And did you know any -- like, was there a
20 bit of a learning curve from going from junior fleet
21 planner to senior fleet manager?

22 A. Yes. Big.

23 Q. There was a learning curve?

24 A. Yes.

25 Q. And what sort of training did you get for

1 that position?

2 A. Not much. They kind of just threw me in
3 and said -- they said that all you needed was to know
4 how to organize, and if you can organize, then you'll
5 be fine.

6 So I started, and then I decided to get to
7 know all the vendors and -- yeah, I just catch on.

8 Q. Did you find that to be true; that the
9 only thing you only needed was organization?

10 A. Now that I look at it, yes. Yeah.

11 Q. And who told you that?

12 A. Can't remember who told me.

13 Q. And did you report to Andrew Burks the
14 entire time that you were the junior fleet manager?

15 A. Yes.

16 Q. And you moved over to the Linden
17 location. And did you exclusively work out of
18 Linden? Or did you also go to the branch?

19 A. I work out of Linden, but I would visit
20 the branch sometimes to see what cars they had there
21 and what needed to come back.

22 Q. So how much time, if you had to do a
23 percentage, how much time -- how much of your time
24 was spent at Linden versus the branch?

25 A. In the beginning, it was around 50/50.

1 And then, as I caught on more to everything, it was
2 -- I had started visiting the branch less. So
3 probably maybe around 25 percent at the branch.

4 Q. Why did it drop?

5 A. Because I'm -- I would say, like, in the
6 manager role, so I don't need to be doing those
7 visits. I have fleet assistants to help with that.
8 Also a better communication with the branch where I
9 don't need to physically visit, I can just check with
10 them over at Teams messaging and not waste time
11 going.

12 Q. And this was the first time you had
13 direct reports. Was that a learning curve for you,
14 too?

15 A. Yes.

16 Q. What made it a learning curve?

17 A. Because it was the first time. One
18 report. Fortunately, I only had one, so it wasn't
19 too hard. I was able to, like, get going smoothly.
20 It was also a little bit of a learning curve because
21 he had to train me on kind of what the whole
22 department did. He as in Marcus. Marcus had to
23 teach me kind of what was going on. So that kind of
24 threw everything a little weird.

25 Q. Did you rely on him?

1 MR. RAHMAN: Vague and ambiguous.

2 Go ahead.

3 THE WITNESS: Not -- not rely on him, but
4 I -- I had a lot of questions for -- there was other
5 managers that I could ask, as well, for help from,
6 like, other locations.

7 BY MS. BREKKE: Q. What other managers
8 did you ask for help?

9 A. We had a manager named Vinh, who was in
10 charge of San Jose and, like, kind of the Bay Area,
11 but he spent most of his day in San Jose. He was the
12 one who was supposed to train me, but since he was
13 mostly in San Jose, Marcus was there for, like,
14 quick, quick questions. But I could always reach out
15 to Vinh if I needed help.

16 Q. What is Vinh's last name; do you know?

17 A. Lu, L-I-U? Or L-H-U? I'm not sure of
18 the spelling. It's V-I-N-H. V-I-N-H space L-U.

19 BY MS. BREKKE: Q. All right. But the
20 only person at the Linden location that had knowledge
21 of your position was Mr. Lai; is that correct?

22 MR. RAHMAN: Just going to object.
23 Misstates prior testimony.

24 But go ahead.

25 THE WITNESS: Vinh had knowledge of my --

1 BY MS. BREKKE: Q. I'm sorry, that was
2 at the Linden location, physically?

3 A. Oh, was anybody else physically there?

4 Q. Uh-huh, yeah.

5 A. No. Vinh would stop by sometimes, but it
6 was mostly me and Marcus.

7 Q. So Marcus was there every day? That was
8 his main place --

9 A. Yes.

10 Q. -- that he worked; right?

11 How long do you think it took you to get
12 used to the position?

13 A. I'm still getting used -- I'm learning
14 new things. So I think the main thing, maybe about a
15 year.

16 Q. So over the course of that year, were
17 you, you know, going to Mr. Lai for questions, how to
18 do things, talking to Vinh?

19 A. There was other managers that I also
20 reached out to. 'Cause on the -- with the fleet
21 department we have, we had Andrew, which was on the
22 operations side, but the other way going up is a
23 whole nother set of managers. So there was Vinh, and
24 then above him was someone else, who was like our
25 regional, who was Jordan. He would also talk to me

1 daily and let me know what I need to do. Marcus was
2 more of the day-to-day questions.

3 Q. And what was Jordan's last name?

4 A. Jaussai, J-A-U-S-S-A-I? Maybe?

5 Sorry.

6 Q. That's okay. Okay. Okay.

7 Then we have the fleet manager position.

8 Oh, I have a question. Was Martha a
9 manager at Sixt when you were a junior fleet manager?

10 THE REPORTER: Did you say "was he
11 available"?

12 MS. BREKKE: A manager.

13 THE WITNESS: Yes.

14 BY MS. BREKKE: Q. So when did -- do you
15 know when Martha entered the picture?

16 A. No, I don't. I'm trying to, but I
17 can't --

18 Q. That's okay.

19 A. -- remember the time. I know she was
20 there -- she was there when I was promoted to fleet
21 manager. I believe. I think.

22 Q. Okay. Okay. And did you ever report to
23 Martha?

24 A. Yes.

25 Q. So at some point in your junior fleet

1 manager position, you went from reporting to Andrew
2 to reporting to Martha?

3 A. I went from reporting to Andrew to
4 Michelle. Michelle became the general manager when
5 Andrew left.

6 Q. Okay. And then when did you report to
7 Martha?

8 A. When she was hired, because she was hired
9 as my manager.

10 Q. Okay. So Andrew leaves, then you start
11 reporting to Michelle, who was higher range than
12 Martha?

13 A. Yes. Because Michelle is general
14 manager, so she is over fleet operations and the
15 fleet. She's both. And then when Martha comes in,
16 it sort of goes me, Martha, Michelle.

17 Q. Got it.

18 A. Yeah.

19 Q. Okay. So then you got the fleet manager
20 position.

21 I know Martha left at a certain point.
22 Did you take her position when she left? Or had you
23 already -- were you already promoted as fleet manager
24 prior to her leaving, to your recollection?

25 A. She was hired as a senior, I believe.

1 Q. Okay.

2 A. Yeah.

3 Q. So the position you have now?

4 A. Yes.

5 Q. Okay. So then in your fleet manager
6 position, same questions, who did you report to?

7 A. I reported to Martha and Michelle.

8 Q. Both of them?

9 A. Yes.

10 Q. Okay. And where did you primarily work
11 out of?

12 A. Same. Linden.

13 Q. And then -- and then going to the branch
14 when needed?

15 A. I hardly went to the branch then.

16 Q. Okay. What percentage would you say you
17 were at Linden versus the branch?

18 A. 90 percent.

19 Q. The vast majority?

20 A. Yeah.

21 Q. Okay. And direct reports in that
22 position?

23 A. Well, me, Marcus and Shy. During --

24 THE REPORTER: And who?

25 THE WITNESS: Shy.

1 BY MS. BREKKE: Q. Okay. That was until
2 2022, and then I imagine -- correct?

3 A. Uh-huh.

4 THE REPORTER: Make sure you answer "yes"
5 or "no."

6 THE WITNESS: Yes. Sorry.

7 BY MS. BREKKE: Q. And then after
8 Mr. Lai and Ms. Buksh were no longer with the company
9 in 2022, did anyone replace them?

10 A. Yes.

11 Q. And who replaced them?

12 A. The order, it might be off because I
13 don't --

14 Q. Sure.

15 A. -- remember the order. But we had maybe
16 -- I can't remember the name. Sean, Sky, deMarcus.

17 Q. DeMarcus?

18 A. Uh-huh. DeMarcus.

19 Right now, we have three new ones; so
20 Jason, Bree, Jessica. I think I might be missing
21 one.

22 Q. So until 2022, you had three direct
23 reports; correct?

24 A. Yes.

25 Q. Okay --

1 A. They were not only to me. It's just me
2 and Martha. So like we both are -- yeah.

3 Q. It was you and Martha, but Martha was
4 above you --

5 A. Yes.

6 Q. But they were still your direct reports,
7 and they also were her direct report? Is that what
8 --

9 A. Yes. Like I was focusing on body damages
10 at the time, so we separated the duties. So I
11 handled more of the body shop relations and writing
12 estimates on body shop cars, and Martha handled more
13 of the day to day for the fleet, which was managing
14 the assistants and deciding where they are going to
15 go for the day.

16 Q. Okay. And then when she left, you
17 handled both ends of that?

18 A. Yes.

19 Q. So the body damages and then the day to
20 day?

21 A. Yes.

22 Q. Got it. Okay. Let's see.

23 Any other questions for that position?

24 Oh, yeah. So for that position, you were
25 focusing on body damage -- okay, got it.

1 Any other things to add in terms of your
2 job duties in that position of fleet manager?

3 A. No.

4 Q. And do you still focus on both body
5 damages and then also the day to day -- strike that.
6 Until you became senior fleet manager, did you kind
7 of have that dual role that whole time after Martha
8 left?

9 A. No, because we've had senior managers
10 come in after Martha.

11 Q. Okay. After Martha, who was the senior
12 manager that came in?

13 A. I can't -- Budiyo came by to help a
14 lot. I don't know his position, but he was there. I
15 think he might have been in charge of San Jose and
16 San Francisco, but he worked mainly out of San
17 Francisco.

18 THE REPORTER: Can you spell his name?

19 THE WITNESS: And then -- Budiyo?

20 B-U-D-I-Y-O-N-O.

21 THE REPORTER: Thank you.

22 BY MS. BREKKE: Q. And did he come in to
23 help after Mr. Lai and Ms. Buksh left?

24 A. No. He was there during. He was -- he
25 was there when Martha was there. It's just that he

1 was San Jose and San Francisco. So when Martha left,
2 I believe that he started coming over more to help
3 out.

4 Q. Uh-huh. And how often was he there?

5 A. Maybe at least two days of the week.

6 Q. At Linden?

7 A. Yes.

8 Q. Did he have his own office?

9 A. He had his own space, yes. It's not like
10 a complete office, but he had his own space.

11 Q. Okay. When you were junior fleet manager
12 and started working out of Linden, did you have your
13 own office?

14 A. No.

15 Q. When you became fleet manager, did you
16 have your own office?

17 A. Yes.

18 Q. Okay --

19 A. No. No. It was after Martha left that I
20 took her office.

21 Q. And before that, where did you work
22 primarily?

23 A. There was a -- there was a room inside
24 that room was a small office. I was in the outer
25 part of that room with the fleet assistant.

1 Q. You were all together?

2 A. Our own desk in that space, yes.

3 Q. Okay. Okay. And then last position,
4 senior fleet manager. How have your duties changed
5 since your prior position?

6 A. As a senior?

7 Q. Uh-huh, yes.

8 A. Well, I was promoted, and then that's
9 when I went on leave, so I haven't really gotten to
10 do much of it. But basically it's dealing more of
11 like the cost of things. Trying to lower costs.
12 Finding vendors, and improving our -- the systems
13 that we have in place.

14 Q. Okay. And you've mentioned these direct
15 reports that you have; is that correct?

16 A. Right now?

17 Q. Yeah. Who are your direct reports right
18 now?

19 A. Jessica, Bree, Jason, Sky, Rudy, Raldine,
20 and Matthew.

21 Q. And where do you primarily work out of
22 now?

23 A. At Shaw Road.

24 Q. And it's my understanding that Linden
25 basically -- is -- that Shaw is the new Linden?

1 A. Yes.

2 Q. Okay. And do you go to the branch ever?

3 A. Yes.

4 Q. How often?

5 A. Mondays. So one day a week.

6 Q. Okay. And the entire time you were fleet
7 manager, you were 90 percent at Linden; is that
8 correct?

9 A. I was.

10 Q. Okay. Okay. So in any of the positions
11 that we have gone through, in addition to the duties
12 that you've already -- you know, you started having a
13 direct report -- you know, at some point you started
14 having direct reports, and as part of your job
15 duties, were you at all involved in investigating
16 employee complaints?

17 A. Out of the whole time I was a -- from
18 junior fleet manager to now?

19 Q. At any point.

20 A. Yep. At any point, yes.

21 Q. Okay. And when did that start?

22 A. As soon as I became a manager. So the
23 manager role includes that.

24 Q. And did you have to -- starting in 2018,
25 did you have to investigate employee complaints?

1 A. 2018, it was just me and Marcus, so there
2 were no complaints that I was aware of.

3 THE REPORTER: Did you say Martha or --

4 THE WITNESS: Marcus. Marcus.

5 THE REPORTER: Thank you.

6 BY MS. BREKKE: Q. What was the first
7 employee -- have you ever had to investigate an
8 employee complaint?

9 A. Yes, I have.

10 Q. Okay. And you don't have to tell me what
11 the employee complaint -- you don't have to tell me
12 who the employee was, but if you can tell me the type
13 of the complaint that was the first complaint you
14 investigated, that would be great.

15 A. The first complaint that I -- it was with
16 another fleet assistant. Not -- like being lazy.
17 Laziness.

18 Q. Someone complained about that fleet
19 assistant?

20 A. Yes.

21 Q. Was it involving anyone in this case? So
22 Mr. Lai -- yeah, Mr. Henry or Ms. Buksh?

23 A. Yes.

24 Q. And who complained about who?

25 A. I thought you said I don't have to --

1 Q. Well, it's about the people in this
2 matter, I thought it was people like, you know, that
3 --

4 A. I mean. Uh-huh.

5 Q. Go ahead.

6 A. It was with somebody -- it's with Marcus
7 and the fleet assistant who's no longer with us.

8 Q. Uh-huh.

9 A. Also Rudy. And that other fleet
10 assistant.

11 Q. So it sounds like Mr. Lai and Mr. Henry
12 complained about that same fleet assistant being
13 lazy; is that correct?

14 A. Yes. Yes.

15 Q. Okay. And that fleet assistant's not
16 Ms. Buksh?

17 A. Yeah.

18 Q. Okay. Okay. And so how did you
19 investigate that?

20 A. Um, it wasn't hard since I -- we all
21 worked in the same office, I can see. So it was -- I
22 mean, I can see what they were saying. So I created
23 something to separate the workload so that wouldn't
24 happen anymore.

25 Q. What do you mean by that?

1 A. I mean, it's hard to explain, because you
2 said that I don't need to say what they complained
3 about. But am I able to say what they complained
4 about?

5 Q. Sorry, I didn't want you to tell me -- I
6 don't need to know this fleet assistant's name that
7 Mr. Lai and Mr. Henry complained about. But I am
8 entitled to know if they complained about this person
9 being lazy, for example.

10 And so my question was, how did you
11 investigate that?

12 A. Okay. So I can see. Since they are in
13 my office, I can watch and see what's going on. So I
14 saw that she was kind of avoiding certain jobs that
15 required her to go outside. She didn't like to walk
16 much. So then I separated it where, whenever we get
17 something that was -- that required you to go outside
18 and move around, I would hand out the work evenly
19 myself. Before, they would go and grab, like, the
20 key from the bin and do the ones they wanted to, but
21 instead, now I hand it out.

22 Q. Got it. You got more involved in
23 disseminating tasks?

24 A. Yes.

25 Q. Okay. Got it.

1 And did you have to, like, write this
2 fleet assistant up at any point?

3 A. No.

4 Q. And why was there no -- like why -- what
5 made you decide to not issue any discipline?

6 A. Because I was able to handle it by
7 separating the workload.

8 Q. At any point -- and then did you inform
9 anyone else about this issue with this fleet
10 assistant?

11 A. Michelle was aware. We spoke often.

12 Q. And what did you know -- at what point
13 did you tell Michelle this issue arose?

14 A. I wouldn't say, like, right away. Like,
15 whenever we always would communicate, she would ask
16 about how things are going. So I would just tell
17 her, you know, feedback on what's happening. Yeah.
18 I don't know the exact time that I told her.

19 Q. But was the expectation for you to keep
20 Michelle informed --

21 A. Yes.

22 Q. -- at all times what was kind of going on
23 with your direct reports?

24 A. Yes. So she would ask, and I would tell
25 her.

1 Q. Would you tell her if she wouldn't ask?

2 A. If I needed to.

3 Q. What was that based on?

4 A. How severe it is.

5 Q. And what was severity based on for you?

6 A. If I can't handle it on my own.

7 Q. What did you consider to be things you
8 couldn't handle on your own?

9 A. Not -- that hasn't happened often. It
10 was always -- not always, but most times complaints
11 about somebody, oh, they are being lazy. That was
12 the complaint I heard most of the time. Other people
13 being lazy. But I can handle that on my own.

14 Q. And would you just verbally tell
15 Ms. Hernandez when that happened?

16 A. Uh-huh. But not -- not in a formal way.
17 It was more, like, oh, yeah, they are saying that
18 this person's being lazy. That's an example.

19 Q. Okay. And so how many -- that was the
20 main type of complaint that you received?

21 A. Most times, yes. About somebody not
22 doing what they need to do.

23 Q. Uh-hmm. And would you ever -- would you
24 ever document that type of complaint?

25 A. I did have, like, this thing that I would

1 write down what they would tell me. I also would
2 have, like, sheets that I would print out on, like,
3 how we're trying to improve the situation, go over
4 with each fleet assistant, you know, the process --
5 the progress on it.

6 Yeah. Different ways I would document it.

7 Q. You said I would -- you kind of vaguely
8 said I had a thing to write down what was said --

9 A. Oh, like a -- like notes. Like a way of
10 keeping notes.

11 Q. Uh-hmm.

12 A. Back then, I probably had, like, a file
13 where I wrote down everything that they would tell
14 me.

15 Q. And was that an electronic file?

16 A. Yes.

17 Q. And where is this elect -- where was this
18 electronic file?

19 A. It was saved on my computer.

20 Q. Okay. And that electronic file, was
21 there, like -- was it a folder?

22 A. A folder. Um, I think it's just like a
23 file on my desktop. Like a -- like a -- or like
24 notes. Like a notepad type of thing.

25 Q. Uh-hmm. And so from 2018 to 2022, were

1 you taking notes about what was going on in the
2 workplace?

3 A. The -- the way that I took notes changed
4 as new things, new ways to do it came up. So like
5 that was the beginning of it. I would have it on the
6 -- on a note file.

7 But now I have an Excel sheet where I keep
8 track of each fleet assistant on, like, a different
9 tab. So it's changed a bit.

10 Q. And when did that Excel sheet practice
11 start?

12 A. When I became a fleet manager. Maybe
13 2022, 2021?

14 Q. You became a fleet manager while
15 Ms. Buksh was working there; correct?

16 A. Yes.

17 Q. Okay.

18 THE REPORTER: Ms. Bucks did you say?

19 MS. BREKKE: Ms. Buksh, the plaintiff in
20 this case.

21 THE REPORTER: There's a lot of
22 similar-sounding names. So Sorry to interrupt.

23 MS. BREKKE: That's okay.

24 Q. So where are those initial notes before
25 you changed to the Excel system?

1 A. Gone. They are on the PC, so I don't
2 have that PC anymore.

3 Q. Did you transfer it anywhere?

4 A. No. Because it's -- it's -- it's not
5 needed after certain amount of times. We should only
6 keep, like -- like, it's not a system that I have
7 anymore, so I don't need stuff like that.

8 Q. Uh-huh.

9 A. Yeah.

10 Q. Right. But were there any notes about
11 Ms. Buksh?

12 A. No. I didn't have any.

13 Q. So at no point did you -- when you still
14 had this file system, you took no notes about her?

15 A. During that time, I wasn't on that notes
16 anymore. I believe it was moving towards that Excel
17 sheet. I don't have that file, so I can't say
18 exactly what was on it. But before, we used to keep
19 everything on our PCs, but since then, we
20 transitioned to having laptops since the computers
21 got affected around -- after COVID time, so I lost
22 everything on my PCs. So now I'm on, like, OneDrive
23 files.

24 Q. Okay. When you were still in this notes
25 system on the file, were there any notes on there

1 about Mr. Lai?

2 A. His complaints against the fleet
3 assistant that he said was being lazy.

4 Q. That was it?

5 A. That I can remember. And it also --
6 like, it contained, like, attendance issues. That's
7 just where I kind of kept track of what was going on.

8 Q. Uh-huh. Okay.

9 Okay. Any issues that -- so you're
10 talking to me about, you know, the thing you've
11 mainly had to investigate, right, is laziness,
12 perhaps; yeah?

13 A. Yes.

14 Q. And is that from the time you became a
15 manager kind of 'till now?

16 A. Is that still the main issue --

17 Q. Yeah.

18 A. -- that I'm dealing with? Yes.

19 Q. Okay. Okay. What other issues have come
20 up that you've had to investigate?

21 A. That's -- that's mostly it. It's just
22 people like personalities clashing. Like, oh, like
23 she's not doing this, she's being lazy, she doesn't
24 want to go outside.

25 That's the main thing I just have to hear

1 about.

2 Q. Okay. And at any point when you've done
3 these investigations, have you informed HR?

4 A. Yes.

5 Q. And how do you inform HR?

6 A. When the complaint comes in, and it's not
7 improving, and I want to move to the next step, and
8 we're issuing a write-up.

9 Q. That's when you involve HR?

10 A. Yes.

11 Q. Are you familiar with the HR-USA@sixt.com
12 email address?

13 A. Yeah. I think that's the HR email.

14 Q. Have you used that email address to
15 report anything to HR?

16 A. I believe that is the main one that I
17 use.

18 Q. Okay. Now, how did you learn how to
19 investigate? You know, you said this is the first --
20 at some point at Sixt, so it's the first time that
21 you've got direct reports, how did you know what to
22 do to investigate a complaint?

23 A. Well, I asked for help from the managers
24 that were around me.

25 So there was Michelle or Andrew. They can

1 help guide me on what I need to do.

2 Q. At any point, did Sixt ever give you any
3 training for how to investigate complaints?

4 A. I did have trainings. So I can't
5 remember exactly what's on the trainings I had during
6 that time, but I do have trainings I have to go
7 through.

8 Q. Do you recall any of the trainings
9 addressing how -- specifically how to investigate
10 complaints?

11 A. I can't remember if it did. It was --
12 it's like a bulk amount of training that I had to go
13 through. Goes over slips and falls. I'm not sure if
14 there was, like, one just for handling complaints.
15 But I believe each section kind of did. Like, if
16 this happens, how do you report it. It kind of goes
17 over it in each category.

18 Q. Uh-huh. That first time you got that
19 complaint about someone being lazy, that you said you
20 responded based on your own observations, and you
21 could see, okay, yeah, this fleet assistant, I agree,
22 this assistant is not -- you know, not doing her
23 part. Correct?

24 A. Yes.

25 Q. Have there -- after that point, when you

1 got another complaint of laziness, had there ever
2 been a point where you didn't observe the conduct as
3 well?

4 A. Well, I mean, from then to now, yes. But
5 during that time where I was getting complaints about
6 laziness with that fleet assistant, we were all in
7 the same office, so I could observe it. I was there.

8 Most complaints are -- we're all kind of
9 in that area. We had drivers that did all the
10 moving, so we were close.

11 Q. Got it. In the times that you couldn't
12 observe, you know, this reported laziness, how would
13 you investigate?

14 A. Well, when it comes to that, I didn't
15 need to -- I -- like, I observed it. So with those
16 complaints, I can see it.

17 Q. So any --

18 A. Is that --

19 Q. I'm sorry. Go ahead.

20 A. I'm sorry. I don't really understand.

21 Q. No problem. I'm glad you're asking.

22 So any time you'd gotten a complaint of
23 laziness, you observed it, and, therefore, could
24 corroborate; is that what you're saying?

25 A. During that time, yes.

1 Q. And when you say, "during that time,"
2 what exact time are you talking about?

3 A. I'm referring to the complaint about the
4 laziness that I -- that first complaint.

5 Q. Okay. I'm talking about, like, any
6 complaint of laziness; the many complaints of
7 laziness that you've gotten.

8 A. Uh-huh.

9 Q. Correct?

10 A. Yes.

11 Q. My question was, have you observed,
12 whomever is being complained of, each complaint
13 you've gotten?

14 A. I see.

15 So, like, I would ask around. I would ask
16 other fleet assistants if they'd seen the same thing.
17 But, again, usually the laziness complaints I can
18 also see myself. It's -- it's there for me to find
19 out on my own. Like, if I just go work with that
20 fleet assistant for the day, and I see their habits,
21 so I would try to go observe it myself.

22 Does that make sense, the way I'm
23 explaining it?

24 Q. Sure. You'd try to see it for yourself
25 is what --

1 A. Yes.

2 Q. -- you're say; correct?

3 A. Yes.

4 Q. So aside from kind of trying to observe
5 the conduct yourself -- well, strike that.

6 Your testimony is there's really no other
7 complaint you've gotten other than laziness, really,
8 or some sort of personalities clashing? At any
9 point.

10 A. I mean, it's -- I can't recall any other
11 ones. But the complaint about -- it's always about
12 what somebody else is not doing or them doing it
13 wrong all the time and others needing to fix it.
14 That's -- that's most of them.

15 Q. But as you sit here, there's no other
16 complaint that you can think of coming to mind other
17 than what you just said?

18 A. Nothing that is, like, that I needed to
19 -- I don't know how to explain. Nothing that is,
20 like, where I needed to do the write-up, like to move
21 on to the next step. Usually, if I hear a complaint,
22 we fix it, we work -- we -- I will come up with
23 something that can fix it, and then it'll fix on its
24 own, and it's kind of just move on.

25 Q. Okay. And what you had just said about

1 the write-up, what did you mean by that? I didn't
2 quite understand.

3 A. Like, if I needed to do a write-up about
4 anything, then -- I'm sorry, I'm getting -- I'm
5 getting lost on what's going on.

6 Q. Okay. It's okay.

7 A. Can you repeat what we're --

8 Q. Yeah. You had previous -- that's totally
9 fine.

10 Right before you had said something about,
11 like, when there's a write-up, then, you know, maybe
12 it's a different type of compl -- I don't know.
13 Anyway --

14 A. Oh, okay. I was -- I was trying to like
15 -- I did have to do write-ups, like, when it came to,
16 like, attendance, or anything like that. That's when
17 -- those were the other issues I had to deal with.

18 But from other fleet assistants, the
19 complaints were mostly about somebody being lazy.

20 Q. Got it. Okay. We're on the same page?

21 A. Yes.

22 Q. All right. Okay. Have you ever been
23 responsible for investigating harassment,
24 discrimination or retaliation?

25 A. Have I ever been? You mean, the one,

1 like right now, that we're going over?

2 Q. Right now, I mean, it could involve my
3 client, it could involve -- or it can involve
4 anything else -- any other time it came to that
5 happened?

6 A. The only time that I had to -- that I was
7 involved in that was with Shy.

8 Q. Okay. Okay. We'll get into that a
9 little bit later.

10 Okay. How many times have you informed HR
11 about an issue with one of your direct reports?

12 MR. RAHMAN: Vague and ambiguous and
13 overly broad.

14 But go ahead.

15 THE WITNESS: I can't count how many.

16 BY MS. BREKKE: Q. More than 50?

17 A. Oh, no. No more than 50. No, that's a
18 lot. Maybe 20 to 30? Maybe half of that. But this
19 is including, like, issues with just the assistant
20 and not other assistants together. Like, maybe --
21 like, attendance issues or -- mostly attendance
22 issues is where I had to reach out.

23 Q. And that's only when it hasn't improved
24 after you've said something?

25 A. No. We have a policy for -- so, like, if

1 it's at that point, we're now, like, for example, you
2 get to the three points, then I need to do the next
3 step, which is the write-up. And then if it happens
4 again, then it's another write-up.

5 Q. So does Sixt -- regarding attendance, you
6 said three points. Is there kind of like a -- can
7 you explain that to me?

8 A. The policy has changed. So right now, it
9 is three points, then you have to reach out to HR for
10 -- to do the verbal warning. And then since that
11 verbal, then the next three points, then you have to
12 reach out again to do the write-up. So like a formal
13 write-up. So it's every three points.

14 Q. How does one get a point?

15 A. Half a point is for being late. One
16 point is for calling out, and not having sick time or
17 doing it too soon to your shift start time. Leaving
18 early is a point if it wasn't excused.

19 Q. And when did that three-point system get
20 implemented?

21 A. I'm not sure when it started.

22 Q. Did it start when Ms. Buksh was still
23 working there?

24 A. I don't remember that being in effect
25 when she was there.

1 Q. So to the best of your recollection, the
2 three-point system started after she left?

3 A. Way after, yeah.

4 Q. Oh, okay. And so was there a certain
5 type of similar policy while she was there and not
6 2019-2022 period?

7 A. It wasn't a point policy. But I kind of
8 -- I kept track of it. There could have been points
9 in, like, at that time, but we never got to it.
10 Like, the attendance was never that bad to where I
11 got to those steps. It was usually just, like, I'd
12 notice it, then I'd speak to them about it, and then
13 it got better.

14 Q. And was there anyone monitoring their own
15 attendance?

16 MR. RAHMAN: Calls for speculation.

17 THE WITNESS: They can monitor their own
18 if they wanted to.

19 BY MS. BREKKE: Q. I'm sorry. Was there
20 anyone monitoring your --

21 (Cross-talk.)

22 THE WITNESS: Oh, mine? Yes.

23 MR. RAHMAN: Same objection.

24 THE WITNESS: Michelle is in charge of my
25 attendance at that time.

1 BY MS. BREKKE: Q. And when you say "at
2 that time" --

3 A. Or Martha.

4 Q. Michelle or Martha?

5 A. Yeah.

6 Q. Okay. After Martha left -- or strike
7 that.

8 Michelle, where did she mainly work out of
9 in the 2019 to 2022 period?

10 MR. RAHMAN: Same objection.

11 Go ahead.

12 THE WITNESS: Same -- where did I work
13 at? Linden.

14 BY MS. BREKKE: Q. I'm sor -- where did
15 Michelle work out of primarily?

16 A. Oh. The branch?

17 Q. Sorry, are you having a hard time hearing
18 me? Am I, like, whispering? How can I help?

19 A. No.

20 Q. It's okay? Okay.

21 Okay. All right.

22 THE REPORTER: I don't think she actually
23 answered the last question.

24 THE WITNESS: Oh. What question -- what
25 question are you referring to?

1 THE REPORTER: Can I just read it back to
2 make sure?

3 (Record read.)

4 THE REPORTER: So she never answered the
5 question.

6 THE WITNESS: The branch.

7 MS. BREKKE: The branch. I'm confused.
8 I think we can just move on, because it sounds like
9 what we were talking about was recorded.

10 Okay. We've been going about an hour.
11 So it's 10:30. We just took a long last break.
12 Shall we do five minutes right now? Would that be
13 helpful? Or do you want to keep going. Because
14 we'll do five minutes now, we can go to, you know,
15 10:40, we'll go until noon and take a lunch break.
16 Does that work?

17 MR. RAHMAN: If that works for everybody
18 else, that's fine with me.

19 THE WITNESS: That's fine with me.

20 MS. BREKKE: Sounds good.

21 Let's go off the record at 10:33 a.m.

22 (Recess taken.)

23 MS. BREKKE: We're going back on the
24 record at 10:42 a.m.

25 Q. Okay. So just to clean up a little bit,

1 get a little clarity on certain things, you moved
2 over to this Excel note-taking system at some point
3 because your computers got messed up in COVID;
4 correct?

5 A. That's not why. But I did have a -- I
6 just kept improving the way I kept my notes.

7 Q. Okay. So Excel system started in around
8 2020, 2021; correct? Is that what your testimony
9 was?

10 A. Yes.

11 Q. Okay. And what would you put on this
12 Excel sheet?

13 A. Anything that I might need to remember.
14 Like today, I noticed this. Today, I talked to
15 assistant about whatever. Their attendant. Or --
16 yeah. Just whatever I talked to them about that, I
17 want to keep track of.

18 Q. Okay. And did you take -- where is that
19 Excel sheet now?

20 A. I have one now for the things that I -- I
21 have under me right now.

22 Q. Okay. And then what happened to the
23 Excel sheet when Ms. Buksh, Mr. Lai, Mr. Henry were
24 your direct reports?

25 A. I don't know what happened to them. I

1 don't have it anymore. Probably because I have this
2 new --

3 THE REPORTER: I'm having trouble hearing
4 you.

5 THE WITNESS: Me?

6 THE REPORTER: Yeah.

7 THE WITNESS: Want me to talk louder?

8 THE REPORTER: Yes, please.

9 THE WITNESS: Oh. Yeah, I have one of my
10 fleet assistants now, but I don't know where the file
11 is for before.

12 MS. BREKKE: Okay. So help me understand
13 your process a little bit.

14 Q. So when you moved over to the Excel sheet
15 system --

16 A. Yes.

17 Q. -- you put different sheets for the fleet
18 assistants; so Ms. Buksh had her own sheet, and
19 Mr. Lai and Mr. Rudy and Mr. Henry had his own sheet?

20 A. I had one sheet --

21 MR. RAHMAN: Compound. May also lack
22 foundation.

23 But go ahead.

24 THE WITNESS: I have one sheet, and each
25 tab on that sheet is for each fleet assistant.

1 BY MS. BREKKE: Q. And then when someone
2 left or someone new came, what would you do -- how
3 would you edit the sheet? Or would you create a new
4 sheet?

5 A. I would -- well, since then, I have
6 created a new sheet. But I would delete the tab of
7 that person, add a new tab if a new person comes in.
8 The sheet that I have right now, I just recreated
9 this one, the newer one, just because I changed the
10 formatting and everything. And I am sharing the
11 sheet with Rudy, because he's now manager with me.
12 So I created a new one and sharing it with him.

13 Q. Okay. So do you recall how quickly after
14 -- so Ms. Buksh stopped working in the company in
15 March of 2022. How quickly did you delete her tab?

16 A. I would say right away. If somebody
17 leaves, I would get rid of it right away.

18 (Reporter clarification.)

19 BY MS. BREKKE: Q. Why not pass it to HR?

20 MR. RAHMAN: Argumentative as phrased.
21 May call for a narrative. Vague and ambiguous and
22 overly broad.

23 But go ahead.

24 THE WITNESS: If there was something that
25 was needed to be brought up to HR's attention, I

1 would have brought it up on email and noted it in the
2 file. It's like the file's kind just like a backup.
3 Like, I would say Today I emailed HR about this.
4 This is like that kind of tracking. It wasn't --
5 like if there was something that was really
6 important, I most likely have it in email, as well.

7 BY MS. BREKKE: Q. Okay. And so during
8 this 2019 -- sorry. Whenever you started this Excel
9 sheet system or -- how often were you updating it?

10 A. Whenever I needed to put something that
11 happened. So, like, it could be sometimes once a
12 week or not at all for two weeks. It depends on how
13 everything's going.

14 Q. And it sounds like it was related to
15 performance --

16 A. Yeah, mostly --

17 Q. -- issues?

18 A. -- performance, yes.

19 Q. So you did not -- so is it your best
20 testimony that you deleted the tab related to
21 Ms. Buksh quickly after she stopped working at the
22 company?

23 A. Yes.

24 Q. Is it your testimony -- and what about
25 Mr. Lai; did you ever delete his tab?

1 A. Yes.

2 Q. And how soon after he stopped working at
3 the company did you delete his tab?

4 A. I would say right when they -- when they
5 leave. The last day is on this day, then I get rid
6 of it the next day.

7 Q. Okay. Can you recall anything that was
8 on Ms. Buksh's tab?

9 A. I believe there was some attendance
10 issues. So I was keeping track of that there. She
11 wanted to switch to part time one time, I believe.
12 Those are the kinds of things that I would note in
13 there.

14 Yeah. That's main things.

15 Q. What about Mr. Lai's tab; do you recall
16 anything on his tab?

17 A. Same as in -- well, he didn't really have
18 attendance issues. But attendance issues or anything
19 that I -- most -- just -- all I can remember is
20 mostly just attendance issues and, like, performance.
21 Like how are they doing this task. Are they making a
22 mistake on this PO. Like, this order that they made,
23 did they put the wrong price.

24 Those are the kinds of things that would
25 be on that sheet.

1 Q. Did management know about your Excel
2 sheet system at all?

3 A. No.

4 MR. RAHMAN: May call for speculation.
5 If you know.

6 BY MS. BREKKE: Q. Did you ever inform
7 them of your Excel system?

8 A. No.

9 Q. Did management, to your knowledge, have
10 its own system for documenting issues with employees?

11 MR. RAHMAN: Same objection. Also vague
12 and ambiguous.

13 THE WITNESS: Not that I'm aware of.

14 BY MS. BREKKE: Q. You were never told
15 anything?

16 A. No.

17 MR. RAHMAN: Yeah, belatedly, same
18 objection as the last.

19 BY MS. BREKKE: Q. Okay. And so it
20 sounds like it was kind of your discretion, you know,
21 when you would delete your notes or this Excel sheet;
22 is that accurate?

23 A. Yes. This was all something that I just
24 made myself so that I could keep track myself, I
25 don't forget things.

1 Q. Okay. You've talked about taking over
2 Martha's office. Where was that office -- and prior
3 to that, correct me if I'm wrong, you all worked --
4 you know, you had your own desk; right? But you were
5 all together in this one area, building?

6 A. Yes.

7 Q. Okay. And where was this office that you
8 took over?

9 A. So it was at Linden. It's one big --
10 it's one building, like, one floor. In the corner of
11 that building was an area, and inside that area was
12 the office -- a closed office with a door. So I was
13 working in that outside area. Once Martha left, I
14 went into that office.

15 Q. Got it. And was that office like -- I'm
16 not good at estimations of size of rooms, but to the
17 extent you are, do you know how big that one-floor
18 office was?

19 A. Enough to fit a desk and two chairs.
20 Like somebody sitting in front of me, two chairs.
21 So...

22 Q. What about the whole office, like the
23 whole building?

24 A. I'd say my -- oh, the whole building
25 was --

1 Q. Yeah.

2 A. It was -- it was big. So we were in the
3 corner of that building. There was four of those,
4 you know, and a walkway in between. So four times of
5 what we had.

6 I don't know the actual measurements.

7 Q. When you said we have four of those, what
8 do you mean by that?

9 A. So we can fit your -- like, four quarters
10 of a rectangle. And then connecting those four
11 corners was like one hallway. So that connected to
12 each of those.

13 Q. Got it. So who was in -- so you -- the
14 fleet department was in one corner. Who were in the
15 other three?

16 A. They were empty. So one corner was the
17 fleet department, the other one was a break room,
18 another one was, like, storage, and then the other
19 one was, like, for the branch to use.

20 Q. Got it. Okay.

21 And so your office was like right within
22 where all the fleet -- other fleet assistants would
23 work; right?

24 A. Yes. Yes.

25 Q. And was your typical practice, like, I

1 mean, everyone has their own management style, but
2 would you typically leave your own door open when you
3 were working in your office?

4 A. Yes. My door was always open.

5 Q. And why is that?

6 A. I don't see the need to close it. I want
7 to be with them. I don't want them to feel like they
8 can't come in my office. I would close it, of
9 course, if somebody wanted to talk to me privately,
10 but most times it was open.

11 Q. And from your office, could you see the
12 other desks for your fleet assistants?

13 And I'm talking in the 2019-2022 period.
14 We can stick to that period.

15 A. Okay. I could see Rudy's desk from my
16 door.

17 Q. When you were sitting at your desk?

18 A. Yes.

19 Q. In your office?

20 Could you see the other desks?

21 A. Only Rudy's desk's from my door. I
22 didn't have a window or -- I guess, just the door.

23 Q. Could you hear conversations going on
24 outside of your office even if you couldn't see the
25 desks?

1 A. I could hear conversations, but also it's
2 -- it's like if I focus on listening, I can hear
3 conversations, but I can also -- it's also enclosed
4 to where it can be kind of blocked out.

5 Q. But if you listened, you could usually
6 hear?

7 A. Yes.

8 Q. Okay. Did you ever have, from any
9 employee at any point, have a complaint come to you
10 that you believe was harassing?

11 MR. RAHMAN: Vague and ambiguous as to
12 "complaint."

13 But go ahead.

14 THE WITNESS: Are we still speaking to
15 the 2022 --

16 BY MS. BREKKE: All the time.

17 A. Not that I -- not that's popping up right
18 away.

19 Q. And I know we -- forgive me if I already
20 asked you this, I'm sorry if I did.

21 Typically, you would inform HR -- well,
22 strike that.

23 Did I understand correctly that if a
24 complaint came to you, you would inform HR if it
25 didn't improve? Did I understand that correctly?

1 A. If --

2 MR. RAHMAN: I'm just going to object.

3 It misstates prior testimony.

4 But go ahead.

5 THE WITNESS: If I couldn't handle it on
6 my own and needed help, then I would ask other
7 managers. And if it became serious to the point
8 where we needed to take the next steps, then I would
9 include HR.

10 BY MS. BREKKE: Q. And was that Sixt's
11 policy?

12 A. I'm not sure.

13 Q. You're not sure when HR needs to get
14 involved?

15 A. I don't have, like, an exact rule
16 regarding it.

17 Q. And previously you had said most things
18 you could handle yourself; correct?

19 A. Yes, because they were mostly related to
20 just, like, people complaining about other people's
21 laziness, or -- anything that I felt like I would
22 need to include HR's complaints about another fleet
23 assistant, that's where I felt I needed to include
24 it. And that was mostly laziness, which I felt like
25 I could handle by myself.

1 Q. Sorry. But you said anything to include
2 HR on is when it's about another fleet assistant, and
3 that was the laziness complaint that you've been
4 talking about?

5 A. Yes. But I can handle on my own. So if
6 it got to the point where I can no longer handle it
7 on my own, where I feel like I need to take the next
8 step, that's when I would include HR.

9 Q. And that's when it wouldn't improve is
10 when you could no longer handle it?

11 A. Yes. Yes.

12 Q. Okay. I understand.

13 And that 20/30 number that you gave me of
14 the times that you've involved HR, that predominately
15 was about these laziness complaints that didn't get
16 better; is that accurate?

17 A. 20/30?

18 Q. Yeah. Earlier you said I've involved HR
19 approximately 20 to 30 times.

20 A. Oh. Those are mostly attendance issues.

21 Q. Okay. And in terms of, like -- just
22 going back a little bit, just to clean this up or
23 wrap this up -- I know you said one way you
24 investigate is you base it on your own observations;
25 correct?

1 A. One was.

2 Q. Uh-huh.

3 A. Yes. I'd also ask.

4 Q. And another way --

5 A. I'd also ask.

6 Q. Okay. And how often would you ask other
7 people?

8 A. How often? I would say whenever -- I
9 don't know. I can't give a how often. It -- it
10 depends on what the -- what I'm investigating. If
11 it's just between two people, I can look into it
12 myself and try to see and watch more closely with
13 them. I can ask management. I don't want to ask
14 other people that aren't involved.

15 So it all depends on what's going on.

16 Q. Was it usually your practice to ask other
17 people? So, like, let's say a complaint comes in, I
18 want to kind of understand what your practice is in
19 terms of when you get a complaint.

20 MR. RAHMAN: Incomplete hypothetical.
21 Calls for speculation. Lacks foundation.

22 Go ahead.

23 THE WITNESS: If somebody comes to me --
24 if somebody comes to me for a complaint, I will
25 listen to them and then see what the issue is. See

1 if I can see it myself. If not, then I'll ask if
2 there's anybody around who can also agree to it.

3 But whether or not somebody was there to
4 also see it, I still act on it. So like if somebody
5 brings up to me that somebody's being lazy, and I
6 don't have anybody else who can agree to that, I
7 still will find a way to fix it no matter what.

8 So like if one person brings it to me
9 that they see that this person is not taking or doing
10 their part of the work, then I still will find a way
11 to solve it. An example is passing out the work and
12 doing that for a couple days to see. And then when
13 I'm talking to that person again, seeing if they see
14 any improvement.

15 BY MS. BREKKE: Q. Saw any what?

16 A. Improvement.

17 Q. Got it. Okay.

18 So you'll talk to other people. You know,
19 look for witnesses, basically; right?

20 A. Uh-huh, yes.

21 Q. And so do you take, like, verbals -- do
22 you get written statements from these people?

23 A. I do if it's -- if it's that -- if it's
24 that serious, I do.

25 Q. What makes it serious?

1 A. If they are saying that this is like a --
2 like, real complaint, I'm complaining about this,
3 then they will write it to me like in an email. Most
4 times it will be them kind of like ranting. Like,
5 oh, yeah, this person's not helping me today. It was
6 like more of it brought up casually.

7 But if it was brought up in more a serious
8 matter, then I would ask for the written statement.
9 Like if it was an actual -- something that happened
10 that day that was an actual event, then I'll have
11 them write it out in a statement. But if it was
12 just, overall, this person's not doing their job and
13 it's -- yeah.

14 Q. How did you learn to -- like, where did
15 this practice, where did you learn it from?

16 A. The statements?

17 Q. Yes.

18 A. HR would ask me for written statements
19 sometimes. That's how I got into the habit of doing
20 it.

21 Q. Did you ever have a situation where
22 someone just gave you a verbal statement?

23 MR. RAHMAN: Overly broad.

24 THE WITNESS: You mean like a -- about --
25 like, about what?

1 BY MS. BREKKE: Q. So you're saying I'll
2 ask other people. You know, you're basically trying
3 to look for witnesses into a complaint; right?

4 A. Yes.

5 Q. And you said you'll talk to someone, and
6 then perhaps you'll have a conversation with someone,
7 and they'll tell you what happened.

8 Do you take notes of that conversation
9 typically?

10 MR. RAHMAN: Asked and answered.

11 THE WITNESS: I keep track on my -- the
12 sheets that I save at.

13 BY MS. BREKKE: Q. Okay. When you are
14 seeking witnesses, what types of questions do you
15 ask?

16 A. Have they seen that behavior.

17 Q. Is that it?

18 A. That's usually the start of it, yeah.
19 Yes. It will continue based off the question -- I
20 mean, the answers.

21 Q. Do you ask for -- do you ask if there are
22 any other concerns -- strike that.

23 Let's say someone complains to you about
24 something, and it sounds like it's mainly attendance
25 or laziness; correct?

1 A. Complaints usually about laziness, not
2 the attendance.

3 Q. I'm sorry, yeah. Complaints usually
4 about laziness.

5 When that person complains to you about
6 laziness, do you ask if they have any other concerns?

7 MR. RAHMAN: Incomplete hypothetical.
8 Calls for speculation. Lacks foundation.

9 Go ahead.

10 THE WITNESS: We usually talk about the
11 issue that was brought up.

12 BY MS. BREKKE: Q. Okay. When you've
13 been conducting investigations, and do you see them
14 as investigations? Is that, like, how you view them?

15 A. What -- well, what do you mean? What is
16 your definition of "investigation"?

17 Q. That's a good question.

18 What's your definition of "investigation"?

19 A. My definition of investigation is
20 somebody comes to me with a complaint, and I -- or is
21 venting about something, then I go and see if it is
22 true by gathering facts or like -- not statements,
23 but gathering, talking to people, walking closely to
24 them and seeing if I see it myself. Yeah.

25 Q. Okay. And do you believe that those

1 investigations that you're conducting need to be
2 thorough?

3 A. Yes. Of course.

4 Q. Do you believe that they need to be
5 prompt?

6 A. Prompt, as in quick?

7 Q. Yes.

8 A. Is that -- yes. Because things can
9 change if you're not quick about it.

10 Q. What do you mean "things can change"?

11 A. It can get worse. Somebody can feel that
12 you're not doing anything to help them if you're not
13 quick about it. They won't feel like you're serious.

14 Q. You -- just to back up a little bit, you
15 brought up someone casually venting to you. Correct?

16 Like you've had instances when an employee
17 comes up and is venting to you about something?

18 A. Yeah.

19 Q. Correct? Okay.

20 Is that enough for you, in your mind, to
21 start an investigation?

22 MR. RAHMAN: Incomplete hypothetical.
23 Calls for speculation. Lacks foundation. Assumes
24 facts not in evidence.

25 Go ahead.

1 THE WITNESS: Yes.

2 BY MS. BREKKE: Q. Okay. Do you believe
3 that these investigations that you conduct have to be
4 impartial?

5 A. Can you explain?

6 Q. Unbiased, neutral?

7 A. Yes.

8 Q. Okay. When you say that things should be
9 prompt, you agreed when I asked you that, what do you
10 consider to be quick; a quick time to investigate?

11 A. Less -- less than a week.

12 Q. And is that based on Sixt policy?

13 A. I don't know the policy for that. When I
14 say that, I don't know the timeframe of which that
15 they expect us to have it done.

16 Q. Okay. Previously you'd mentioned
17 trainings that you've received at Sixt. Do you
18 remember talking about that?

19 A. Yes.

20 Q. Okay. Do you recall receiving harassment
21 training from Sixt?

22 A. Yes.

23 Q. And discrimination training?

24 A. Yes.

25 Q. Okay. So you started back in 2015. So

1 do you recall when you first got harassment or
2 discrimination training?

3 A. It's a yearly thing.

4 Q. So --

5 A. So every year.

6 Q. Did you -- I'm sorry. Continue.

7 A. Every year. I don't -- I don't know from
8 which -- how soon I got it after my start date. I
9 believe when you start, that's the -- you kind of
10 have to go over it. But I know that every year, I
11 have been through it.

12 Q. So in 2015, you recall doing it when you
13 changed over to corporate?

14 A. I would say within the year of starting,
15 yes.

16 Q. Okay. How was the training administered
17 to you? Do you remember? Like, for example, was it
18 a video, was it a Powerpoint, was it -- how is it
19 administered to you?

20 A. Like an online course. It's, like,
21 interactive. You answer questions. I mean, they ask
22 me questions. Like quizzes.

23 Q. Have you ever heard of a company Kantola?

24 A. Yes. That's -- I believe that's one of
25 the trainings that people would do the trainings.

1 Q. Okay. Have you heard of CalChamber?

2 A. Yes.

3 MS. BREKKE: Okay. I'm going to show you
4 your training records. This is Exhibit 99.

5 (A document was marked as
6 Plaintiff's Exhibit 99.)

7 MR. RAHMAN: You're getting the chat,
8 please?

9 MS. BREKKE: I'm going to share my
10 screen, yeah.

11 Okay. So this type is really small. But
12 for the record, this is Exhibit 99, Bates number --
13 these documents get a little tricky, but Bates number
14 651 to 652.

15 Q. Ms. Dominguez, I will give you a second
16 to review this document, okay? Any document I show
17 you, you are entitled to review the whole thing.

18 MR. RAHMAN: Can we also get it in the
19 chat, please? Or emailed to us?

20 MS. BREKKE: Sure. I'll have to stop
21 sharing my screen, but I'll -- I don't want to do
22 that right now.

23 MR. RAHMAN: That's fine. That's fine.
24 I appreciate it.

25 MS. BREKKE: Tell me when I can scroll

1 down.

2 THE WITNESS: You can scroll.

3 MS. BREKKE: Okay. Am I going too
4 quickly?

5 THE WITNESS: No.

6 MS. BREKKE: Okay.

7 THE WITNESS: Okay.

8 By MS. BREKKE: You've read all of it?

9 A. Yes.

10 Q. Okay. On here, I believe -- my
11 understanding is that the first time on here that's
12 listed of sexual harassments training is 2020. We
13 can look up to make sure that's true.

14 Yeah. 2020, 2021.

15 Do you recall receiving the training
16 before that?

17 A. I just remember doing it once a year.

18 You mean, say, before 2020?

19 Q. Correct. Yeah.

20 A. Yes, but the trainings were, like, a
21 little different. Like, they -- they weren't the
22 same as a manager training. I think the manager ones
23 were, like, longer.

24 Q. Is there something on here that
25 represents the difference between a manager training

1 and a non manager training?

2 MR. RAHMAN: May call for speculation.

3 If you know.

4 BY MS. BREKKE: I just want to understand
5 what you just said.

6 A. That I don't really remember the older
7 ones. I remember the ones that I've done as a
8 manager, and they are really long. So...

9 Q. Uh-huh.

10 A. I can't remember before that year.

11 Q. You became a manager in 2018; right?

12 A. Yes. Yeah.

13 Q. Actually, I should have asked you this:
14 Does this document look familiar to you?

15 A. No.

16 Q. Okay. You've never seen this document
17 before?

18 A. No.

19 Q. Have you ever gotten an email about
20 trainings you haven't completed?

21 A. Yes, but they don't look like this.

22 Q. Okay. So the best of your knowledge,
23 you've taken harassment training throughout your
24 employment at Sixt; right?

25 A. Yes.

1 Q. As you think back -- I know you just
2 reviewed this, but as you think back about, you know,
3 all the trainings you've done, are they all reflected
4 on this document? You know, I know you probably have
5 gone through a lot, but is there anything on here
6 that you can see -- strike that.

7 Is there anything here that you know you
8 completed in terms of trainings that's not on this
9 list? And I can go to the next page, too.

10 A. Is this only for this timeframe?

11 Q. This is the entire timeframe of your
12 employment is my knowledge.

13 MR. RAHMAN: I am going to object.
14 Misstates the document.

15 MR. RAHMAN: Can you go to future dates?

16 MS. BREKKE: Right. Because we have some
17 stuff in 2015. So my understanding is that this
18 would be a comprehensive list of trainings you've
19 done.

20 Q. So I want to know if, like, you know,
21 there are trainings in 2015 that you did that was
22 more than DE_getyourbasics?

23 THE REPORTER: I'm sorry to interrupt, but
24 I've lost my screen.

25 (Off the record discussion.)

1 BY MS. BREKKE: Okay. So my question was,
2 my understanding is that this is a comprehensive list
3 of trainings that you've done, and so I'm wondering
4 if -- you know, I'm only seeing one training from
5 2015. And I'm wondering if there are more trainings
6 you did in 2015 that are not listed on here?

7 A. This is in order. Correct? That's it?
8 It goes in order from -- yeah. Okay.

9 MR. RAHMAN: Do you understand the
10 question?

11 THE WITNESS: I'm not -- I'm confused,
12 because the dates are all over the place. So I'm
13 trying to see what's missing.

14 MS. BREKKE: Sure.

15 THE WITNESS: Yeah. And I can't remember
16 if there were any other ones. Yeah. Because I don't
17 really know the exact names of all the trainings that
18 I was on. I don't know if it is on here, but I'm not
19 referring to the same thing. So this looks like --
20 sorry -- things that I have gone over.

21 MS. BREKKE: Uh-hmm. Okay. Let me just
22 ask you this directly.

23 Q. Was this the only training you took in
24 2015, the DE_getyourbasics?

25 A. I can't re -- I can't remember. That's

1 too far back.

2 Q. Okay. The harassment trainings that -- I
3 can share my screen if that would be helpful for
4 you -- but the harassing trainings --

5 (Reporter clarification.)

6 BY MS. BREKKE: -- that you've taken, what
7 do you recall from them?

8 A. Learning about what is considered as
9 harassment.

10 Q. Uh-huh. Go on.

11 A. That's it.

12 Q. And --

13 A. That's harassment.

14 Q. And what did the training tell you was
15 considered harassment?

16 A. They would play out different, like,
17 scenarios of, like, people -- like people talking,
18 and is this considered harassment. I then would
19 choose yes or no or why, and it will explain why it's
20 harassment and/or why it's not harassment.

21 Q. Okay. In any position or in every
22 position you've held at Sixt, were you aware of
23 Sixt's policies and procedures related to harassment
24 discrimination?

25 A. It's in our handbook that we have --

1 Q. Are you familiar -- I'm sorry. I'm
2 sorry. I interrupted. What did you just say?

3 A. That we have to review, if there's an
4 update, they send it out again. Review it.

5 Q. Are you familiar with Sixt policy related
6 to harassment?

7 A. Um, yes.

8 Q. Okay. Would you tell me -- tell me what
9 you know about Sixt's policy related to harassment?

10 A. Well, right now, the thing that keeps
11 coming into my head is just the trainings. It's,
12 like, overlapping. So...

13 Q. That's okay.

14 A. It's hard for me to separate. But I
15 can't -- I don't know the words.

16 Q. What do you mean by that?

17 A. Like, I don't know the exact words used
18 in the --

19 Q. Oh. You don't have to know the exact
20 words. I'm just trying to understand, like, what is
21 your understanding of Sixt's policies as it relates
22 to harassment.

23 A. Well, it's -- I can't -- I'm sorry, I
24 can't -- I don't know how to explain -- um, like say
25 what I think harassment is? Is that the question?

1 Q. I'm -- based on your trainings. Correct?

2 A. Yes. Yes.

3 Q. Sure, yeah. Tell me.

4 A. Yes.

5 Okay. So it's where one person is not
6 interested in -- well, this is for sexual harassment.
7 Where the person is not interested in the other
8 person, they don't want to be -- like, they don't
9 want to date them or go out with them, and then any
10 other type of harassment is like -- I can't -- I'm
11 just -- the sexual harassment was the only one coming
12 in my head right now. But so where the other person
13 is not interested in it, or it's like bothering them.

14 Q. Or bothering them?

15 A. Like the other -- yeah. One person's
16 bothering them with something they are not interested
17 in. Or where they say no, and it keeps going on.

18 Q. Does Sixt tolerate harassment?

19 A. Of course not.

20 Q. Is it your understanding that Sixt has a
21 zero-tolerance policy?

22 A. Yes.

23 Q. What about discrimination? What's your
24 understanding of Sixt's policy as it relates to
25 discrimination?

1 A. It's -- these are very serious things,
2 discrimination and harassment.

3 Q. Okay. And I believe you said the only
4 time you received a complaint of harassment was
5 related to my client? Is that -- no, sorry. You
6 didn't say that. I think you said it -- strike that.

7 If you were to receive a complaint of
8 harassment, how would you handle it?

9 MR. RAHMAN: Incomplete hypothetical.
10 Calls for speculation. Lacks foundation.

11 But go ahead.

12 THE WITNESS: For harassment, I would
13 reach out to HR right away. This is not something
14 that I would do an investigation on myself without
15 involving HR.

16 BY MS. BREKKE: Q. And was that
17 communicated to you by Sixt?

18 A. I don't recall it being communicated to
19 me. Just from I know how serious it is, it's not
20 something I want to take on by myself.

21 Q. So you were never told if there's a
22 complaint of harassment, involve HR?

23 A. In the trainings, I do remember them
24 saying you reach out to HR. Yeah.

25 Q. Okay. How would you be able to tell if

1 something was a complaint of harassment? How would
2 you know?

3 A. If somebody is saying that this is
4 bothering them, yeah, I mean -- or if I can see it
5 myself. If I see something that doesn't look like
6 it's -- like somebody's feeling uncomfortable, if I
7 hear from anybody else, yeah.

8 Q. Is there any -- like, you said the word
9 "bothering." Does someone need to use the word
10 "bothering" in order --

11 A. No.

12 Q. Okay. And how can you tell if something
13 is bothering someone?

14 A. Body language. The words that they use
15 when they are around that person. Yeah, that's it.
16 If I'm just, like, observing them, if they come to
17 me, of course, and tell me.

18 Q. My under -- to be best of your
19 recollection, you don't recall that ever happening;
20 right?

21 A. I don't recall what happened?

22 Q. Someone coming to you with a complaint of
23 harassment?

24 A. No.

25 Q. Have you observed harassment before?

1 A. No. Well, I mean, other than this --
2 this thing that we're talking about, no.

3 Q. And what did you -- what do you mean by
4 that?

5 A. Well, I wouldn't consider harassment what
6 I saw. But when, of course, the incident where
7 Marcus showed me the video, it did. And that's --
8 then I reported it.

9 But nothing other than that time.

10 Q. The video that he showed you, what was
11 it?

12 A. The video he showed me of him and -- he
13 came and told me that he did this trend, this video
14 that was trending with people, he did it to Shy, and
15 then I reported it.

16 Q. So the video was of him?

17 A. No, no. Not of him. It was the thing
18 that's going around. It was like a trend that was
19 going around.

20 Q. You said what you observed in that case
21 you wouldn't consider harassment; is that correct?

22 Or potential harassment?

23 A. I don't want to say the word it was
24 "harassment," because it was -- I didn't get anything
25 from Shy regarding it. I was just going off of what

1 he was telling me. So I didn't get to get the full,
2 like, scope of what happened. And it was just like
3 the beginning of the whole event, like, incident. So
4 I felt like harassment is something that is
5 reoccurring, not one time, but the first time that I
6 heard this.

7 And at that moment, they were friends, so
8 that's why I didn't see it as harassment. But it was
9 something that was inappropriate and shouldn't have
10 happened, which is why I reported it.

11 Q. Did I hear you correctly; did you say
12 harassment is something that's reoccurring?

13 A. I'm not saying that it's only
14 reoccurring --

15 Q. Okay.

16 A. -- but that is -- yeah. So, like, since
17 this was the beginning, and they were friends still,
18 that's why I don't want to say it was harassment
19 right away, but it was something that needed to be
20 reported.

21 Q. Just backing up a little bit, in -- do
22 you believe that a friend can harass another friend?

23 A. Yes.

24 MS. BREKKE: Okay. All right. Let's do a
25 couple -- this is Exhibit -- the one I did before was

1 99. Exhibit 50.

2 (A document was marked as
3 Plaintiff's Exhibit 50.)

4 MS. BREKKE: Give me one second. This
5 was previously in another deposition marked as
6 Exhibit 50. I'm putting it on my screen.

7 I'll represent to you, Ms. Dominguez,
8 that this is a Sixt employee handbook effective March
9 of 2012. For the record, this is a 28-page document
10 Bates number SIXT29 through SIXT56.

11 I'm happy to scroll through this, but I
12 can also just direct you to where I'm going to be
13 asking you questions at, okay?

14 Whichever do you prefer?

15 A. Let's go straight to it.

16 Q. Okay. Does this document look familiar
17 to you?

18 A. Yes.

19 Q. Okay. How often would you review the
20 employee handbook?

21 A. I mean, whenever I need assistance with
22 something, I review it. I go and search through it
23 and look for answers to things --

24 Q. And -- yeah, I'm sorry.

25 A. -- and whenever they ask us to review it

1 when there are exchanges. Yeah.

2 Q. Would you find that, over the course of
3 your time at Sixt, you would review the handbook
4 often?

5 A. When needed.

6 Q. Would you find that that was, like, an
7 often thing for the most part? Or pretty infrequent?

8 A. Not -- well, "often" is like what?
9 Monthly? No. Not every month.

10 But if a situation happens, then I go
11 refer to it.

12 Q. But it sounds like -- and correct me if
13 I'm wrong -- Ms. Dominguez, most of the situations
14 that would arise with you were related to laziness at
15 the time these issues came up; correct?

16 A. Yes. Not just necessarily needed to go
17 to the handbook for that.

18 Q. Okay. So top of page -- do you know if
19 this was the handbook that was in effect when you
20 started in 2015, when it went corporate?

21 MR. RAHMAN: May call for speculation.

22 THE WITNESS: I would -- I don't know. I
23 don't recall. But -- yeah.

24 MS. BREKKE: Okay. You know what? Maybe
25 I'll show you -- actually, no. We're just going to

1 do this one here.

2 Okay, at the top of page 3, we have title
3 page 631, we have this anti-harassment provision.

4 Q. Do you see that?

5 A. Yes.

6 Q. Okay. And that's the section I'm going
7 to be talking to you about, so I'll give you a second
8 to read it. Okay?

9 A. Okay.

10 Can you scroll down?

11 Okay. Is there more?

12 Q. Yeah. Okay. We can stop at this last
13 bullet point.

14 A. Okay.

15 Q. Okay. So is it your understanding here
16 that "The Company" refers to Sixt?

17 A. Yes.

18 Q. Okay. Is it your understanding that Sixt
19 is committed to providing a workplace free of
20 harassment?

21 A. Yes.

22 Q. Is it your understanding -- I know we
23 said this before, I'm just asking it again to set a
24 foundation -- is it your understanding that Sixt has
25 a zero-tolerance policy related to harassment?

1 A. Yes.

2 Q. And what is "zero tolerance"; what does a
3 zero-tolerance policy mean to you?

4 A. That in no way, shape or form should it
5 be allowed.

6 Q. I'm sorry. What was that?

7 A. In no way it should be allowed at all.
8 Not even a little bit.

9 Q. Okay. It says, "Abuse of dignity of
10 anyone, their ethnic, racist or sexist slurs with
11 other derogatory or objectionable conduct with
12 respect to employee behavior."

13 Do you see that?

14 A. Uh-huh, yes.

15 Q. What is a sexist slur to you?

16 A. Sexist? Saying a woman can't do her job
17 because she's a woman, I guess. Yeah. Calling women
18 weak.

19 Q. Anything else that you can think of?

20 A. Not -- not a specific example, but
21 something that's, like, against somebody being --
22 anything negative towards being a certain gender.

23 Q. Okay. Do you consider the word "bitch"
24 to be a sexist slur?

25 A. No. Anybody could be a bitch.

1 Q. Meaning like a man could be a bitch or a
2 woman could be a bitch; is that what you mean?

3 A. Any gender.

4 Q. And that's how it's not sexist to you; is
5 that right? Did I understand that correctly?

6 A. That's why it's not a sexist slur.

7 Q. Okay. Do you believe it's appropriate
8 for one employee to use the word -- for an employee
9 to use the word "bitch"?

10 A. At work? Or in their life?

11 Q. Yes. At work.

12 A. No, it's not appropriate.

13 Q. Why not?

14 A. Because it's a bad word. It's a cuss
15 word, and cuss words shouldn't be used, because it's
16 not professional.

17 Q. Sorry, will you speak up a tiny bit?
18 You're starting to get a little quieter, which
19 happens during the course of the day, so it's not a
20 "you" thing.

21 A. Sorry. Could you repeat the question?

22 Q. Sure. I think I just asked you why --

23 A. Oh, why is it not allowed?

24 Q. Why is it --

25 A. Why is it not appropriate? Oh, because

1 it's not professional.

2 Q. Would you shut it down if you heard it in
3 the workplace?

4 A. Yes. Any words that aren't professional
5 should be shut down, yes.

6 Q. And that's any curse word to you?

7 A. Yes. I put that in the group of curse
8 words.

9 Q. Do you use that word in the workplace?

10 A. No.

11 Q. When I say "the workplace," what does
12 that mean to you?

13 A. In the office.

14 Q. Like out and about? Is that how you're
15 interpreting it; in the office?

16 A. No, in the office. Any time I'm at
17 working in the office with other people, around
18 vendors.

19 Q. What about via text?

20 A. I believe that texts are private.

21 Q. What do you mean by that?

22 A. That it's between me and the person I'm
23 texting.

24 Q. I'm talking about -- like, my
25 understanding is you had previously said there's --

1 you communicate via text for work; right?

2 A. Yes.

3 Q. Okay.

4 A. Send texts, yeah.

5 Most of our communications during work is
6 on Teams messaging.

7 Q. Okay. But would you use your phones to
8 text the other fleet assistants?

9 A. Yeah. If they are not able to, like,
10 respond on Teams messaging, or if it was -- or if
11 they are at home and I need to talk to them.

12 Q. Okay. So you had previously -- or you
13 had just said that texts are private. So does that
14 -- I just want to kind of understand that a little
15 bit. Does that mean that, like, you can text
16 whatever you want and, you know, to a co-worker and
17 it shouldn't matter? Like help me understand. I
18 don't want to put towards in your mouth.

19 What did you mean by "texts are private"?

20 A. That if I'm texting somebody, and it's
21 like a conversation between me and them, and I see a
22 word I -- that isn't appropriate, I'm not saying it
23 out loud to where other people can hear.

24 So it's -- it's -- it's like if somebody
25 used a cuss word in a text, it's not where everybody

1 can hear it. So that's what I mean by it's private.
2 So if I use a word in a text, I'm not expecting
3 everyone to hear it.

4 Does that answer the question?

5 Q. I understand. I hear what you're saying.
6 I still want to understand it more.

7 So is it your position that, if it's on
8 text and not out loud -- strike that.

9 Is it your position that unless someone
10 can hear it, it's not inappropriate?

11 MR. RAHMAN: Misstates prior testimony.
12 Go ahead.

13 THE WITNESS: In a way, yes.

14 BY MS. BREKKE: Q. I'm talking about
15 co-workers, just to be clear. Right? You understand
16 that, too?

17 A. Yes.

18 Q. So do you con -- so, to you, something is
19 only inappropriate if it's kind of heard beyond the
20 two people having the conversation?

21 A. Well, in -- no. Yes and no. Like, when
22 it comes to bad words like that, like words that are
23 not professional, it's different when it's spoken out
24 loud, or if people can hear it versus being a
25 professional on texts between me and another person

1 is not as severe.

2 Q. And why is that?

3 A. You can -- why? Because nobody can hear
4 it. Or, like, I'm not -- I'm not saying it to
5 directly offend somebody. It's a -- texts are more
6 like a casual thing. So professionalism on texts is
7 not that common in a way. Like, we speak more casual
8 in texts than we would out loud around other people.

9 Q. So let's say no one else hears anything,
10 can be anything on text, no one else hears it. It's
11 just on texts. Is it your testimony that that's not
12 as inappropriate than is if you were to say it out
13 loud? Am I understanding your position correctly?

14 A. It depends on the relationship of the
15 people that are texting. So if it's me and somebody
16 who I don't talk to often, or like a vendor that
17 should not -- you should not talk to, you know,
18 vendors like that no matter what.

19 But if it's between me and somebody who
20 can talk casually to each other, then I don't see it
21 as that severe.

22 Q. What about when there's a reporting
23 dynamic?

24 MR. RAHMAN: Vague and ambiguous.

25 But go ahead.

1 THE WITNESS: Reporting dynamic?

2 MS. BREKKE: Yeah.

3 THE WITNESS: So are you saying somebody
4 who reports to me?

5 MS. BREKKE: Sure.

6 THE WITNESS: Yes and no. Depends on the
7 situation, what is being said during that time.
8 Yeah.

9 BY MS. BREKKE: Okay. Let me ask you
10 this: If you're using your phone to text, do you
11 believe Sixt's policies still apply?

12 A. It should still apply, yes.

13 Q. Is that irrespective of whether you
14 repeat or you say out loud what you've said in texts?

15 A. Can you explain?

16 Q. Yeah.

17 I think before what you were saying is,
18 you know, when you say things out loud, it's worse
19 than when you say it in text.

20 Correct?

21 A. It's worse, because it can offend
22 somebody, and others can hear it.

23 Q. Can conduct be offensive without another
24 person hearing it?

25 A. Depending on --

1 (Cross-talk.)

2 MR. RAHMAN: Still a philosophical
3 opinion on that.

4 But, yeah, go ahead.

5 THE WITNESS: Depending on the
6 conversation that you're having.

7 BY MS. BREKKE: Q. Okay. So this
8 started because we were talking about the word
9 "bitch"; right?

10 A. Yes.

11 Q. And you said when texts are private, if
12 you use the word "bitch" in texts, it's not as
13 offensive as when you say it out loud.

14 As a manager, do you believe that your
15 conduct -- do you believe in setting good conduct for
16 your subordinates; setting a good example?

17 A. Yes.

18 Q. Okay. I'm going to bring the policy back
19 up again, because I know we took a bit of a detour.
20 We're still on Exhibit 50. Scrolling down. Okay.

21 Where's the -- under this policy, can a
22 joke be harassing?

23 A. Yes.

24 MR. RAHMAN: Belatedly, incomplete
25 hypothetical.

1 BY MS. BREKKE: Q. And what is
2 harassment --

3 A. Jokes. The part about the jokes.

4 Q. The sexually-explicit jokes.

5 What, to you, would be a joke that's
6 harassing? Do you have an example of that?

7 A. A sexually type? Or not racial?

8 Q. Harassing based on sex, yeah.

9 A. Yes.

10 (Cross-talk.)

11 THE REPORTER: I'm sorry, I need the
12 question and answer.

13 MR. RAHMAN: You're asking her for a
14 sexually-explicit joke as an example?

15 BY MS. BREKKE: Q. Did you understand my
16 question, Ms. Dominguez?

17 A. Can you say it again?

18 Q. Sure.

19 I asked, can you think of -- do you have
20 -- can you think -- off the top of your brain, can
21 you think of an example?

22 A. Of a sexually explicit, harassing joke?
23 Is harassment, you're saying, as one that's -- I
24 can't --

25 Q. Yes.

1 A. -- think of one off the top of my head.

2 Q. Okay. Are comments of a sexual nature,
3 can those be a violation of the policy?

4 MR. RAHMAN: Incomplete hypothetical.
5 But go ahead.

6 THE WITNESS: A comment, I can think of
7 an example, is, like, somebody wearing a shirt, I
8 don't know, that shows something, and then somebody
9 saying about it, like, bringing attention to it and
10 making it sexual, I guess. So, like, oh, you're -- I
11 can see your boobs. I like your boobs. I don't
12 know. Like, something like that.

13 BY MS. BREKKE: Q. Okay. And I know you
14 couldn't think of a sexually-explicit joke, but what
15 is a sexually-explicit joke to you?

16 A. A joke that is something that somebody is
17 trying to say, and it makes another person laugh, but
18 it is sexual.

19 Q. I think we also have gestures, sexually
20 explicit. Here we have visual conduct, right? Other
21 type of harassment gestures.

22 What's a sexual --

23 A. Yes.

24 Q. -- what's a -- what's a sexual gesture to
25 you?

1 I'm sorry. It's this fourth bullet point,
2 "visual conduct, such as leering or making sexual
3 gestures."

4 So what is a sexual gesture to you?

5 MR. RAHMAN: Vague and ambiguous.

6 But go ahead.

7 Overly broad.

8 THE WITNESS: A sexual gesture can be,
9 like, somebody doing something with their hands, like
10 a sex motion, I guess. Somebody doing -- squeezing
11 hand movements toward somebody's chest. Something
12 like that.

13 MS. BREKKE: Okay. All right. Let's do
14 another exhibit. This is Exhibit 51.

15 (A document was marked as
16 Plaintiff's Exhibit 51.)

17 MR. RAHMAN: Counsel, before you go on to
18 the next exhibit, do you think we can take a break
19 around noon?

20 MS. BREKKE: That was the plan.

21 Okay, I'm keeping track of exhibits.
22 This is Exhibit 51.

23 For the record, Exhibit 51 Bates number
24 26 -- 258 to -- no, what is this.

25 Bates number 258 to 260.

1 I'll give you a second to review this,
2 Ms. Dominguez.

3 THE WITNESS: Is this the handbook still?
4 Or something else.

5 MS. BREKKE: This is a separate document
6 we were given.

7 THE WITNESS: Okay.

8 MS. BREKKE: I believe it's a separate
9 document. I don't -- maybe that's a question for
10 you. Is this part of the handbook? Or separate.

11 THE WITNESS: Is that the top?

12 MS. BREKKE: This is the top. Yeah.
13 This is the top.

14 THE WITNESS: Okay.

15 MS. BREKKE: Down --

16 THE WITNESS: Yes. Okay. Yes.

17 BY MS. BREKKE: Am I going too quickly?

18 A. No.

19 Q. Okay. You're a fast reader.

20 A. Okay.

21 Q. So this one is signed by Mr. Lai in 2017,
22 but I wanted to ask if this document looked familiar
23 to you?

24 A. It looks like it's off of the handbook.

25 Q. When you say that, what do you mean?

1 A. That this is a -- looks like the same
2 thing I was just reading.

3 Q. Okay. Have you signed -- do you believe
4 it's the same document?

5 A. Well, if it starts off like that, then
6 no. Because the handbook says Handbook at the top.
7 But I'm not sure what this one is.

8 Q. Okay. So have you -- do you know if
9 you've ever signed a document like this at any point
10 during your employment at Sixt?

11 A. I can't recall.

12 Q. Okay. Let's go to the first sentence.

13 "Sixt is committed to providing a work
14 environment that is free of unlawful harassment?"

15 Do you see that?

16 A. Yes.

17 Q. What does it mean to you for a company to
18 be committed to providing a workplace free of
19 harassment?

20 THE REPORTER: I'm sorry. Can you go a
21 little slower?

22 MS. BREKKE: I was just reading --

23 THE REPORTER: I know. When people read,
24 they go really fast.

25 THE WITNESS: That they want us to be

1 comfortable in our workplace and not have to worry
2 about the possibility of being harassed. And
3 committed to providing -- so doing what they need to
4 do to make sure that that is the case.

5 BY MS. BREKKE: Q. Okay. The next
6 sentence reads, "In furtherance of this commitment,
7 the company strictly prohibits all forms of unlawful
8 harassment, which includes harassment on the basis of
9 race, religion, color, sex, gender identity, and
10 expression, sexual orientation, and other protected
11 categories."

12 It says this word "strictly."

13 What does this word strictly mean to you;
14 "strictly prohibits"?

15 A. That they don't allow it. It's strict.
16 You can't do it.

17 Q. Why do you believe -- just your own
18 opinion -- why do you believe it's important to use
19 language like that, like "strictly"?

20 A. To enforce how important it is.

21 Q. Anything else?

22 A. No.

23 MS. BREKKE: Okay. We can go to the next
24 exhibit? Will be Exhibit 52.

25 ///

1 (A document was marked as
2 Plaintiff's Exhibit 52.)

3 MS. BREKKE: Give me one second.

4 Okay. This is Exhibit 52.

5 Q. You can see that; right?

6 A. Yes.

7 Q. For the record, Exhibit 52 is SIXT281
8 through 282. This is similarly signed by Mr. Lai.
9 This is also a document that we received. I'll give
10 you a document to review it. Okay?

11 THE WITNESS: Okay.

12 MS. BREKKE: You're such a fast reader.

13 THE WITNESS: It looks like a copy of
14 what I just read, the top one there.

15 MS. BREKKE: Okay.

16 THE WITNESS: Okay. Okay. Okay. Okay.

17 BY MS. BREKKE: Okay. So this, like I
18 said, is similarly signed by Mr. Lai. But does this
19 document look familiar to you?

20 A. It only looks familiar since it's the
21 same wording that was on the previous two, kind of
22 being repeated.

23 Q. Okay. Do you recall ever signing a
24 similar document?

25 A. I can't recall.

1 Q. Okay. Let's see. Under Sexual
2 Misconduct, first sentence, "Sexual misconduct is
3 unacceptable at Sixt and may violate the law."

4 What does "unacceptable" mean to you? As
5 used in this context.

6 A. Any sexual misconduct is -- the only
7 thing described by, it's unacceptable. Unacceptable
8 is unacceptable. Can't do it.

9 Q. You can't do it? Okay.

10 This next sentence that you read that
11 starts with, "Sexual misconduct can be
12 devastating" -- I'll just read it into the record.

13 "Sexual misconduct can be devastating to
14 the person who experiences it directly and can
15 adversely impact family, friends and the larger
16 community."

17 Do you agree with that sentence, just
18 personally?

19 A. Yes. Everybody has their own ways that
20 things affect them. So, yes.

21 Q. I think -- I think the sentence
22 specifically talking about sexual misconduct, though.
23 Yeah?

24 A. Sexual misconduct, yes.

25 Q. Okay. It talks about "Sexual misconduct

1 can be devastating." And in this context, what does
2 "devastation" mean to you?

3 MR. RAHMAN: Speculation. Lacks
4 foundation. Incomplete hypothetical.

5 THE WITNESS: It can bother you after the
6 fact. Leaves a mark on you.

7 BY MS. BREKKE: Q. Is it your
8 understanding that Sixt believes sexual misconduct
9 can have far-reaching consequences?

10 MR. RAHMAN: May call for speculation.

11 THE WITNESS: Yes, because they put it on
12 here.

13 BY MS. BREKKE: Q. Do you believe it's
14 important to include this type of language in the
15 policy?

16 A. I can see that, including it shows the
17 person reading it how unacceptable it is because of
18 what may happen.

19 Q. Anything else?

20 A. No.

21 MS. BREKKE: Okay.

22 All right. We can take our lunch break.

23 It is 12:03 p.m.

24 We are going off the record.

25 (Lunch recess.)

1 MS. BREKKE: We're going back on the
2 record.

3 It's 12:46 p.m.

4 Q. Do you, Ms. Dominguez, understand that
5 you're still under oath?

6 A. Yes.

7 Q. Okay. Any reason why you can't continue
8 to give your best and most accurate testimony today?

9 A. No.

10 Q. Okay. I hope you had a nice lunch break.

11 A. Thank you.

12 Q. I was just thinking about some of the
13 things we were just talking about.

14 So I know you said that when you first
15 started in that junior fleet manager position
16 that Mr. Lai would help you with the day to day, and
17 he would train you for the position.

18 Did you find it difficult for -- to have
19 -- for your direct -- did you find it difficult to be
20 trained by someone who was reporting to you?

21 MR. RAHMAN: I'm just going to object
22 that that misstates prior testimony.

23 But go ahead.

24 THE WITNESS: Like, a little. But I did
25 have other managers that I could reach out to if I

1 needed to.

2 BY MS. BREKKE: Q. When you say "a
3 little," will you -- will you explain that, why it
4 was a little?

5 A. It's hard to be a lead to somebody who's
6 training you. So it kind of -- it starts it off --
7 it starts off the levels bad already. Versus if I
8 came in and I already knew what I was doing, and I
9 was the one he was looking up to for help, that would
10 help enforce it more.

11 Q. Like there was -- there was a power
12 imbalance, perhaps?

13 A. Yeah. Yes.

14 Q. Okay. Going back to the Sixt Excel
15 spreadsheet that you had, was that a Google Excel
16 spreadsheet? Or was it a Microsoft Office Excel
17 spreadsheet?

18 A. Now, it is a Microsoft. But before, it
19 was -- it was just the notes on my PC. Like a saved
20 file on my PC.

21 Q. Like a Microsoft Office -- like a
22 Microsoft Word?

23 A. No. Like a -- there's like a Notes app.
24 I'm not sure who was in charge of the app. But...

25 Q. And when you moved over to this Excel

1 spreadsheet, was it Microsoft Office Excel? Or was
2 it Google Excel?

3 A. Microsoft.

4 Q. So it's always been Microsoft Excel?

5 A. Yeah, that's because that's -- that's our
6 main program.

7 Q. Okay. Do you know -- are you familiar
8 with Google Excel? It's just like a -- have you seen
9 it or used it at all?

10 A. Not -- I've seen my kid's school use it,
11 for, like, science stuff, but I've never used it
12 myself.

13 Q. Okay. I'd like a little bit of
14 clarification on just some of your processes, and
15 then we'll move on.

16 You were talking about the difference
17 between, you know, a venting session and a complaint.

18 Do you remember that?

19 A. Yeah.

20 Q. And I'd asked you -- I think it's -- I
21 don't remember exactly the question I asked you, but
22 something like, can a vent ever be grounds for an
23 investigation. Do you remember that?

24 A. Yes.

25 Q. Okay. How do you distinguish when a vent

1 is just a vent session and when a vent is a
2 legitimate complaint?

3 MR. RAHMAN: Object to the extent it
4 misstates prior testimony.

5 But go ahead.

6 THE WITNESS: A vent can happen while
7 we're doing other things, and the conversation starts
8 off as just casual conversation, and then it pops up
9 and goes away. It doesn't -- you don't focus on it
10 as much, and how much they go into it, I guess. Or
11 if it's just, like, combined with other things that
12 are in their mind at that time.

13 And complaint is, like, can I talk to
14 you? Like starting off with Can I talk to you? Or
15 wanting to close the door, or wanting it to be
16 private. Their -- just seeing how bothered they are
17 by the situation.

18 If it matches up with anybody else's.
19 Like, if anybody else was talking to me casually, and
20 they mention it, and then I hear it again in someone
21 else's casual conversation, now I have two people
22 bringing up the same thing, that's something that can
23 be looked into, because now two people are bothered
24 by this one thing.

25 Q. Can someone complain to you in front of

1 other people?

2 A. Yes.

3 MR. RAHMAN: Incomplete hypothetical.

4 But go ahead.

5 THE REPORTER: I didn't hear your

6 objection. Sorry.

7 MR. RAHMAN: Incomplete hypothetical.

8 BY MS. BREKKE: Q. Let's say someone was
9 just venting -- you know, you said people vent to
10 you.

11 So when somebody has vented to you, do
12 you note that on your Excel spreadsheet?

13 MR. RAHMAN: Same objection.

14 But go ahead.

15 THE WITNESS: Not if it's a something
16 word. Like if it's a venting about their car
17 breaking down, it's not something that I need to be
18 concerned with. But if it's venting about another
19 employee, I usually do write -- write it down.

20 I'll -- off of -- what I'm doing now, and
21 have been doing for these past few months on my new
22 sheet, I do write it down.

23 BY MS. BREKKE: Q. Before, did you?

24 A. I can't recall what I was doing before.

25 I just know that I did have something to write these

1 things down. I don't know exactly what was on it.

2 Like, what I wrote.

3 Q. You have no recollection of anything in
4 the past?

5 A. Not -- not specific things. It's just
6 like the overall, which was mostly the attendance.
7 Keeping track of their attendance. Or somebody not
8 -- or making a mistake on something. It was more of,
9 like, performance, how they are doing their job.

10 Q. What made you decide to start -- it
11 sounds like you're writing more down now.

12 Are you?

13 A. In a -- in a way, yes, because I make
14 different sections for things.

15 Q. What sections did you make?

16 A. Like, I have an Attendance section, like
17 a Training section, what I think I need to train them
18 more on. Like, there's different parts of the file
19 now. Before, it was just a simple, like, list.

20 Q. And why did you make that change now?

21 A. Growing as a manager, I guess. Always
22 wanting to improve the things that I'm doing.

23 Q. And forgive me if I asked you this.

24 At any point, have you -- I'm going to
25 talk about the first system you had, this Notes

1 system, right, where you're using the Notes app.

2 At any point did you share that Notes app
3 with anyone else at Sixt?

4 A. No.

5 Q. Okay. When you started this Excel
6 system --

7 A. Yes.

8 Q. -- minus -- minus Mr. Henry, is there
9 anyone else you shared your Excel notes with?

10 A. Before I went on leave, I shared it with
11 the managers that were going to take over while I was
12 out these past few months. That was the only time.

13 Usually, it's for my -- my personal, just
14 to keep track of everything.

15 Q. Okay. Okay. So you've been a manager
16 about -- you started in about 2018, junior fleet
17 manager.

18 What type of relationship do you try to
19 maintain with your direct reports?

20 A. I try to be a manager who they can feel
21 comfortable with. Support -- I try to be supportive
22 and positive. I try to motivate them to try harder
23 by also helping out with the tasks that are usually
24 for them. So if there's, like, a lot of things to do
25 that day, I try to get up and go out there and do it

1 with them instead of just staying in the office. So
2 I try to work closely with them.

3 Q. Sounds like at that last point, you want
4 to lead by example?

5 A. Yeah.

6 Q. As you've been a manager, has it been
7 important for you to have a good working relationship
8 with the people reporting to you?

9 A. Yes.

10 Q. And how do you define a good working
11 relationship?

12 A. Them being able to come to me whenever
13 they need something. Checking in with them. Again,
14 working side by side with them.

15 Sorry, I have to sneeze.

16 MS. BREKKE: That's okay.

17 Bless you.

18 THE WITNESS: Thank you.

19 THE REPORTER: Bless you.

20 THE WITNESS: Working side by side with
21 them, and I can tell by working with them how our
22 relationship is; you know, if they seem closed off or
23 if they work well with me.

24 BY MS. BREKKE: Q. What do you mean by
25 that last point?

1 A. You can tell when somebody is happy that
2 you're working with them, versus they'd rather be
3 just working alone. You can kind of tell the vibe.

4 Q. What things in your experience make a
5 work environment positive -- well, let me strike
6 that.

7 You said it's important to you to have a
8 good working relationship with people, but what do
9 you think makes a work environment good?

10 A. People wanting to come to work. I don't
11 know. I don't know how -- can you ask the question a
12 different way? I don't know how to put it in words
13 with that -- that question.

14 Q. So, yeah, you've been a manager for seven
15 years. And so you've naturally -- strike that.

16 Is your goal to have a positive work
17 environment?

18 A. That is one of my goals, yes.

19 Q. Okay. In your experience, are there
20 things that contribute to a positive work environment
21 since you've -- that you've found since you've been a
22 manager?

23 A. I can't think of a specific thing right
24 now. Kind of like overall, just the flow of things,
25 and hitting goals, seeing if other people are --

1 sorry, one second. My Google is on.

2 So hitting goals, and having the fleet
3 assistants also being happy about hitting goals.
4 Yeah, I'm trying to -- yeah.

5 Q. Okay. Are there certain values that you
6 believe are important as a manager like -- strike
7 that.

8 Are there certain values that you believe
9 are important for you to have as a manager?

10 MR. RAHMAN: Vague and ambiguous.

11 But go ahead.

12 THE WITNESS: I can't think of a specific
13 value right now, but, yes, there are things that --
14 that I feel like a good manager should have. Which
15 is -- an example is, like, being open with your team,
16 and mostly just trying to make everybody comfortable.
17 Yeah. I can't -- I can't think of any specific
18 things right now.

19 BY MS. BREKKE: Q. Is it important to
20 you to have a productive work environment?

21 A. Oh, yeah, of course.

22 MR. RAHMAN: Vague as to "productive."

23 But go ahead.

24 THE WITNESS: That goes to the point of,
25 like, hitting goals, and that's about being happy

1 about hitting goals. So that's another thing.

2 BY MS. BREKKE: Q. It's important to you
3 to have a respectful work environment?

4 A. Yeah.

5 Q. Is it important to you to have a work
6 environment that is where everyone's a team player?

7 MR. RAHMAN: Vague and ambiguous.

8 But go ahead.

9 THE WITNESS: Yes.

10 BY MS. BREKKE: Q. Is it important to
11 you to be neutral with your employees?

12 MR. RAHMAN: Same objection.

13 MS. BREKKE: Let me -- yeah, let me make
14 that clearer.

15 Q. Yeah, not having a favorite employee, for
16 example?

17 A. Yes. That goes to, like, with me wanting
18 everybody to feel comfortable, and coming to talk to
19 me and having a good relationship with each one
20 individually.

21 Q. What kind of relationship do you believe
22 is an appropriate one to -- for a manager to have
23 with his or her direct report?

24 MR. RAHMAN: Did you say "appropriate" or
25 "inappropriate"?

1 MS. BREKKE: I said "appropriate."

2 THE WITNESS: It really -- like, a
3 question -- I don't have, like, an answer for that.
4 Like, it's not -- it all depends. There's different
5 kinds. And it depends on what's happening and can't
6 just describe one kind.

7 BY MS. BREKKE: Q. What are the
8 different kinds of a relationship that a manager can
9 have with a direct report?

10 A. Well, like, it depends on the job, the
11 different titles, like what -- what -- how close the
12 manager is, if it's they work together in the same
13 office, if it's like a virtual thing. So if --

14 Q. Okay. Let me strike that. Let's make it
15 more -- sorry. Let's make it more personal to you.

16 A. Okay.

17 Q. What type of relationship do you believe
18 is appropriate for you to have with your direct
19 reports?

20 A. To be there when they need me to lead
21 them. Try and lead. Hold them accountable.

22 Yeah.

23 MR. RAHMAN: Vague.

24 THE WITNESS: That's all I can think of
25 right now.

1 MS. BREKKE: Okay. I'll take your
2 attorney's "vague."

3 Q. What type of relationship do you believe
4 is inappropriate to have with one of your direct
5 reports?

6 MR. RAHMAN: Just object to the wording
7 of "vague."

8 But go ahead.

9 MS. BREKKE: Object to the wording of
10 what?

11 MR. RAHMAN: Object to your saying that I
12 -- I was baiting the question.

13 MS. BREKKE: Okay. Okay.

14 It was -- go on, Ms. Dominguez.

15 MR. RAHMAN: The colloquy is not
16 necessary.

17 THE WITNESS: Can you repeat the
18 question?

19 MS. BREKKE: Sure.

20 Q. I said, what sort of relationship do you
21 believe is inappropriate to have with your direct
22 reports?

23 MR. RAHMAN: Vague, ambiguous and overly
24 broad.

25 THE WITNESS: A sexual relationship.

1 That's -- yeah, a sexual one.

2 BY MS. BREKKE: Q. Is that it?

3 A. The one big one I can think of right now,
4 yes, is sexual relationship.

5 Q. When you say "sexual relationship," what
6 do you mean by that?

7 A. Like a physical sexual relationship with
8 somebody. Dating them.

9 Q. Any other type of relationship that you
10 believe would be inappropriate to have with your
11 direct reports?

12 A. Do you have examples of -- do you mean
13 like a friendly relationship? A sexual relationship?
14 Is that the kind of relationship you're referring to?

15 Q. Can I --

16 A. There are many I can think of. I only
17 can think of a friendly relationship or a sexual
18 relationship. Those are like the two that are coming
19 up, so I don't -- I think a friendly relationship is
20 okay.

21 Q. Then let me ask a different question,
22 because I kind of get at your point.

23 Are there any types of inappropriate
24 dynamics that you can see between a manager and a
25 direct report? Did that make more sense? Like is

1 that less binary in your mind?

2 MR. RAHMAN: Vague and ambiguous.

3 But go ahead.

4 THE WITNESS: It goes to the same, like,
5 a sexual kind. If -- if a manager and one of their
6 employees having that kind of relationship
7 inappropriate, but I don't see anything else as being
8 inappropriate. I think it's okay to hang out with
9 your employees and be, like, friends, friendly with
10 them.

11 BY MS. BREKKE: Q. You just
12 distinguished between friends and friendly. Was that
13 on purpose?

14 MR. RAHMAN: Misstates prior testimony.
15 But go ahead.

16 THE WITNESS: Friends and friendly are
17 the same. I'm just trying to use the right word.
18 They mean the same to me.

19 BY MS. BREKKE: Q. With your direct
20 reports, is it important to you that your authority
21 is respected?

22 A. Yes.

23 Q. How can you tell that when you're -- like
24 -- I'll ask a foundational question.

25 Over the course of your career at Sixt,

1 have at any point you've felt that your direct
2 reports were respecting your authority?

3 A. Yes.

4 Q. And what is that? How can you tell that
5 your authority is being respected?

6 A. If I put into -- if I create something
7 that I want them to start following, that might not
8 be something they want to do, yet they still do it.
9 That shows that they respect my authority. If I need
10 to discipline in any way, and they are serious when
11 it comes to it, that's how it shows.

12 Q. If one of your employees was upset, you'd
13 want to check in on them; right?

14 MR. RAHMAN: Incomplete hypothetical.
15 Calls for speculation.

16 Go ahead.

17 THE WITNESS: Yes.

18 BY MS. BREKKE: Q. And you would observe
19 -- what would you observe -- strike that.

20 Kind of throughout today so far, you've
21 said you can tell sometimes when someone's upset. Is
22 that -- is that something -- do you recall that
23 testimony? Am I misstating you in any way?

24 A. Like, body language. You know, not
25 talking a lot. So, yeah, I can kind of sense it if

1 they are not, like, actually telling me.

2 Q. And those are also things that you look
3 out for as a manager?

4 A. Yes.

5 Q. Okay. So if one of your employees is
6 upset, you'd want to check in with them about it;
7 right?

8 A. Yes.

9 Q. If you see something that violates
10 policy, you'd want to act on it. Right? Or you
11 would act on it; right?

12 A. Yeah.

13 Q. Okay. Because the policies are there to
14 keep people safe. Do you agree with that?

15 A. Yeah.

16 Q. If you saw, for example -- this is a
17 hypothetical -- if you saw a fleet assistant speeding
18 down the street, is that something you'd report, in
19 the company car?

20 MR. RAHMAN: Incomplete hypothetical.

21 But go ahead.

22 THE WITNESS: Yes. Or talk to them about
23 it, yes.

24 BY MS. BREKKE: Q. Would you involve HR?

25 A. Speeding, yes, because that's something

1 that is not allowed. So that is something you should
2 bring up if it's like an actual -- like I know for
3 sure that it was speeding and not somebody just said
4 that he was, or she, or he, or she was. So if it's
5 something that I saw, then, yes.

6 Q. If you saw someone speeding down the
7 street, you would involve HR; is that what you said?

8 A. Yes.

9 Q. Okay. And why is that?

10 A. Because that's a -- that violates the
11 something, that you're not supposed to -- it's, like,
12 we're a car rental company, speeding is breaking the
13 law. You can't speed. So...

14 Q. Does Sixt have an attendance policy?

15 A. Yes. The one I mentioned about the
16 points? That.

17 Q. Okay. But you don't always involve HR
18 with attendance stuff; right?

19 A. I do, once it gets to the point -- so
20 once they get to certain points, that's when I have
21 to go to the next step.

22 Q. And involve them?

23 A. Yes.

24 Q. Okay. And do you have support from your
25 managers at Sixt to cultivate -- excuse me -- a

1 positive work environment?

2 A. You're talking about overall do I have
3 support? Yes.

4 Q. Okay. So from 2019 to 2022, we've
5 established that you managed the fleet department. I
6 know that Martha Rengal (phonetic) was there at some
7 point; correct?

8 A. Yes.

9 Q. Okay. And Mr. Lai, Mr. Henry, Ms. Buksh
10 were your direct reports; correct?

11 A. Yes.

12 Q. And during that time period, we're going
13 to focus on that time period, 2019 to 2022, did you
14 manage anyone else?

15 MR. RAHMAN: Can I get the question one
16 more time, please?

17 BY MS. BREKKE: Q. Did you manage anyone
18 else?

19 A. Our drivers. We have drivers.

20 Q. Okay. And what drivers did you manage
21 during that 2019 to 2022 time period?

22 A. I can't remember the names of them, but
23 it was a subcontractor who would provide drivers for
24 us to move the cars. They switch out. It's not
25 always the same people.

1 Q. Okay. And they were a subcontractor?

2 A. Yes.

3 Q. And were you the driver's direct reports?

4 A. No.

5 Q. So when you say "managed the drivers,"
6 what were -- help me understand that.

7 A. So, like, I plan their -- or I -- me and
8 Martha would help plan where are they going to go for
9 the day. But that's pretty much the extent of it.
10 Just like the day-to-day things. Like, go drive
11 these three cars over, bring them back.

12 Q. Okay. And then when you were in this
13 junior fleet manager position, aside from Mr. Lai,
14 Mr. Rudy, Mr. Henry, Ms. Hernandez and Ms. Rangel, is
15 there anyone else that you worked with?

16 A. During the junior fleet? Or the --

17 Q. From 2019 to 2022.

18 A. Budiyo.

19 Q. Who else?

20 A. That's all I can think of right now.
21 Those -- those people and Budiyo.

22 Q. Okay. Let's look at what I think is your
23 position. And if it's not, forgive me, and we will
24 not spend too much time on it.

25 So this is Exhibit 85.

1 (A document was marked as
2 Plaintiff's Exhibit 85.)

3 MS. BREKKE: Share it on the screen.

4 For the record, Exhibit 85, this is Bates
5 number 704 to 705.

6 Ms. Dominguez, I'll give you a second to
7 review this.

8 Q. And my question for you is, is this your
9 position at any point?

10 A. Can you scroll down?

11 Q. Sure.

12 A. Yes. This looks like the -- yeah.

13 Q. This looks like it? It's a different --

14 A. Yes.

15 Q. -- job title. It's not a job title of
16 anything you've said to me so far. So what position
17 is this comparable to?

18 A. This is the fleet manager position. They
19 changed the name to repair manager, but it originally
20 was fleet manager.

21 Q. And when did they -- do you know when
22 they changed the name from fleet manager to repair
23 manager?

24 A. Within the last two years.

25 Q. Okay. The fleet manager equals repair

1 manager. Is this a current position that you have
2 now?

3 A. I'm a senior repair manager, and I do
4 report to the general manager.

5 Q. So any sort of fleet has now been moved
6 to repair?

7 A. Yes.

8 Q. Like the language? Okay.

9 So this was your role between 2019, 2020
10 to 2021. Okay.

11 So let's go through this.

12 "You'll play a vital role in driving,
13 operational and excellent customer satisfaction."

14 Was this a key component of your role?
15 Like, do you believe that your role was vital in
16 driving operational excellence and customer
17 satisfaction?

18 A. I believe it was keeping our cars safe
19 for our customers to drive. That's excellent
20 customer satisfaction, I guess. But I don't have to
21 talk to any customers or work with the customers.

22 Q. It says you'll "have significant
23 responsibilities and authority to make impactful
24 decisions regarding vehicle repairs and maintenance."

25 Did you feel that was true in your

1 position?

2 A. Yes.

3 Q. "To ensure that your fleet remains in
4 optimal condition." Correct? You believe that --

5 A. Yes.

6 Q. -- that was reflected in your position?

7 So that was a duty of your position, I
8 should say.

9 "And by demonstrating some judgment,
10 honesty, integrity, you'll lead your team effectively
11 and collaborate with vendors to optimize costs and
12 enhance service quality."

13 Do you believe that was a core component
14 of your job responsibilities?

15 A. Yes.

16 Q. Okay. So high quality, excellence,
17 customer satisfaction; yes? Amongst other things, of
18 course.

19 A. Yes.

20 Q. Okay. "Essential duties. Fleet
21 maintenance oversight, oversee and monitor
22 subordinates and vendors to ensure the fleet is
23 maintained according to established standards."

24 Okay. So like you kind of explained
25 before, you really have this dual role of overseeing

1 direct reports, overseeing the cars. Like, it sounds
2 like this was a big -- like it was a -- and tell me
3 if you disagree with this -- but you had a lot of
4 responsibilities; right?

5 A. Yes.

6 Q. Okay. You also had to manage vendors.
7 How many vendors would you typically work with? Or
8 what types of vendors did you have? Maybe that's a
9 better question to ask.

10 What type of vendors did you typically
11 have?

12 A. Body shop, dealers, mechanics.

13 Q. Here's Number 4, "Reporting,
14 communication and provide regular reports and create
15 presentations as required to communicate the fleet
16 performance and operational updates."

17 Did you ever pro -- did you provide
18 regular reports and create presentations? Was that
19 ever required of you?

20 A. Not creating a presentation, but we do
21 have weekly reports that we have to fill out.

22 Q. So what were those weekly reports?

23 A. Updates on car, on how they are -- what's
24 the status of them, how long it's going to take for
25 it to come back.

1 Q. How big was your fleet? How big was the
2 fleet at SF0? Like, do you know how many cars there
3 were from --

4 MR. RAHMAN: Overly broad.

5 BY MS. BREKKE: -- 20 -- from 2019 to
6 2022?

7 MR. RAHMAN: Still overly broad.

8 But go ahead.

9 THE WITNESS: I can't remember.

10 BY MS. BREKKE: Q. Is it like hundreds
11 of cars?

12 A. Like thousands.

13 Q. Thousands of cars at SF0?

14 A. It could be 1,000 to 3,000. I'm not sure
15 of the number for that year.

16 Q. That's a lot of cars.

17 A. It changes. It changes. I think right
18 now we're at two, at 2,000 right now.

19 Q. Okay. Okay. Let's see. So when you
20 took the position, you -- it's -- it asks for two
21 years of management experience. You were -- this was
22 the first time -- wait. This is when you were a
23 fleet manager.

24 Okay. So you took this position after the
25 junior fleet manager position, so you had a year of

1 managing experience. Correct?

2 A. The repair manager position? Or fleet
3 manager position?

4 (Unintelligible.)

5 THE REPORTER: I'm sorry, can I have the
6 question?

7 BY MS. BREKKE: Q. My understanding is
8 it's like fleet manager and repair manager are the
9 same?

10 A. Yes. But the repair manager position
11 came to affect, like, within the past two years. So
12 I don't know if that was the same experience needed
13 for the fleet manager position, because it might be
14 different.

15 So -- what was the question? That I only
16 had a year?

17 Q. Well, no. That was helpful. I'm -- so
18 this does not reflect -- I guess I'm trying to
19 distinguish and differentiate the difference
20 between -- like, what you think the differences were
21 between your fleet manager position and what was
22 required of you in the repair manager position. I
23 thought that they were effectively the same?

24 A. Yes, we do -- we do the same thing. But
25 what I'm saying is that I don't know if the

1 requirements are the same. I don't know what's
2 standard before versus this one, if they changed
3 anything.

4 But, yeah, I was only a junior fleet
5 manager for a year before I was promoted to the
6 regular fleet manager role.

7 Q. Got it. Okay. I'm mainly focused on --
8 your fleet is very large. I didn't realize we were
9 talking 1,000, 2,000, 3,000 cars. That's kind of the
10 range of possibility with cars?

11 A. Yeah.

12 Q. Okay. Okay. Okay. So were you
13 responsible for setting the schedules of your direct
14 reports as a junior fleet manager?

15 A. As a junior fleet, yes.

16 Q. Hold on. Hold on. Let me -- let me --
17 let's do the time period instead.

18 From 2019 to 2022, were you responsible
19 for setting the schedules of your direct reports?

20 A. Yes. If I had managers with me -- like
21 if Martha was with me, it was -- it wasn't me.
22 There's times where I didn't do it.

23 Q. When Martha was no longer there, were you
24 responsible for setting the schedules?

25 A. Yes.

1 Q. Okay. Would anyone else contribute --
2 like, when Martha wasn't there, was it just you
3 determining schedule?

4 A. I did have to let Michelle know of the
5 scheduling.

6 Q. For what purpose; do you know?

7 A. The fleet assistants would work at the
8 airport sometimes. So since I'm not there, she's
9 over there so she can just be in the loop on what's
10 going on.

11 Q. Be what?

12 A. So she can be in the loop of what's going
13 on. Who's supposed to be there.

14 Q. Okay. And when Martha was there, would
15 she consult with you on setting employee schedule?

16 A. No. It didn't really need to be involved
17 since I was supposed to focus on body damages.

18 Q. That's right. Okay.

19 What would you take into consideration
20 when you were setting employee schedules?

21 A. I would ask them -- there's, like,
22 options of the shifts, and they would kind of tell me
23 what they liked to work, and then I would put that
24 in. I mean, our hours weren't that long, so it
25 wasn't that many shifts to choose from. It was,

1 like, an early or a late.

2 So -- and then their off days is -- I
3 would -- I think we were closed maybe on Saturdays?
4 I'm not -- I can't remember what days we were open.
5 But the hours were limited at that time.

6 Q. Do you remember what the hours were?

7 A. No. It ranged from around maybe 6:00
8 a.m. to 5:00 p.m.

9 Q. And how did you communicate schedule?
10 Like how -- how did you communicate schedules to your
11 direct reports in that 2018 to 2022 period?

12 A. On an Excel sheet. I can't remember if I
13 would print it out, but we do have, like, files where
14 we can all see it. Like, if I share with them, they
15 can all go to it and see it.

16 Q. Was it -- did every week, was there,
17 like, a different --

18 A. It was always the same.

19 Q. Everyone had the same shifts kind of
20 every week?

21 A. Yeah.

22 Q. Oh, interesting. Okay.

23 For example, Mr. Lai had the X o'clock
24 shift to X o'clock shift, Ms. Buksh -- I'm just
25 making this up -- 9 o'clock to 2 o'clock -- I don't

1 know how it worked --

2 A. Yeah.

3 Q. -- but it would be the same every week?

4 A. Yes.

5 Q. Okay. And I know that you said that you
6 were at Linden, you know, starting as the junior
7 fleet manager about 90 percent of the time, you know,
8 at -- yeah.

9 What about your fleet assistants in 2019
10 to 2022? Were they mainly at Linden?

11 A. In the beginning, when it was just
12 Marcus, yes, because our drivers moved everything.
13 As we got more fleet assistants, we didn't need the
14 drivers as much, so the fleet assistants were doing
15 the moving of the cars. And there was shifts that
16 took place, like, at the airport where they would
17 stay at the airport and handle that service from
18 there. But it all changes throughout that time.

19 Q. And why would there be a shift at the
20 airport?

21 A. Because out of service comes from the
22 airport. So if we have a fleet assistant there, they
23 can prevent the cars from being brought over if they
24 didn't need to. They can fix it while it's there.

25 Q. What kind of a fix could occur at the

1 airport?

2 A. Like adding air to a tire, lights popping
3 up on the dash, reviewing the body damage to see if
4 it needed to be fixed or not.

5 Q. Got it.

6 And when you said there were shifts at the
7 airport, was that weekly shifts? Like there was,
8 like, one shift at the airport a week or --

9 A. Like, daily.

10 Q. It was a daily shift at the airport?

11 A. Yeah.

12 Q. And that person would stay at the airport
13 all day?

14 A. As needed. So they'd come into Linden
15 and then head to airport and look over the out of
16 service over there. And then if it slows down and
17 there's nothing to do, then they can come back and
18 start working on the stuff that we have at Linden.

19 Q. And would there be an equal -- would you
20 determine who went to the airport?

21 A. So we kind of had, like, this person was
22 the airport person.

23 Q. And who was the airport person?

24 A. So Rudy would usually stay back with me,
25 because he was better at, like, computer work. And I

1 believe Marcus and Shy would be the airport, the more
2 hands on.

3 Q. And who determined that?

4 A. Me.

5 Q. And for that approximately three-year
6 period, did Marcus and Shy remain in that kind of
7 airport shift?

8 A. Yeah. They were both the ones who did
9 the airport shift. I just remember Rudy was always
10 with me, because he -- he was better at the office.

11 When Shy and Marcus had more, like,
12 knowledge with repairs to a car, so they were doing
13 the more hands-on things.

14 Q. Right. So that means that, like, they
15 would go to the airport or be at the airport, check a
16 car out, and then it sounds like their position kind
17 of required them to do some of their own repairs that
18 they could do?

19 A. Not an actual repair, but understanding
20 what the issue is. So, like, they are -- like, if
21 the car sounds a certain way, they might understand
22 why it's sounding like that, versus Rudy, who's not
23 really a car guy.

24 Q. That's funny to not be a car guy and work
25 at a car rental company; isn't it?

1 A. Yeah.

2 Q. I feel like you would just have to have a
3 -- I mean, like -- I don't know.

4 But having a knowledge of cars is helpful
5 in this position; correct?

6 A. Yes. Yeah.

7 Q. Okay. Okay. And when you said you'd
8 determined -- I know you said Rudy kind of liked --
9 was better at computer stuff.

10 Did you ever talk to
11 Ms. Buksh about what position, you know, she wanted?

12 A. Yeah. I always talked to them, too,
13 like, what you prefer. Which she also -- I remember
14 her -- she's very, like -- I think her dad's a
15 mechanic, so she like -- she has a lot of background
16 knowledge in cars. So she liked to work with the
17 cars.

18 So when we would have our team meeting,
19 we'd go over these things, and if anybody prefers to
20 do one shift over the other. So I've taken that
21 based off that. I decide based off of that.

22 Q. Okay. And what team meetings are you
23 referring to?

24 A. We would meet weekly to -- when we're all
25 there at the same time, I would have a meeting just

1 to go over anything that needs to improve, or any,
2 like, updates.

3 Q. And where would that meeting take place?

4 A. At Linden.

5 Q. And how long were those meetings?

6 A. It would be, like, 10 minutes to 30
7 minutes. It's quick hold.

8 Q. Okay. Any other team meetings that you
9 guys would have?

10 A. No. That's about it.

11 Q. So just these weekly 10- to 30-minute
12 meetings, a quick huddle, and I think the overall
13 point of it was to, like, if anything needed change,
14 it was like a check-in, basically; right?

15 A. Yeah.

16 Q. An operational check-in?

17 A. Yeah.

18 Q. And who would go to these meetings?

19 A. Me and the assistant, Martha, when Martha
20 was there.

21 Q. Michelle?

22 A. Michelle wouldn't join.

23 Q. Okay. Any other meetings you can think
24 of that were done while you were at -- you know,
25 regular meetings from 2019 to 2022?

1 A. No. Those are -- those are the main
2 ones.

3 Q. Okay. Okay, so did Mr. Lai and Ms.
4 Buksh, in terms of, like -- strike that.

5 You and Mr. Rudy were together. You
6 worked together a lot?

7 A. Yes.

8 Q. Okay. And would Mr. Lai and Ms. Buksh
9 work together more than you and Ms. Buksh?

10 A. Did they worked together more than me or
11 Martha?

12 Q. Yeah.

13 A. Well, they were at the airport, so yes.
14 But if they are at the office with me, then it's -- I
15 work with them.

16 Q. What was the last part of what you said?

17 A. I would work with them if they are at the
18 office with me.

19 Q. What percentage of the time in that 2019
20 to 2022 were Ms. Buksh and Ms. Lai both at the
21 airport?

22 MR. RAHMAN: Overly broad.

23 But go ahead.

24 THE WITNESS: It was towards -- towards
25 the end of that range. Maybe like a year towards the

1 end. So what's the year? You said 2022? Right?

2 BY MS. BREKKE: That's when they both no
3 longer worked there, basically middle, like, March.

4 A. I would say 2021 and 2022ish, because
5 that changed of having them at the airport. The
6 airport shifted. It happened towards the end of that
7 -- that range.

8 Q. The airport shift didn't happen toward
9 the end of that range; is that what you just said?

10 A. Yes. That airport shift wasn't created
11 towards -- until, like, about the end of that range
12 that you're giving me. So in 2019, we didn't have
13 that shift yet.

14 Q. Okay. And who created that shift?

15 A. I can't remember for who.

16 Q. Was it you?

17 A. I don't think so.

18 Q. Okay. So before you said about a year
19 prior, is that right? About a year prior to either
20 Ms. Buksh or Mr. Lai remained, there was this airport
21 shift created?

22 A. Yes.

23 Q. And they both took it together?

24 A. Not they took it together, but I believe
25 the start times were different. So we would have

1 Marcus start in the morning or -- I can't remember if
2 it was morning or later, but like half would do it,
3 and they would swap. So it would be like a
4 switching.

5 Q. Okay. But they would overlap?

6 A. Yes.

7 Q. How -- for how many hours of the day, for
8 example?

9 MR. RAHMAN: This is vague and ambiguous
10 as to "overlap."

11 But go ahead.

12 THE WITNESS: Well, if the start time is
13 at 6:00, and they end at 2:00, the other person would
14 come in at 9:00. So 9:00 to 2:00.

15 BY MS. BREKKE: Q. Okay. So the
16 majority of the shift, for example?

17 A. Yeah.

18 Q. Okay. And that airport shift, again,
19 about a year before they --

20 A. It could be one to two years.

21 Q. One to two years before they both left?

22 A. Yeah.

23 Q. Okay. And prior to that shift, what was
24 that shift called? Just the airport shift?

25 A. Yeah. I guess the airport shift or QTA

1 shift.

2 Q. And was that noted on time sheets?

3 A. No.

4 Q. How come?

5 MR. RAHMAN: May call for speculation.

6 THE WITNESS: Time sheets just kept track
7 of the time, not, like, the location. So like they
8 come to Linden first, and then they go head over to
9 the airport.

10 BY MS. BREKKE: Q. So this Excel
11 spreadsheet that you had that was how you
12 communicated schedules, did that say "QTA shift" on
13 it?

14 A. I feel like it -- it might. Because I do
15 -- I do that now, so it might have been on there.
16 But, like, right now, I use a star to note that
17 that's the airport shift. I don't, like, actually
18 put "airport" or "QTA." So I'm not sure what I used
19 back then.

20 But when it comes to the actual, like,
21 timekeeping of it, like their hours and stuff, it
22 doesn't say on there. It would just be on my sheet
23 that I made.

24 Q. Okay. But when everyone would start
25 their shift, they would go to Linden first?

1 A. Yes.

2 Q. And check in there?

3 A. Yes.

4 Q. Okay. Okay. Prior to this airport shift
5 being created, what perc -- where were -- what
6 percentage of time did your fleet assistants spend at
7 Linden versus somewhere else?

8 A. Over 70 percent of the time, because we
9 had drivers. So the drivers brought everything over,
10 so they would stay at Linden and wait for the cars to
11 come. They had a service to be brought over from the
12 airport.

13 Q. Were the drivers let go during COVID?

14 MR. RAHMAN: That calls for speculation.
15 If you know.

16 THE WITNESS: I believe so, because
17 that's when the change kind of happened; when the
18 fleet assistants came back, they were more used to
19 move cars. I'm not sure.

20 BY MS. BREKKE: Q. And is that when the
21 airport shift, as well, started?

22 A. A little bit after that, I think. I'm --
23 I'm not -- I can't recall the exact time.

24 Q. Okay. Prior to the airport shift,
25 though, your fleet assistants, 70 percent of their

1 time was spent at Linden; correct?

2 A. Yeah.

3 Q. And where was the remaining thirty
4 percent spent?

5 A. Moving cars back and forth if we needed
6 to.

7 Q. Helping the drivers?

8 A. Yes.

9 Q. Was there a warehouse at Linden?

10 A. Yes.

11 Q. Okay. So you had an office building, and
12 then you also had a warehouse?

13 A. Yeah.

14 Q. Okay. And what was -- how big was the
15 warehouse?

16 A. Maybe the same size as the office
17 building, but it was just one big open -- open space.

18 Q. Is it still there --

19 A. No.

20 Q. -- to your knowledge?

21 It was -- it was torn down?

22 A. Yes.

23 Q. Okay. I know you told me that about this
24 office building.

25 Did anyone ever work out of the warehouse?

1 A. We --

2 Q. Strike that.

3 Did you or any of your fleet assistants
4 work out of the warehouse?

5 A. Yes.

6 Q. When?

7 A. When Martha was hired, we were working
8 out of the office. And then they -- Michelle moved
9 us into the warehouse, because she had plans for the
10 office building to be -- or whatever she was planning
11 on doing. So then we had a little office in the
12 warehouse where it was just -- that's when it was
13 just me, Marcus and Rudy in that office. Martha was
14 in the main office. We were in the warehouse office.

15 Then when we got -- and then when Shy came
16 in, there wasn't enough space for me in there. You
17 only could fit, like, two, three people in there. So
18 then I moved to the office building, outside of
19 Martha's office.

20 And then eventually Michelle decided that
21 we can use that space. So then we brought everybody
22 over to the main office building.

23 Q. And when was everyone brought over to the
24 main office building?

25 A. I can't recall the time.

1 Q. So Shy came November 2019. That's what
2 I'll represent to you. You moved into the office
3 building, you said, eventually?

4 MR. RAHMAN: Counsel, November?

5 MS. BREKKE: Outside --

6 MR. RAHMAN: November --

7 MS. BREKKE: September. Sorry.

8 THE REPORTER: I'm sorry, you both were
9 talking at the same time. I didn't hear what you
10 said.

11 MS. BREKKE: September 2019.

12 Q. And so how soon after Shy got there did
13 everyone move inside, if that's a helpful reference
14 point? Was it immediately?

15 A. Maybe a couple months.

16 Q. Okay. And then would anyone work out of
17 the warehouse after that -- strike that. Let me ask
18 a different question.

19 Would anyone have to go into the warehouse
20 for any reason?

21 A. Yeah.

22 Q. For what reason?

23 A. Our supplies are kept there. Our glass
24 techs worked in the warehouse, so we would go in
25 there to speak to him. The others are all our

1 supplies. That's where we kept all our stuff.

2 Q. Okay. When did you first meet my client,
3 Shyheen Buksh?

4 A. When she was hired. Or when we
5 interviewed her.

6 Q. And what do you remember about that first
7 interaction with her?

8 A. It was a good interview. She seemed
9 perfect for the job. And she's nice.

10 Q. Why did she seem perfect for the job?

11 A. Because she mentioned her family
12 mechanics.

13 Q. Uh-huh.

14 A. That's the main thing. Having the car
15 knowledge.

16 Q. Okay. What else do you remember about
17 that first interaction with her?

18 A. That's it.

19 Q. Just that she seemed nice and perfect for
20 the job?

21 A. Because of her car knowledge, yes.

22 Q. And did you speak with her prior to that
23 interview?

24 A. No.

25 Q. Okay. And how many interviews did you

1 have with her?

2 A. One.

3 Q. And who else was in -- was anyone else in
4 the interview?

5 A. Martha.

6 Q. Had Martha told you anything about
7 Ms. Buksh?

8 A. No.

9 Q. Okay. Was the interview in person?

10 A. Yeah.

11 Q. Okay. And where was it?

12 A. At Linden.

13 Q. In the warehouse? Or at the office.

14 A. The office.

15 Q. And so after your interview, did you have
16 a conversation with Martha about whether you were
17 going to hire her or not?

18 A. I just told her that we -- I like her,
19 that we should -- but the next step is handled by
20 Martha. So I'm not sure who she reached out to after
21 that, but I just gave her my feedback.

22 Q. And the extent of what you said was what
23 you just testified to?

24 A. That we should hire her?

25 Q. Yeah. Was there anything else you said

1 to Martha?

2 A. No. I don't remember.

3 Q. Okay. And was that the extent of your
4 involvement in Ms. Buksh's hiring?

5 A. Yes.

6 Q. Okay. And so I know you worked with her
7 for a period -- a while, you know, about two and a
8 half years. What was your relationship like with
9 her?

10 A. Who is "her"?

11 Martha?

12 Q. Ms. Buksh.

13 A. Oh. I think it was fine. I don't -- it
14 was okay.

15 Q. What made it fine or okay?

16 A. I don't remember anything bad. So -- or
17 I'm just going to assume it was fine and it was okay.
18 So nothing really stands out too much.

19 Q. Uh-hmm. When you think back at her,
20 under your relationship with her, would you hang
21 outside of work?

22 A. No.

23 Q. Would you guys text --

24 A. No.

25 Q. -- a lot?

1 Okay. Would you text at all?

2 A. If she's calling out, you mean, things
3 like that, where we would need to get in contact with
4 each other.

5 Q. So other than that, no texting?

6 A. No.

7 Q. Okay. Would you consider you and -- do
8 you -- strike that.

9 Did you and Ms. Buksh have a close
10 relationship?

11 MR. RAHMAN: It's vague.

12 But go ahead.

13 THE WITNESS: No.

14 BY MS. BREKKE: Q. Were you friends?

15 A. Sorry, say again?

16 MS. BREKKE: I'm sorry. I think my ear
17 pods died out.

18 Because I'm in New York, you might hear
19 some sirens, of course. So if you do, let me know,
20 Madam Court Reporter. We can take a break. Even
21 though I'm in a high-rise, but I can still hear
22 people.

23 Would you -- my last question -- will you
24 read back my last question?

25 (Record read.)

1 MS. BREKKE: I believe her answer was
2 "no."

3 Q. Is that correct? I think you answered
4 that one.

5 A. No, we did not.

6 Q. Would you consider -- do you believe that
7 you -- do you believe that you and she had a
8 friendship?

9 A. Not a friendship, but we were friendly to
10 each other.

11 Q. And what was her work ethic like?

12 A. Sorry.

13 She was hard working. She was organized.

14 MS. BREKKE: Madam Court Reporter, can
15 you hear us okay?

16 THE REPORTER: Yes, I can.

17 MS. BREKKE: Okay.

18 THE WITNESS: And hard working and
19 organized, and happy.

20 BY MS. BREKKE: Q. And when you said you
21 don't consider the -- you were friendly with one
22 another, but you didn't have a friendship, what's the
23 difference to you between being friendly with someone
24 and having a friendship?

25 A. I rarely call anybody my friend. It's

1 more, especially if it's co-worker, I don't consider
2 them as friends.

3 Friends are somebody who, I would say,
4 has, like, known me from, like, school for a long
5 time and kept in contact with me. Friendly is like,
6 we can talk to each other about things that are not
7 -- like we can talk about, like, our life to each
8 other and be friendly and be interested in hearing
9 each other stories. But friendship is like a -- like
10 a commitment, in a way.

11 Q. Friendship is a commitment.

12 Will you explain that a little bit -- I
13 mean, again, we're getting into the philosophical
14 territory, but I'm curious. Friendship is a
15 commitment. Tell me about, like --

16 A. Friendship is --

17 Q. Yeah, go ahead.

18 A. A friendship is like a commitment to
19 being there for that person no matter what. Always
20 being there to help them. And, again, like I'm
21 saying if it's somebody that's usually I don't work
22 with, because if -- most people that I have worked
23 with, once they leave the job, I don't talk to them
24 anymore. It's like it's -- it's done. So that's not
25 considered as a friendship to me.

1 Q. Okay. So you would consider all of your
2 fleet assistants to be your co-workers rather than
3 your friends?

4 A. Yeah. It's people I work with, yes.

5 Q. And your colleagues?

6 A. Yes.

7 MR. RAHMAN: Counsel, we've been going for
8 over an hour now. Whenever would be an appropriate
9 time to take a break.

10 MS. BREKKE: Okay. We can take a break
11 now.

12 Let's go off the record. It's 1:52 p.m.
13 Why don't we come back at 2:00.

14 (Recess taken.)

15 MS. BREKKE: We're going to go back on
16 the record.

17 We're back on the record at 2:01 p.m.

18 BY MS. BREKKE: Q. Okay, Ms. Dominguez,
19 you stated that fleet assistants -- you know, your
20 fleet assistants, in that 2019-2022 period, were your
21 co-workers. You didn't really consider them your
22 friends.

23 Would you agree that colleagues and
24 co-workers have different sets of boundaries than
25 friends do?

1 MR. RAHMAN: Vague and ambiguous.

2 But go ahead.

3 THE WITNESS: Yes.

4 BY MS. BREKKE: Q. How are they
5 different in your mind? Like, what -- how are the
6 boundaries different?

7 A. I can't say for anyone else, because I
8 think everybody's boundaries are different. That's
9 not who they are.

10 But my boundaries are different for
11 co-workers and for my friends. With my friends, I
12 feel that boundaries are still boundaries, but they
13 can be, like, discussed, I guess, in a way versus
14 boundaries with co-workers are set. And it's not
15 something you try to discuss with somebody.

16 Q. What's a boundary with a co-worker for
17 you?

18 A. I can't think of one right now. Oh,
19 well, I mean, like, I guess don't bring up anything
20 in my personal life that I've not shared with you by
21 myself, I guess.

22 Q. What do you mean by that?

23 A. Like, don't try to ask for details on
24 something in my personal life if I didn't offer it.

25 Q. Okay. Any other boundary that you can

1 think of that's kind of, like, set for you with a
2 co-worker?

3 A. No. That's all I can think of right now.

4 Q. Okay. So same kind of questioning with
5 as it relates to Mr. Henry.

6 When did you first meet Mr. Henry?

7 A. When he was hired. Maybe 2016 or 2017?
8 I believe 2016.

9 Q. Did you meet him before Mr. Lai?

10 A. Yes, but I didn't work with him. He
11 worked out of a smaller location as a, like a counter
12 agent, like a rental sales agent, so I didn't have to
13 interact with him much.

14 Q. Okay. And what -- what was your first
15 interaction with him; do you recall?

16 A. I remember he came by to get a car from
17 us to take to his downtown location. So that was the
18 first time.

19 Q. Like, what was signif -- what was
20 memorable about that interaction?

21 A. That he looked like my dad. That was the
22 joke that -- that he looked just like my dad.
23 Because I thought he was my dad, and I was surprised.
24 I was caught off guard. And that's how we kind of
25 started.

1 Q. And what was the -- did you say there was
2 like a running joke about that?

3 A. That he looked like my dad?

4 Q. Yeah. Yeah.

5 A. Oh. Oh, yeah. I guess, yeah. That's
6 one of the things we spoke -- well, that's what we
7 remember when we first met.

8 Q. Did you say, like, "dad"?

9 A. No. I just was, like, surprised. I go
10 -- I was, like, I thought you were my dad, because
11 they have the same, like, no -- no hair, same, like,
12 height. It was, like, the same.

13 Q. And so would you guys, like, joke over
14 that; over the next, you know --

15 A. Not all the time, no. Just if we were to
16 talk about when we first met, I mean, that could come
17 up.

18 Sometimes he still does catch me off guard
19 if he shows up, and just -- yeah.

20 Q. He still looks like your dad?

21 A. Yes.

22 Q. Okay. And, let's see, were you involved
23 in hiring him?

24 A. No.

25 Q. Okay. Were you involved in bringing him

1 over to the fleet team?

2 A. No.

3 Q. Okay. Do you know who made that
4 decision?

5 A. I believe he wanted to move. Because I
6 don't -- I can't recall if it was him or his manager.
7 But, yeah, I'm not 100 percent sure who did it, and
8 whose decision it was.

9 Q. Okay. And throughout the time you've
10 worked with Rudy -- well, actually, let's stick with
11 this 2019-2022 period then maybe -- well, no. You
12 said 2017.

13 So 2017 to 2022, when you first started
14 working with him, how would you describe -- what --
15 what's been your relationship like with him?

16 A. The same. Friendly. Yeah. I can only
17 describe it as friendly. I don't know how else to
18 describe it.

19 Q. Would you guys -- oh, I'm sorry -- go
20 ahead.

21 A. I said it was a good -- a good
22 relationship.

23 Q. And would you hang out outside of work?

24 A. No.

25 MR. RAHMAN: Vague.

1 THE WITNESS: Only like for, only like
2 for -- only like for work events.

3 THE REPORTER: Was your objection
4 "vague," only?

5 MR. RAHMAN: That's it.

6 THE REPORTER: Okay.

7 BY MS. BREKKE: Q. Would you guys text?

8 A. No.

9 Q. Well, would you text -- when I say "would
10 you text," maybe I should separate two things.

11 Would you text about work-related things?

12 A. Yes.

13 Q. And would you text about non work-related
14 things?

15 A. Not often.

16 Q. Okay. Meaning, like, quantify that for
17 me; once a month, every six months, really not often
18 at all?

19 A. It's like an average, maybe like every
20 three months, maybe we'd have a little conversation
21 on the side. But...

22 Q. And what would those conversations on the
23 side be like?

24 A. I can't remember what -- it might just be
25 like -- like a movie or something. We have the same

1 taste in movies. I know that he was -- he liked
2 working out. I like working out. Talk about gym
3 equipment. Weights. Like, buying stuff off Amazon
4 for home workouts.

5 Q. It's a very health and wellness mainly
6 focus primarily?

7 A. Yeah.

8 Q. Okay. And just to go back, when we were
9 talking about Ms. Buksh, would you and she text about
10 work-related things?

11 A. Well, if there was -- if we needed to
12 communicate about something, about, like, a car. But
13 I -- I think we mostly communicated on Teams, not
14 text messages.

15 Q. And you communicated on Teams from the --
16 from starting when?

17 A. As long as we had it. I tried to use it
18 most of the time.

19 Q. And would you and Ms. Buksh talk about
20 non work-related things, ever?

21 A. I don't remember doing that, no.

22 Q. Okay. And has -- you and Mr. Henry have
23 worked together a long time. So would you describe
24 your relationship the same? Or have you gotten
25 closer over the years? Or --

1 A. The same as now versus then?

2 Q. Yeah. I just need to know what you
3 described to me was limited to that 2019-2022 period,
4 or if that's kind of like how it's always been?

5 A. That's how it's always kind of been. The
6 same.

7 Q. So still you kind of, like, only the
8 conversations you have that are non work-related are
9 like health-and-wellness-type stuff?

10 A. Yes. Uh-huh.

11 Q. Okay. And Mr. Lai, you've worked with
12 him -- or you worked with him kind of starting 2018,
13 but I know it kind of varied; it increased, your
14 level of involvement.

15 How would you describe your relationship?

16 A. Same as Rudy. Friendly. Yeah, friendly.

17 Q. Oh, would you consider you and Mr. Henry
18 -- we're going back to Mr. Henry -- would you
19 consider the two of you close?

20 MR. RAHMAN: It's vague and ambiguous.

21 But go ahead.

22 THE WITNESS: Close, because we've worked
23 together for so long. So as time goes on, we might
24 learn something knew about each other.

25 BY MS. BREKKE: Q. So would you say you

1 had a close, like, co-working relationship?

2 A. Yeah.

3 Q. Okay. Okay. Now I'm back to Mr. Lai.

4 Would you consider your relationship with
5 Mr. Lai close when you guys worked together?

6 MR. RAHMAN: Same objection.

7 But go ahead.

8 THE WITNESS: Yes.

9 BY MS. BREKKE: Q. And would you hang
10 out outside of work?

11 A. For work events.

12 Q. That's it?

13 A. Well, not -- not, say, work events, but
14 with other co-workers. It's not just me and him.
15 Like, with things.

16 Q. Would you ever hang out just the two of
17 you?

18 A. No.

19 Q. Would you go to the gym together ever?

20 A. No.

21 Q. Did he ever come to your apartment?

22 A. Yes.

23 Q. How many times?

24 A. One.

25 Q. And when was that?

1 A. I had a house-warming party when I got my
2 first apartment.

3 Q. Okay.

4 A. And that was a Halloween 2019, maybe?

5 Q. Uh-huh. We'll get there.

6 Or we'll get there in more specifics in a
7 little bit.

8 Did he sleep at your house -- at or your
9 apartment that night?

10 A. Yes.

11 Q. Did anyone else?

12 A. My best friend from high school.

13 Q. What is that person's name?

14 A. Jorge.

15 Q. Okay. Were you and Mr. Lai ever
16 romantically involved with one another?

17 A. No.

18 Q. Do you bel -- do you think you had more
19 comfort with Mr. Lai than you did with Ms. Buksh or
20 Mr. Henry?

21 A. I would say the same --

22 MR. RAHMAN: Vague and ambiguous.

23 But go ahead. Sorry.

24 THE WITNESS: I would say the same as
25 Rudy.

1 BY MS. BREKKE: Q. Why Mr. Lai the same
2 as Mr. Henry?

3 A. Because of the length of time that we've
4 known each other.

5 Q. Okay. Okay. And Ms. Buksh, did you
6 believe that she was a valuable member of the team?

7 A. Yes.

8 Q. What about Mr. Henry?

9 A. Yes.

10 Q. And Mr. Lai?

11 A. Yes.

12 Q. Okay. You liked Ms. -- you appreciated
13 Ms. Buksh's work?

14 A. Yeah.

15 Q. And Mr. Henry's?

16 A. Yeah.

17 Q. Mr. Lai?

18 A. Yeah.

19 Q. And you felt they were all valuable
20 members of your team?

21 A. Yeah.

22 Q. Since you and Mr. Henry began working
23 together, were you ever involved in any promotion he
24 was given?

25 A. No.

1 Q. So it sounds like, just to back up a
2 little bit, you had the most comfort with Mr. --
3 actually, strike that.

4 Excuse me.

5 So with your team, like, if any issue came
6 up, you would be the first line of defense; would you
7 agree with that?

8 MR. RAHMAN: Overbroad in time. Vague
9 and ambiguous.

10 Go ahead.

11 THE WITNESS: Me or Martha or Michelle
12 are the three that can help.

13 BY MS. BREKKE: Q. Would you expect your
14 direct reports to come to you if an issue came up?

15 A. I do.

16 Q. Something happened with a vehicle. For
17 example, you'd expect your fleet assistants to come
18 to help -- come to you to help rectify that issue?

19 A. Yeah. Correct.

20 Q. Something happened with a customer, for
21 example, you'd expect your fleet assistants to come
22 to you to help rectify the issue?

23 A. Yes.

24 Q. Okay. We kind of talked about this, but
25 do you remember what shifts -- you don't remember

1 what shifts Mr. Henry, Mr. Lai or Ms. Buksh had;
2 right?

3 A. At the time of the shift?

4 Q. Yes.

5 A. I -- no, I can't. I can't.

6 Q. That's okay.

7 Do you remember who had which days off?

8 A. I can only remember Rudy. He needed
9 Friday, Saturday off.

10 Q. Were those the same days off that
11 Ms. Buksh had?

12 A. I don't remember her days off.

13 Q. Would you let two of the fleet assistants
14 have the same day off ever?

15 A. Saturday or Sunday might be that case,
16 because weekends were slow, so we didn't need someone
17 to be there.

18 Q. Ms. Buksh worked more with Mr. Lai than
19 Mr. Henry; correct?

20 A. Because of the airport shift.

21 Q. Not before that?

22 A. I can't recall before that.

23 Q. Were you and your fleet assistants,
24 during this 2019-2022 period, were you communicating,
25 kind of, all day?

1 A. Yeah.

2 Q. And what were you communicating about?

3 A. What's going on at the airport. Like
4 updates of what's going on over there. Sending
5 information about cars. Like, license plates, like
6 messaging or body damage that I need to review.

7 Q. And the expectation was that you guys
8 were kind of communicating all day?

9 A. Yeah.

10 Q. And you said the communications mainly
11 happened to be on Teams?

12 A. I would try to, yes.

13 Q. All right.

14 A. I like to have it -- I like to have,
15 like, the history of it so we can look back at it.

16 There's a group chat. It was easier for
17 everybody to be on the same page.

18 Q. Do you chat on Teams?

19 A. Yes.

20 Q. So your fleet assistants had a group
21 chat, you and your --

22 A. Yeah. Yeah.

23 Q. And you said you kind of wanted to use
24 Teams more than texting, or for as long as you've
25 been -- you'd been using Teams; right? As long as

1 Sixt had been using Teams.

2 Do you know when Sixt started using Teams?

3 A. No.

4 Q. Was it when you were a senior fleet
5 planner?

6 A. I don't remember Teams then.

7 Q. Do you know if it started when you were a
8 junior fleet manager?

9 A. I don't remember using it then, either.

10 I remember using it when we had -- when
11 Rudy came. So I don't know if we had it the whole
12 time and I just didn't use it. But, yeah, I believe
13 I remember using it when, like, Sebrene and Rudy were
14 there.

15 Q. What position did you have when Rudy
16 came?

17 A. Junior fleet manager.

18 Q. Okay. And you rely on being able to,
19 like, look at the chats on Teams; that sounds like
20 that it was important to you; that's why you liked
21 having that, like, thread on Teams?

22 A. Yeah.

23 Q. Okay. Do you know how long Teams
24 messages are stored?

25 A. No.

1 Q. Did you look through your Teams
2 communications for any communications related to this
3 matter?

4 A. Yes.

5 Q. You did? And you didn't find any?

6 A. No.

7 Q. Okay. Is it because they were deleted?

8 A. No. I can't -- I don't think I can
9 delete them the way it's set up. It could be because
10 they are no longer employed, so it's not there
11 anymore. Because when I type in the name, the
12 message history doesn't pop up between me and the
13 person. Or, like, our group chat, it's not there.
14 So probably because they are not in the system
15 anymore. Their names aren't in there.

16 Q. Did you scroll back four years?

17 A. I don't know how to scroll back. I just
18 searched in the search. I put their names, and they
19 didn't pop up.

20 Q. On Teams, there's a -- you -- the chat is
21 kind of like a -- there's a scroll function, right,
22 that you can scroll up and read the prior screens?

23 A. I think so, yeah. But I didn't use that.
24 I used the search bar to type in their name.

25 MS. BREKKE: Okay. I think it might be

1 worth while to do -- to do a different type of search
2 and scroll and see if you can find other messages. I
3 don't know how Teams works. I can research it. But
4 if you could do that, as well, to look for responsive
5 documents, that would be helpful.

6 Q. Okay?

7 A. Okay.

8 Q. It's my understanding, from what you're
9 saying, is that you use Teams a lot. Right?

10 A. Uh-huh, yes.

11 Q. Were there certain types of con -- were
12 there certain types of work conversations that you
13 preferred having on Teams versus over text? Or not
14 necessarily?

15 A. On Teams, it was for -- so we were all
16 aware of what's going on for, like, that group chat.
17 So, you know, we can all be on the same page.

18 On text, it could be like for call-outs
19 or, like, I'm going to be late. Something that you
20 need a faster response to, could be on text since
21 I'll get notified faster.

22 Q. Okay. When you said you use Teams a lot
23 so everyone's aware of what's going on, and what's
24 going on would be what?

25 A. Like, if there's an issue with this car

1 today, and I'm not here tomorrow, somebody could go
2 and see that we already talked about it.

3 Q. Got it. Okay. And did you have group
4 texts with your fleet assistants in the 2019-2022
5 period?

6 A. I think I might have, if I needed to,
7 like, give a -- like, maybe tell them I'm not coming
8 in. So they -- yeah, there's a chance there was one.

9 Q. Do you recall sending texts, like,
10 body-damage pictures?

11 A. I don't think I would do that in a group
12 message, unless both of them were there that day, and
13 then I needed to. But I don't want to bother people
14 on their day off. So...

15 Q. Okay. And I know you said -- I was going
16 to ask you about, kind of, these meetings. Team
17 meetings. I know you kind of testified that there
18 was only that one weekly meeting you had.

19 Any other meetings that you would have
20 with Michelle?

21 A. I can't recall.

22 Q. You don't recall any other meetings you
23 had with Michelle, or Martha, or anything like that?

24 A. Not that was like a reoccurring thing. I
25 mean, it wasn't like -- I don't remember having it a

1 scheduled thing.

2 Q. Any reoccurring meetings with Tiffany?

3 A. No.

4 Q. Okay. When it was the three of you in
5 this 2019-2022 period, what was the dynamic like
6 between the three -- or four of you, rather?

7 A. I felt that they were all pretty close to
8 each other. Closer than I was with each of them.
9 They were -- they seemed like they were close.

10 We all helped each other out.

11 I mean, we, like, even celebrated
12 birthdays was a big thing. Decorate their whole
13 desk. Yeah. Eat lunch together. Well, I didn't eat
14 lunch with them. I ate lunch in my office. But they
15 would, like, have lunch together.

16 Q. Why didn't you eat lunch with them?

17 A. Because I don't like to eat with people.
18 I like to eat alone.

19 Q. Okay. Okay. And would everyone on the
20 team hang out together outside of work, to your
21 knowledge?

22 A. I believe they would.

23 Q. You believe they would?

24 A. Yeah, the three of them.

25 Q. What is that belief based on?

1 A. Them talking about it.

2 I think they -- I don't know, it sounds,
3 like, maybe they were planning things, and I heard
4 them talking about it. They had a -- they'd talking
5 to each other on text. I think they had, like, their
6 own little group chat.

7 Q. Why do you think that?

8 A. 'Cause I -- I've heard them talk about
9 it.

10 Q. What did you hear them talk about?

11 A. I don't know. It could be, like, did you
12 guys see the, like -- this is just an example of kind
13 of how it kind of would be. But like them talking
14 about a text that was sent, in that it sounded like
15 they were all aware of that, what they are talking
16 about. But I wasn't included on it. So it must have
17 been a group chat that they were in.

18 Q. Uh-hmm. And before you had an office,
19 would you eat lunch with them?

20 A. I ate at my desk. So, no.

21 Q. Okay. Okay. And, let's see, and you
22 said we celebrated birthdays. How did you celebrate
23 birthdays? As a team, you celebrated birthdays?

24 A. Yes.

25 Q. How did you celebrate birthdays?

1 A. We'd buy decorations, cake, have, like, a
2 team lunch. Gifts.

3 Q. Everyone buy gifts for each other?

4 A. If they wanted to. It wasn't, like,
5 required.

6 Q. Would you say there was, like, a culture
7 of everyone kind of participating in each other's
8 birthdays and holidays?

9 A. Yeah -- yes.

10 Q. Would anyone not participate?

11 A. No. It was everybody participating.

12 Q. Was that important to you? Was it like a
13 team moral thing for you -- well, strike that.

14 Were you in charge of this?

15 A. It's not that I was in charge of it, but
16 I was doing my part, and then others would do their
17 own part. We might talk about it and do, like --
18 I'll say I'll get the decorations, and somebody will,
19 like, I'll get the cake. Yeah.

20 Q. Was that a part of the culture that you
21 liked?

22 A. Yes. I wanted them to feel special.

23 Q. Uh-huh. Okay. So if it was someone's
24 birthday, would everyone organize around getting that
25 person a gift?

1 A. Yeah.

2 Q. And would people get you gifts?

3 A. Yes.

4 Q. And what are some of the gifts that, in
5 this period 2019 to 2022, you were given?

6 A. Bobblehead. Gift basket. Gift basket.
7 Blanket.

8 Random things.

9 Q. What was in the gift baskets?

10 A. Shy was the only one who gave me a gift
11 basket. It would have, like, my favorite cookies in
12 there, or chocolates, a puzzle game. I think the
13 Bobblehead was from a different time. But, yeah.
14 Key chains.

15 Q. What was that?

16 A. Key chains.

17 Q. Anything else that you can remember
18 Mr. Lai, Mr. Henry or Ms. Buksh getting you?

19 A. That's all I can remember right now.

20 Q. Okay. Did you conduct performance
21 evaluations from 2019 to 2022?

22 A. I remember one time I was in the process
23 of doing it.

24 Q. What do you mean one time you were in the
25 process of doing it?

1 A. I remember one time I needed to do it,
2 they, like, sent out a, like, the process of how to
3 do it. Or it was, like, everybody, not just my
4 department.

5 So, like, Michelle had one for me, and I
6 was supposed to do it for my three assistants.

7 Q. And when was that?

8 A. It was when Martha was no longer around,
9 because then it was my -- then I had to do it because
10 she wasn't there.

11 Q. And did you do it?

12 A. I don't remember completing it. I
13 remember filling out, like, the documents to do it.
14 And then I didn't do the end part of it, which was,
15 like, the one on one.

16 But then I saw that they -- that the team,
17 that was important to them to have one on ones. So
18 then I scheduled it.

19 Q. You said -- but then I think you cut out
20 for a second. You said you saw what was important to
21 who?

22 A. To the team. So it was -- yeah, I was --
23 I would talk openly with them. So they were aware of
24 the reviews that I was doing. But I didn't schedule
25 the one on ones. I believe Shy was the one who

1 mentioned, like, all you didn't do the performance
2 reviews. I was, like, oh, sorry. I thought that we
3 -- you guys didn't really care for me to do it, so,
4 like, I didn't do that part. But then, when she said
5 that, then I scheduled it, and I had the one on ones
6 with them to go over the review.

7 Q. And so you filled out a document --

8 A. Yeah.

9 Q. -- for each person?

10 A. Yeah.

11 Q. Okay. And where are those documents now?

12 A. I'm not sure. I did have to submit them.
13 I'm not sure where they went.

14 Q. Where did you submit them to?

15 A. It could have been Michelle. I don't
16 know. I had to -- at the end of the reviews, I put
17 the goals, and all that. I don't know if it was some
18 type of software that we were using at the time, but
19 I did have to submit them.

20 Q. And you did submit them?

21 A. Yeah.

22 Q. Okay. And you did it once in that
23 2019-2022 period?

24 A. Yeah.

25 Q. And you believe you did it after Martha

1 left?

2 A. Yes.

3 Q. Okay. And what was your review for
4 Ms. Buksh?

5 A. I can't remember.

6 Q. Do you recall any issues with her
7 performance?

8 A. No.

9 Q. Actually, let me ask you this: What were
10 the goals? Were they different for each person?

11 A. Yes. We were supposed to come up with
12 the goal together, work together to figure out what
13 we're gonna work on.

14 Q. And did these performance evaluations
15 have any sort of -- do you recall there being any
16 performance concerns that you had with Ms. Buksh?

17 A. No.

18 Q. Any behavioral concerns?

19 A. No.

20 Q. Any workplace concerns?

21 A. No.

22 Q. Okay. Mr. -- what about Mr. Henry. Do
23 you remember what -- do you remember -- strike that.

24 Do you remember anything --

25 A. To --

1 Q. -- walk me through this sheet. Walk me
2 through this document you filled out.

3 So you put their name, I imagine.

4 Do you remember what else you filled in on
5 this document?

6 A. It would be, like -- it would be their
7 name. And then, like, what are your strengths, what
8 are your weaknesses. It was kind of like set up like
9 that. It was a big area for me to write in, like,
10 what I believe their strengths and weaknesses are.
11 Anything that I feel they need to improve on.

12 It was just like a general thing.

13 And then I think at the end, it's like you
14 put the goals on what you want to work on for the
15 next time we review.

16 Q. Okay. And as we're talking about it, do
17 you remember it was a handwritten sheet that you
18 filled out?

19 A. Printed it and then write on it, yeah.
20 And then scan it and send it.

21 Q. Do you have a memory of, like, it being
22 an email?

23 A. Yeah. I believe -- I think I might have
24 emailed it to the fleet assistant, too. Like, this
25 is the performance review that we just discussed.

1 And then, like, overview of how the one on one went.

2 Q. Okay. And you did that for all three of
3 them?

4 A. Yeah.

5 Q. Okay. And then your one on one with
6 Ms. Buksh, how long was that?

7 A. Review, 30 minutes?

8 Q. And where was it?

9 A. In my office.

10 Q. Okay. Did she say anything, did she --
11 was it -- did you guys talk about anything -- strike
12 that.

13 Was there anything specific you remember
14 talking about?

15 A. No.

16 Q. You don't remember anything specific
17 about your review -- your one performance review with
18 her?

19 A. No. I just remember that she was doing
20 good. That's why I didn't really have much to say.
21 Like, she was performing well at her job.

22 Q. Okay. What about Mr. Henry; do you
23 recall anything about his performance review?

24 A. I recall something about he wants -- he
25 liked a lot of feedback. He had a lot to talk about.

1 Like, he was more -- doing more of the talking, I
2 think. But, yeah, I don't -- I don't remember any
3 specifics, though.

4 Q. Did -- just that just reminded me a
5 little bit -- did Ms. Buksh, Mr. Henry, Mr. Lai ever
6 make complaints about the other about laziness?

7 A. No.

8 Q. Never?

9 A. I don't remember them doing that, no.

10 Q. Okay.

11 A. They -- they were good about spreading
12 the workload evenly.

13 Q. Okay. So just going back to Mr. Henry's
14 performance review.

15 Have you since given Mr. Henry a
16 performance review? Or throughout the work time,
17 you've only given him one?

18 A. No. I believe I've given him another
19 one.

20 Q. Okay. So let's just make sure we're only
21 talking about that 2019 to 2022 period.

22 Okay. So that 2019-2022 period, you
23 recall he was talking a lot. Do you remember
24 anything specific he said?

25 A. It was all around the same idea of him

1 wanting to do better. He kind of doubted himself a
2 lot. It was like a lot of reassuring that he was
3 doing good, but he was all thinking that he wasn't
4 doing enough.

5 Q. How did you learn -- how did -- was that
6 -- so that was the first performance evaluation you'd
7 ever conducted; right?

8 A. Yeah.

9 Q. How did you know what to do?

10 A. I didn't. I just kind of go off of what
11 they said, when my previous managers would have one
12 with me.

13 Q. So no one at Sixt told you how to conduct
14 a performance evaluation?

15 A. No.

16 Q. You said an email was sent out that they
17 wanted you to do performance evaluations; is that
18 right?

19 A. I believe there were reminders saying to
20 submit them. So it was a -- everybody was doing it
21 at that time. It wasn't just the fleet department.

22 Q. But the way you first learned that you
23 should be doing this was that you received an email;
24 correct?

25 A. I have had only -- say it again?

1 Q. Yeah. The way you first found out that
2 Sixt wanted you to conduct a performance evaluation,
3 you found out via email?

4 A. Yeah. I believe so.

5 Q. Okay. And as part of that email, was
6 there any sort of information given to you on how to
7 do it?

8 A. Just the files that I need to fill out.

9 Q. Okay. That's it; right?

10 A. Yes.

11 Q. So did you even know how to, like,
12 structure a goal, or what to look for in a goal?

13 A. No.

14 Q. I don't mean this condescendingly at all,
15 but was it kind of just like a guess?

16 A. Yeah.

17 Q. Okay. So Mr. Henry, he wanted a lot of
18 reassurance. He was doubting himself. You were
19 providing him with that reassurance.

20 Anything else you remember about that
21 performance review? Anything?

22 A. That's all on that one.

23 Q. And then for that one, was that also 30
24 minutes?

25 A. They were all around the same time.

1 Yeah.

2 Q. All in your office?

3 A. Yeah.

4 Q. And Mr. Lai's -- anything else you
5 remember about Mr. Henry's?

6 A. No.

7 Q. Okay. How about Mr. Lai's; do you recall
8 anything about his performance -- oh, actually,
9 strike that. Let me ask you some of the same
10 questions I had with Ms. Buksh.

11 Did you have any performance reviews with
12 Mr. Henry? Yeah.

13 A. No.

14 Q. Any behavioral concerns?

15 A. No.

16 Q. Any workplace concerns?

17 A. No.

18 Q. Okay. Let's pivot to Mr. Lai.

19 Do you remember anything about his
20 performance evaluation?

21 A. Not too much. I can't, no. Nothing
22 standing out.

23 Yeah, I can't think of anything.

24 Q. Did you have any performance concerns
25 with him?

1 A. No. I think he might have called out a
2 few times always late. I remember something about
3 his attendance.

4 Yeah. Maybe it was attendance.

5 Q. Did he have an attendance issue?

6 A. I wouldn't call it an issue, but around
7 that time, there might have been some times where he
8 was, like, late. He didn't really -- he wasn't
9 really strict on the schedule. So the clocking in.
10 Yeah.

11 Q. I'm sorry, what was that?

12 A. That's all I can remember. Something
13 about, like, maybe attendance might be something.

14 Q. Uh-huh. And did you have that same issue
15 with Ms. Buksh or Mr. Henry?

16 A. No.

17 Q. Okay. Did you have to tell Mr. Lai --
18 did you have to, like, discipline him in any way
19 about his attendance?

20 A. I don't think it ever got to that point.

21 Q. Did you have to tell him to change his
22 behavior?

23 A. About clocking -- coming late?

24 Q. Yeah, about this attendance, late issue
25 that you're bringing up?

1 A. Well, yeah. Most like verbally, if it
2 was mentioned on the review.

3 Q. Uh-huh. Minus the review, is there any
4 other place that any attendance issues with him was
5 documented?

6 A. No.

7 Q. Did you put it on your Excel spreadsheet?

8 A. I keep track of attendance issues on my
9 Excel sheet, yes.

10 Q. And that was on a Sixt computer; correct?

11 A. Yes.

12 Q. Excel spreadsheet?

13 A. Yeah.

14 Q. Is there One Drive on that computer?

15 A. I didn't start using the One Drive
16 storage until, like, the Teams thing kind of came in.
17 I don't remember using it before. It could have been
18 because I don't really know how to use it, but I
19 started, like, actively using it when I had that
20 Excel sheet.

21 Q. You said Teams came around when Rudy
22 started, which I think was around 2017?

23 A. No, no. Not when he started. When he
24 started at Linden with me. That's when.

25 Q. Okay.

1 A. Yeah.

2 Q. Got it. So presumably, I wonder if Excel
3 spreadsheet could be on this One Drive?

4 A. Well, I've gone through my One Drive file
5 whenever I go in there. It don't -- I don't see
6 anything on there.

7 Q. Okay. Okay. So performance concerns
8 with these attendance issues with Mr. Lai who isn't
9 strict on the schedule.

10 And so any behavioral concerns that you
11 had with him?

12 A. No.

13 Q. Toward you?

14 A. Say again?

15 Q. Like, did you have any behavioral
16 concerns about him toward you?

17 A. No.

18 MR. RAHMAN: Asked and answered.

19 BY MS. BREKKE: Q. Was your answer "no"?

20 A. No.

21 Q. Okay. Toward anyone else did you have
22 any issues, concerns; any behavioral concerns
23 involving him and others?

24 A. No.

25 Q. Okay. Any other workplace concerns?

1 A. Regarding Marcus? Or any follow-up.

2 Q. Just about Marcus.

3 A. Just Marcus? Not that I can remember.

4 Q. Okay. Do you believe that, like, since
5 2022, do you do more performance evaluations now?

6 A. More like a one on one check-in. Not as
7 formal a -- it's not that formal. Like, I don't have
8 a whole sheet that I need to send in. It's more like
9 checking in on them.

10 Q. And how often do you have these one on
11 ones?

12 A. Maybe every three months.

13 Q. And what do you do?

14 A. I ask if they have any concerns that they
15 want to bring up. How do they feel about the job.
16 Anything they want to learn. And then go over, if I
17 have anything for them. So, like, feedback on their
18 performance.

19 Q. And how do they know that these meetings
20 are being set?

21 A. It's not like a formal thing. So it's
22 like I'll just go talk to them, like, hey, do you
23 want to come talk in the office and have a one on
24 one.

25 Q. And if they say no, do you do it?

1 A. I never have been said no.

2 Q. When did you start this practice?

3 A. Maybe within the last two years.

4 Q. So that one time that you received that
5 email to conduct a performance evaluation with that
6 sheet, was that the first and only time you received
7 that instruction?

8 A. I can't recall how many times I needed to
9 do that.

10 Q. So with these one on one performance
11 check-ins, you said you started it the last two
12 years?

13 A. Yeah.

14 Q. Okay. And was that -- why did you start
15 that practice?

16 A. The same way that I can improve as a
17 manager. That's one way that I thought I could do
18 better.

19 Q. Was it ever encouraged to you by
20 management to conduct performance evalu -- strike
21 that.

22 Was it ever encouraged to you by
23 management to conduct these one on ones?

24 A. No.

25 Q. Do you ever have anyone evaluating your

1 performance?

2 A. I haven't had one in a while.

3 Q. Who was the last one to do it?

4 A. My manager, Isabella. And Budiyoно did
5 one. But that was, like, the first one in a while.
6 It was like a gap. I think that was two years ago.

7 THE REPORTER: Can you spell her last name
8 for me, please?

9 THE WITNESS: Is it Isabella and Budiyoно?

10 THE REPORTER: Oh, two different names?

11 THE WITNESS: Yeah.

12 THE REPORTER: I think you spelled
13 Budiyoно earlier.

14 THE WITNESS: Yeah, I did.

15 BY MS. BREKKE: Q. So Budiyoно did one
16 two years ago; is that correct?

17 A. Or within the last two years.

18 Q. Okay. And then when did Isabella do one?

19 A. It was with him.

20 Q. Oh. Okay. It was the two of them that
21 conducted this performance evaluation in the last two
22 years?

23 A. Yeah.

24 Q. Is that the only performance evaluation
25 you received at Sixt?

1 A. There was one with Michelle. That was
2 like a big gap for hers. Hers was probably back when
3 I was, like, just getting promoted as a fleet
4 manager.

5 Q. And what did that performance evaluation
6 consist of?

7 A. That's the one that looked like the ones
8 that I had to give to the fleet assistants. She did
9 one for me.

10 Q. Ah. And did she send that to you?

11 A. I can't remember if she did.

12 Q. And do you remember any of the feedback
13 she gave you?

14 A. No.

15 Q. Okay. What about the one with Isabella
16 and Budiyo. Do you remember -- oh, actually, yeah.

17 So the format of the one with Isabella and
18 Budiyo, what was that format like?

19 A. This one was like a -- there was
20 something in the system that I fill out on my own,
21 and then they fill out theirs, and we talk about it
22 together.

23 Q. Okay. In the 2019-2022 time period, any
24 other ways performance was being checked, aside from
25 this one performance evaluation you're talking about?

1 A. No.

2 Q. These one-on-one meetings that you have
3 now, do you take notes?

4 A. I, um -- if it's -- let me see. I'm
5 trying to think of the last one.

6 I note in my Excel sheet if there's
7 something worth noting.

8 Q. What do you note?

9 A. But there's nothing -- so, an example of
10 what I would write is a -- like if they have
11 something like another fleet assistant. Or if they
12 felt like they wanted more training in a certain
13 area, then I'll note that in the training part of my
14 Excel sheet.

15 Q. Uh-huh. Do you submit those notes to
16 anyone?

17 A. No.

18 Q. Who right now has access to your Excel
19 spreadsheet?

20 A. Me.

21 Q. That's it?

22 A. Me and Rudy.

23 Q. All right. And does he have -- dose he
24 fill on the same Excel spreadsheet in the same tabs?

25 A. He was just promoted to this manager

1 position. So there hasn't been much time us both on
2 there.

3 But right now, he is filling in things on
4 -- like, if somebody calls out when I'm not there or
5 anything he notices, he'll add it to the sheet.

6 Q. And do you -- so these are all like --
7 this is all performance-related conduct; right?
8 Attendance, things that are being brought up;
9 correct?

10 A. Yeah.

11 Q. Okay. Do you ever put -- do you ever put
12 what's in the Excel sheet in personnel files?

13 A. No.

14 Q. Okay. Okay. And then after these one on
15 ones, do you ever send it up to HR?

16 A. No. Maybe I'll -- like, if there's a
17 complaint in there, and I have a one on one, then
18 I'll send, like, an email to review, like, this is
19 what we went over. Or if I have a meeting for that
20 week, if there was some topic in there, topics in
21 that meeting that was related to, like, an issue
22 that's happening, I make sure to put it in an email
23 just so I can keep track of when I brought it up to
24 the team.

25 Q. You put it in an email and send it to

1 who?

2 A. To the team.

3 Q. Okay. Okay. Do you think performance
4 evaluations are helpful?

5 A. I've seen now that they are.

6 Q. Why do you say that?

7 A. Because before, I didn't have them as
8 often, and now I have them, and I see that the team
9 likes to hear feedback, which is why I started to do
10 it more often.

11 Q. Earlier you said you'd send emails to the
12 team about things you had spoken about. Do you mean
13 the management team? Or do you mean your fleet
14 assistant team?

15 A. The fleet assistants.

16 Q. Okay. Do you have a lot of autonomy in
17 your position?

18 A. What does that mean?

19 Q. Do you have a lot of independence in your
20 position, in the sense of, do you have to report up a
21 lot? Are there a lot of checks and balances.

22 Does that make more sense?

23 A. No, I don't. I don't get --

24 Q. You don't get the question?

25 A. No, I don't.

1 Q. Okay. No problem.

2 I don't know what the positions you've had
3 before, but are you able to work -- is my internet
4 connection going in and out? Or no?

5 THE WITNESS: It's slowing down a bit.

6 MS. BREKKE: Okay, I'm sorry. I guess my
7 computer is getting tired, as well.

8 Q. Do you feel, like, micro managed at all?

9 MR. RAHMAN: That's vague and ambiguous.
10 But go ahead. If you understand.

11 THE WITNESS: Sometimes. Depending on my
12 manager at the time.

13 BY MS. BREKKE: Q. What about right now?

14 A. No.

15 Q. At any point in 2019 to 2022, did you
16 feel micro managed?

17 A. I can't remember. I don't -- I don't
18 remember feeling that way, but I'm not sure.

19 MS. BREKKE: Okay. Why don't we take a
20 quick couple minute stretch-our-legs break, and we'll
21 go to 3:30 or 3:45. Okay?

22 THE REPORTER: I'm getting pretty tired.
23 I'm getting pretty tired. I'd like to stop at 3:30
24 since you have to come back anyway.

25 MS. BREKKE: No problem. I know it. What

1 time is it for us? It's 6:00.

2 Let's go off record.

3 We're going off the record at 3:01 p.m.

4 (Recess taken.)

5 MS. BREKKE: Back on the record at 3:06

6 p.m.

7 Q. Okay. So you're saying now -- you were
8 saying that at -- I think I missed your answer. I
9 asked if in the 2019 to 2022 period if you felt micro
10 managed. And I think you said you don't remember
11 feeling that way. Did I get that accurately?

12 A. Yeah.

13 Q. Okay. Okay. And so, to your knowledge,
14 there's no -- there's never been -- strike that.

15 Well, to your knowledge, there's never
16 been like a company policy related to performance
17 evaluations?

18 A. I don't remember, honestly, about that.

19 Q. You're not aware of one as you sit here?

20 A. No. Yes.

21 Q. And you've implemented these one on ones
22 based on your own kind of thought of how to do it?

23 A. Yeah.

24 Q. Okay. Would you agree that managers need
25 to provide feedback to performance -- strike that.

1 Would you agree that managers need to
2 provide feedback to employees with performance
3 issues?

4 A. Yes.

5 Q. Would you agree that managers need to
6 document that employees with performance issues were
7 informed of those issues?

8 A. Yeah.

9 Q. Why is that important?

10 A. So if it happens again, we can see if
11 it's not improving.

12 Q. And that's something you did on your own
13 with your Excel spreadsheet; right?

14 A. Yeah.

15 Q. And Sixt never told you to do that?

16 A. No.

17 Q. And would you agree that it's important
18 to try to address performance issues or any issues in
19 the workplace, period?

20 A. Yeah.

21 Q. Okay. And in that -- in that one time
22 that you conducted that performance evaluation, the
23 2019 to 2022 period, were you the only one
24 responsible for conducting that performance
25 evaluation for your direct reports?

1 A. Yeah.

2 Q. No one else provided feedback?

3 A. Feedback on what? On the fleet
4 assistance?

5 Q. Yeah.

6 A. Yeah. Nobody. It was just me.

7 Q. And you would have had enough exposure to
8 them such that you could evaluate their performance;
9 right?

10 A. Yeah.

11 Q. Okay. And the Excel spreadsheet, did you
12 reference it when you conducted some -- when you
13 wrote down -- strike that.

14 Did you conduct the Excel spreadsheet when
15 you were filling out this form?

16 MR. RAHMAN: Could I get the first part of
17 the question one more time?

18 Did you conduct an Excel spreadsheet?

19 MS. BREKKE: Yes.

20 Read it back?

21 (Record read.)

22 MS. BREKKE: I think I said -- did you --
23 what I meant to say --

24 MR. RAHMAN: Right.

25 MS. BREKKE: Let me start -- let me start

1 that question over.

2 Q. Did you reference the Excel spreadsheet
3 when you filled out that performance evals?

4 A. Yeah.

5 Q. You did? Okay.

6 Okay. After you sent -- I know you don't
7 recall how you sent it into HR, these performance
8 evaluations, but you recall scanning it in?

9 Strike that.

10 You recall scanning these papers?

11 A. I just -- I -- I kind of do, because it
12 was written on, so I would need to scan them.

13 Q. And there was a scanner at Linden?

14 A. No. I'd scan it with my phone app.

15 Q. Does it take a picture of it, too; that
16 app?

17 A. It's like my Notes app where I can put
18 scan file, and then it's like a PDF. Not a picture.
19 My camera app.

20 Q. Is it still on your phone?

21 A. The Notes? Or are you saying the
22 performance review?

23 Q. Yes.

24 A. No.

25 Q. Do you recall deleting them off your

1 phone?

2 A. My iCloud email has changed because I got
3 new phones. So it wouldn't -- it's the one that I
4 have now didn't -- I didn't have during that time, so
5 it wouldn't be on this one.

6 Q. But you have -- you have the same phone
7 number?

8 A. That's a company phone number that I
9 still have. But my personal phone number is
10 different.

11 Q. Has changed?

12 A. Yeah.

13 Q. Okay. Okay. Sometimes with these one on
14 ones that you have now, are there one on ones that
15 you have where there's no notes that you take?

16 A. Yes.

17 Q. Okay. And when do you not take notes?

18 A. When there's nothing to report. So if
19 they have no concerns, no comments, no issues to
20 report.

21 Q. Okay. Okay. So I know we've kind of
22 talked about Michelle Hernandez. So I imagine you're
23 aware of Michelle Hernandez; is that correct?

24 A. Yeah.

25 Q. When did you first meet her?

1 A. In Florida. When we went to a work event
2 in Florida before -- when I was a fleet planner, and
3 that's where I met her. She was a manager for one of
4 the branches that were also -- it was, like, a game
5 that we were doing for the opening.

6 Q. And what do you recall about your
7 interaction with her?

8 A. She was -- she was competitive.

9 Q. In this game you're describing?

10 A. It was like a Sixt game. So like Hunger
11 Games but for Sixt. So, like, we, for all the US, we
12 we would see who had, like, the highest score for,
13 like, company knowledge. And then the top people
14 there would get sent to the next level, which was,
15 like, who knew the company history or, like,
16 policies. And then the top ones from that area, like
17 the West Coast, was sent to Florida for, we all
18 competed against the other locations for, like, the
19 top person for the whole country.

20 So there was, like, stages to it.

21 Q. And it was over the course of this
22 conference? Or over the course of -- like, did it go
23 on for a month?

24 A. It went on for a while. A couple weeks.

25 Q. Oh.

1 A. Yeah. The final games was in Florida,
2 and that's where I met her. So that was like the
3 third system of -- for the whole game.

4 Q. So you made it through three levels, one,
5 two, three, and then you got to Level III, and that's
6 where you met her?

7 A. Yeah.

8 Q. Okay. And you perceived her to be very
9 competitive? Or not very competitive. You perceived
10 her to be competitive?

11 A. Yeah.

12 Q. What did you find competitive about her?

13 A. Well, she was the manager for one -- of
14 the girls that was completing against me, and then
15 she wanted her employee to win, of course. So she
16 was, like -- you know, like somebody at a football
17 game, like, cheering. She wanted to win. Yeah.

18 Q. She was enthusiastic?

19 A. Yes.

20 Q. Was it rude?

21 A. No.

22 Q. Okay. Okay. At that point, did you work
23 with her?

24 A. No. It wasn't until after she was moved
25 to our location, when she took over for Andrew.

1 Q. Mmm. Do you remember what year Andrew
2 left?

3 A. 2019?

4 Q. That's around the time you think Michelle
5 started?

6 A. Yeah.

7 Q. Okay.

8 A. I think so.

9 Q. And then you started reporting to her and
10 Martha; correct?

11 A. To her. And then after --

12 Q. Yeah. Sorry.

13 A. And then --

14 Q. Yeah, understood.

15 Okay. How would you describe your
16 relationship with Michelle?

17 A. It was fine. We didn't really talk much
18 other than work-related things.

19 Q. Did you not want to?

20 A. I didn't need to. She was closed off.

21 (Reporter clarification.)

22 THE WITNESS: Yeah, closed off.

23 BY MS. BREKKE: Q. Did that make it -- so
24 did that make it feel like it was hard for you to
25 approach her a little bit?

1 A. Yeah.

2 Q. Why? Like, what did she do that made her
3 seem like she was closed off?

4 A. It's -- everything was always work
5 related. I don't know anything other than, like, her
6 being my manager. She would only talk to me if there
7 was something that needed to be talked about. Not
8 many casual conversations about anything.

9 Q. And that was unlike your relationships
10 with your other managers?

11 A. Well, she was my only manager at the
12 time. Before her, it was Andrew. It wasn't like
13 that. He would talk to me more. Felt more open to
14 talk to him about anything. If I needed help, it was
15 easier to ask him for help. He had offered more
16 guidance.

17 Q. How often did you see Michelle?

18 A. Her office was located at Linden, so she
19 was in her office, and I would see her.

20 Q. How often was she at her office?

21 A. Maybe for the first part of the day. And
22 then she would be at the airport, the branch. So
23 maybe 25 percent of the time.

24 Q. 25 percent she was at Linden?

25 A. I would say yes.

1 Q. Okay. For that whole -- for that
2 2019-2022 period?

3 A. She started coming around more often,
4 like toward the end of that range. But her office
5 was, like, kind of located away from mine, so, like,
6 I didn't see her.

7 Q. Do you know why she started coming back
8 -- coming more to the end of 20 -- maybe 2021, 2022?

9 A. No.

10 Q. Okay. You outlined for -- kind of the
11 office. Where was hers in relation to yours?

12 A. So we have the two offices in the front
13 of the building, and then the long hallway, then the
14 two at the bottom; her office was in the middle of
15 the long hallway. Right in the middle.

16 Q. Do you have any pictures of the office?

17 A. No.

18 Q. Okay.

19 A. Like an actual pictures of like the
20 layout? Or like --

21 Q. Not, like, a blueprint. But just like
22 the like the -- you know, do you have videos of the
23 office or pictures of the office, taking videos of
24 someone or --

25 A. Not -- no, I don't think so.

1 Q. Okay. Did you think Michelle was a good
2 manager?

3 A. Yeah.

4 Q. Did you like her?

5 A. Did I like her? I -- it's not a really
6 like or don't like. It's just she was my manager.

7 Q. Did you like Andrew?

8 A. Yes, I did.

9 Q. Okay. So it felt a little different with
10 Michelle?

11 A. Yeah.

12 Q. Okay. So with that, were you neutral
13 about her? Or did you have any negative feelings
14 about her?

15 A. It was neutral. It was she's here to do
16 her job, and that's it. It was just a job. Because
17 there was no other, like, conversations, I don't
18 really know who she is. So I don't want to say I
19 don't like her because I don't know her like that.
20 It was just what I have from working with her.

21 Q. Okay. Did you feel like she was an easy
22 person to talk to?

23 A. No.

24 Q. Why not?

25 A. She's -- she's the type of person where,

1 like, if she's in her office, her door's closed.

2 That's, like -- I don't see her. I'd walk by her
3 office and not know if she was in there.

4 Q. Did you ever have any concerns about her?

5 A. No. No.

6 Q. Did you ever speak poorly of her?

7 MR. RAHMAN: Vague and ambiguous. Overly
8 broad.

9 THE WITNESS: What word did you use?

10 BY MS. BREKKE: "Poorly."

11 A. Poorly.

12 I could have. Yes.

13 Q. Do you recall speaking poorly about her
14 at all?

15 A. Um, she could have -- she could be mean
16 in some situations and not very helpful to me. So I
17 could see that, yes. I -- I did.

18 Q. Who did you speak poorly about her to?

19 A. I don't know exactly who, but it could
20 have, coming out, as like a vent would be. Like me
21 venting about it.

22 Q. Did you speak poorly about her to Shy?

23 A. I don't think so.

24 Q. What about to Rudy?

25 A. Maybe.

1 Q. What about to Martha?

2 A. Yeah, maybe. Yes.

3 Q. You said she could be mean. How could
4 she be mean?

5 A. She could -- no, I just think about the
6 one time where, like, she made me cry just because
7 she was so -- so direct, and she didn't care to,
8 like, listen to what I had to say. It was just --
9 just like -- I don't know how to explain what the
10 word is, but she's very pushy. You know, a pushy
11 person.

12 Q. Can you explain to me what happened in
13 that situation?

14 A. I think it was that we had Mercedes out
15 getting service for a recall. So a lot of them were
16 taken out of service, which, of course, affected the
17 branch, because they need those cars.

18 She asked me what was the timeline of
19 getting them back. I told her the timeline based off
20 of what the dealer told me, but then find out the
21 dealer was able to get them back right away. So they
22 all returned back faster than I thought they were.
23 And that bothered her, because I guess she made plans
24 to work without them. She was expecting to not have
25 them. And so that -- she didn't like that.

1 Q. And then how did she tell you she didn't
2 like it?

3 A. I can't remember the words that she used.
4 I just remember the feeling of just her, like, saying
5 that if I would have told her this, if I would have
6 gave her the right information, then she wouldn't
7 have had to do this. And, like, she expects more
8 from me to, like, know these things. And it was just
9 a lot coming out.

10 I can tell that she knew that it was too
11 much, because after, she gave me a plant on my desk
12 to try to make up for whatever she just did -- so I
13 knew that she felt some kind of way about it.

14 Q. Did she see you cry?

15 A. No. I walked out after -- after she was
16 done talking, then I took a break.

17 Q. How long was -- did you feel like she was
18 berating you?

19 MR. RAHMAN: Vague, ambiguous.

20 But go ahead.

21 THE WITNESS: What is "berating"?

22 BY MS. BREKKE: Q. You know, like --
23 this is the wrong example, but like criticizing you?

24 A. Oh, yes. Uh-huh.

25 Q. Okay. What was her tone like?

1 A. She has the same tone all the time. It's
2 not -- it wasn't, like, she was yelling at me, or it
3 wasn't, like, angry.

4 Q. What was it?

5 A. She has such a neutral tone.

6 MR. RAHMAN: (Unintelligible.)

7 THE REPORTER: I didn't hear your
8 objection.

9 MS. BREKKE: I don't think anyone heard
10 your objection.

11 MR. RAHMAN: Yeah, I appreciate that.
12 Vague and overly broad.

13 But go ahead.

14 THE WITNESS: A neutral tone. Most times
15 she talked, it was the same neutral tone.

16 BY MS. BREKKE: Q. But in this
17 conversation, did she still have a neutral tone? Or
18 was it more like -- a little more aggressive?

19 A. I would say it was the same tone, but the
20 words maybe could be seen more aggressive since,
21 like, it -- it hurt me. Not like -- like, it just
22 made me feel like really bad.

23 Q. Got it. Okay. And then she left you a
24 plant on your desk; is that right?

25 A. Yes.

1 Q. Did she ever apologize to you for how she
2 spoke to you?

3 A. No.

4 Q. Did you tell her that she spoke to you in
5 a way that upset you?

6 A. No.

7 Q. Why?

8 A. She left the plant.

9 Q. How soon after -- how soon after did she
10 leave the plant?

11 A. Right after.

12 Q. Like 10 minutes later?

13 A. She took it from her -- well, because I
14 left, and then when I came back from my break, it was
15 on my desk.

16 Q. And so when she left the plant on your
17 desk, you didn't feel the need to tell her that she
18 had upset you?

19 A. No, because I understand -- I can be
20 emotional at times. So I don't -- sometimes I can --
21 you know, something might hurt my feelings, because
22 I'm new to the position. So it could have been a lot
23 on me. But then I just thought about the whole
24 situation, and I can't let something like that hurt
25 my feelings. She's telling me, you know, facts that,

1 because of this, because of what I said, she had to
2 do something and in a result of that, and I should
3 just, you know, listen to what it was and -- and
4 think of how to not have that happen again.

5 Q. Did she ever speak to you in a manner
6 similarly?

7 A. What do you mean "similarly"?

8 Q. Like, did she ever have that same
9 demeanor with you again; did a situation like that
10 ever happen again?

11 A. No.

12 Q. Not the same exact situation, but a
13 situation where she made you really upset?

14 A. No, because I started to understand that
15 that's just how she talks.

16 Q. So you felt you had to just accept her
17 kind of closed-off nature?

18 A. Yeah. Not accepted, but just understand
19 it more. That's not what she means.

20 Q. Do you think you could have spoken --
21 yeah, I'm sorry. Go ahead.

22 A. I'm not going to take it to heart.

23 Q. Did other people feel sim -- do you know
24 if other people on your team felt similarly about
25 her?

1 MR. RAHMAN: May call for speculation.

2 BY MS. BREKKE: If you know.

3 A. I don't know.

4 Q. Did Marcus ever tell you that he had any
5 concerns with her?

6 A. I can't remember any, like, specific
7 ones, no.

8 Q. Did Rudy?

9 A. I don't think so. I can't remember any.

10 Q. Did Shy?

11 A. No. I can't remember any.

12 Q. If they did have concerns with her, would
13 you have encouraged them to talk to her about it?

14 MR. RAHMAN: Incomplete hypothetical.
15 Calls for speculation. Lacks foundation. Assumes
16 facts not in evidence.

17 But go ahead.

18 THE WITNESS: I don't know if I would
19 tell them to talk to her about it, because they are
20 coming to me with something they -- I felt like if
21 they are expecting me to do something about it.

22 MS. BREKKE: Okay, Madam Court Reporter,
23 I want to honor your request to end out at 3:30. I
24 know you're on the West Coast, so why don't we wrap
25 here. We'll pick up here on Tuesday. I do want a

1 transcript, but I know we cannot request expedites or
2 -- because I know you're really backlogged, Adrienne.
3 Is a rough possible?

4 THE WITNESS: Absolutely.

5 MS. BREKKE: It is? A rough would be
6 wonderful. Thank you.

7 THE REPORTER: How about Defense Counsel.

8 MR. RAHMAN: I'll order a copy, please.

9 THE REPORTER: Do you need a rough?

10 MR. RAHMAN: No.

11 MS. BREKKE: Okay.

12 MR. RAHMAN: Thank you.

13 MS. BREKKE: Okay. We're going off the
14 record at 3:32 p.m.

15 (The proceedings adjourned at 3:32 p.m.)

16

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18 _____
CHARLENE WILSON DOMINGUEZ, VOLUME 1

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1 IN AND FOR THE STATE OF CALIFORNIA

2 COUNTY OF SAN FRANCISCO

3

4

5 I, ADRIENNE MEDA, duly authorized to
6 administer oaths pursuant to Section 2093(b) of the
7 California Code of Civil Procedure, do hereby certify
8 that:

CHARLENE WILSON DOMINGUEZ, VOLUME 1

7

8 the witness in the foregoing deposition was duly
9 remotely sworn by me to testify to the truth in the
10 within entitled cause; that said deposition was taken
11 at the time and place as set forth; that the
12 testimony of said witness was reported by me, a
13 Certified Shorthand Reporter and a disinterested
14 person, and was thereafter transcribed by computer
15 under my direction into booklet form; that the
16 witness was given an opportunity to read and correct
17 said deposition and to subscribe to the same.

13 I further certify that I am not of
14 counsel or attorney for either or any of the parties
15 in the foregoing deposition and caption named, nor in
16 any way interested in the outcome of the cause named
17 in said caption.

16 Executed October 6, 2025, at San Rafael,
17 California.

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Adrienne Meda

Adrienne Meda, CSR No. 6609

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San Francisco, CA 94111

Attn: Imran Rahman

Re: Buksh vs. SIXT RENT A CAR, LLC
Deposition of: CHARLENE WILSON DOMINGUEZ, VOL. 1
Date taken: September 18, 2025

Dear Mr. Rahman:

We wish to inform you of the deposition of this
original transcript. The following procedure is
being taken by our office:

_____The witness has read and signed the
deposition. (See attached.)

_____The witness has waived signature.

_____The time for reading and signing has expired.

Sincerely,

Adrienne Meda, CSR 6609
West Coast Reporters, LLP

WEST COAST REPORTERS, LLP
68 Mitchell Boulevard, Suite 210
San Rafael, CA 94903
Depos@westcoastreporters.net

October 6, 2025

CHARLENE WILSON DOMINGUEZ
C/O
O'HAGAN MEYER
One Embarcadero Center, Suite 2100
San Francisco, CA 94111

Re: Buksh vs. SIXT RENT A CAR, LLC

Dear Ms. Dominguez:

Please be advised that the original transcript of your Volume 1 deposition, taken virtually on September 18, 2025, in the above matter, has been completed and is now ready for your review by appointment in our San Rafael office.

In the alternative, you may choose to discuss this matter with counsel to determine if counsel requires that the original transcript of your deposition be read, corrected and signed by you before it is sealed.

Your rights regarding signature of this deposition are contained in the California Code of Civil Procedure which requires that the original deposition transcript be sealed after 30 days plus 5 mailing days after the date of this letter and thereafter sent to the noticing attorney.

Yours very truly,

ADRIENNE MEDA, CSR
West Coast Reporters, LLP

cc: Original Transcript
All Counsel

Shyheen Buksh vs. Sixt Rent A Car

CONT.

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